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Loudoun County Board of Supervisors, Business Meeting, Tuesday, September 1, 2026

Date Tuesday, September 1, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 7h 51m (video)

- Official meeting video (county, eScribe): <https://pub-loudoun.escribemeetings.com/VideoStream.aspx?MeetingId=929244b6-a7bd-4399-b2dc-47491ce17657>
- Video file the timestamps follow: <https://video.isilive.ca/loudouncity/83-Board-of-Supervisors-Business-Meeting-2026-9-1-19-51.mp4>
- Official agenda (county, eScribe): <https://pub-loudoun.escribemeetings.com/Meeting.aspx?Id=929244b6-a7bd-4399-b2dc-47491ce17657&Agenda=Agenda&lang=English>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:13:22] Everyone, I'm just going to let the sign-up line go down a little bit before I gavel this in, just so people are not standing up. Just give a second, and we'll let the line go down.

[00:15:50] Well, good evening, supervisors, good evening, staff, and good evening, Loudon. I'd like to call to order the September 1, 2026 Loudon County Board of Supervisors business meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well.

[00:16:08] Please see the clerk to request one. I do want to welcome everybody back from August break. And before I go over to Mr. Letourneau to give the words of inspiration and our prayer and Pledge of Allegiance, I do want to say that, I want to take a moment and say that in Nepal and China and Tibet, we are seeing one of the worst disasters we've seen in a long time.

[00:16:34] I heard somebody say these are not probably the first deaths that can partially be attributed to global climate change, but they certainly won't be the last. Right before I came down, I did check the

numbers. The death toll has passed 1,000, the still missing has passed 5,000, and we can assume that death toll will probably increase.

[00:16:55] We also know that some of the people who are missing are from this area. And so before I pass it on, I would like to take a moment of silence for all the life's lost and all the suffering of our fellow humans that are far away.

[00:17:17] Thank you very much. Mr. Letourneau? Thank you, Madam Chair. Dear God, we ask that you watch over our county, us as your public servants, the public servants of the people. You help guide us with our decisions and always point us in the right way to make sure that we're doing the best thing possible for our residents. We ask that you

[00:17:52] bless our first responders, our military, all of our community. We especially ask that you pray and help with those in Nepal that are affected by the terrible flooding, those in our community that are suffering for it, as well as some of the other things that have happened in the community recently, some fires and some tragedies that have impacted our residents. We ask that you watch over all those affected. In God's name we pray. Amen.

[00:18:19] Would you please transfer the Pledge of Allegiance? Pledge of Allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:18:40] Okay. Supervisors, I do not have any additions or deletions to the agenda. Does anyone else have any additions or deletions to the agenda tonight. Ms. Letourneau. Okay. I will read the consent agenda. The consent agenda is as follows.

[00:18:56] Resolution to recognize Dr. Elahe Hesfner for 10 years of service to the Community Services Board. That is for approval only. Proclamation to recognize September 26th as Hungary Action Month and approval. Ms. Bricksman will join me down front for that.

[00:19:13] Proclamation to recognize September 26th as Breast Cancer Awareness Month Mr. Sains will join me down front for that. Proclamation to recognize September 2026 as Sickle Cell Awareness Month for approval and presentation. Ms. Glass will join me down front from that.

[00:19:30] Proclamation to recognize September 2026 as Suicide Prevention Month. I'm going to do that proclamation first, actually, this evening. Mr. Turner will join me down front for that. And proclamation to recognize September 2026 as Find the Good Day. And Mr. Turner will join me down front for that.

[00:19:48] We also have item 14A, appointments and confirmations. And on 14C, administrative items report for September 1st, 2026. I will make a motion to approve the consent agenda. Is there a second? Second. Motion is made second by Vice Chair Turner. Is there any discussion on approval of the consent agenda?

[00:20:07] Seeing none. Thank you for my cupcake. Seeing none. All the people who say aye. Aye. Any opposed? That motion will pass 701. I'm sorry, 801. I'm sure Mr. Sains is on his way. He's coming from D.C., so sometimes he has just a bit of a time to get here.

[00:20:25] All right, supervisors, I have quite a bit in my chair's comments today because we've been gone for a month, but I have been fairly busy during that month. And supervisors, if you remember, during our

last meeting, we actually had to postpone the meeting by a day because most of us were stuck in an airport in New Orleans.

[00:20:50] And supervisors, Tacroni and Glass, came on the day as by themselves and announced that we were all going to be moving the meeting to the next day. If you look, Sylvester, Umpstead, Bricksman, Kirchner, and Letourneau, all three of you have beads from New Orleans that are often used at Mardi Gras.

[00:21:12] You guys didn't go with us, so I bought you back Mardi Gras beads. I was asked how I got those beads. I bought them. I didn't do anything else to get Mardi Gras beads, but go buy the Mardi Gras beads. You might be the only one that got that.

[00:21:30] But I did want to make sure that you guys had some Mardi Gras beats for yourself. So let me just go through a few things that have happened. So we did go through NACO, and as I often do, in fact, I always do, I bring things back for my colleagues who couldn't make it and for the staff that could not make it also.

[00:21:49] For the guides, they had a lot of discussion for developing housing on county-owned property. Ms. Tacroni and I have been talking for, well, I was talking before she got on the board, but since she'd been on the board, we've been talking for a long time about the importance of land banking and having county-owned property, especially for the possibility of housing.

[00:22:13] I have really, really leaned into attainable housing in the county. So I bought one of these back for you, Ms. Tacroni, and I bought one of them back for Eric Heeler, who is, are you here, Eric? I bought one back. You've got to come get it right now. I'm just going to give them all to Jenny. She'll give them just a second.

[00:22:29] but I bought one for you, Mr. Crony. I bought some information about the federal policy priorities that NACO has put forward. NACO, I should say, is the National Association of Counties, so there's federal policy priorities that they put forward to Congress on behalf of counties.

[00:22:47] I bought one back for Mr. Sains because he is a ledge agenda person with me. For Renee, I bought you one back. And for Chris Quintine, again, I'll put it to the staff. I brought you information back on the federal policies and priorities. I'll give Mr. Sainz his right now.

[00:23:04] For our amazing, wonderful, fantastic staff over in the Elections Department, they had a whole session on county-level elections and how they are administered.

[00:23:22] We have an amazing election staff, and we've never had any issues at all with our elections. But we do know that there is possibly going to be, it could be some changes in elections. It could be just issues that happened in elections that never happened before.

[00:23:38] So for our elections department, I brought that information back for county elections. For the federal permitting reform, I brought one back for everybody on the board. And I brought one for you, Chris, again, and for Danny. Welcome to my bringing stuff back to you from NACO, whether you wanted me to or not.

[00:23:57] I bought you something back. And for everybody else on the board, I bought one back, and especially you, Mr. Quintine. And then I could not be more excited about, we will be doing our opening for our crisis receiving center here in Loudoun County on the September 19th at 10 in the morning.

[00:24:16] So for Margaret Graham and for Monica, for you, ma'am, I bought some information back on shaping crisis response in the crisis receiving center at the county level since we're about to have a crisis receiving center at the county level in Loudoun County, of which I am really, really, really, really excited about.

[00:24:35] So I bought some back for you, and I bought a lot of these back. So for anyone who wants one of those shaping crisis response, I'm happy to do that. I'm also going to make sure that Sheriff Chapman gets one of those as well. Okay, in addition to going to the National Association of Counties, I also attended the Virginia Association of Counties.

[00:24:56] And a couple things happened there. One, we had a really great discussion on how to strengthen the relationships between local elected officials and state elected officials. It's not that there is any problem or hostility. It is just that we don't see each other very often.

[00:25:13] And a lot of times, by the time the General Assembly goes into session, you know, listen, they are really, really busy. And they probably are looking at 3,000 bills or sleeping four hours a night. And it's just not realistic to think that we can have really long, robust discussions with them when they're already in session.

[00:25:29] And so one of the things we're trying to do at NACO is have some discussions with General Assembly members well before General Assembly sessions. I was tasked in helping with that. I have had meetings with quite a few General Assembly members from around the state.

[00:25:47] And I have a lot more meetings scheduled. One of my, one of the most helpful meetings is with Josh Cole, who's from the Leesburg, Fredericksburg area. He actually was the person that put forth the Faith and Housing Bill that we strongly opposed, but that passed anyway.

[00:26:02] And I was able to sit down with him for the first time and really go through with him why we opposed the Faith and Housing Bill. It was a really good discussion. So as I continue to have discussions with General Assembly members from around the Commonwealth, I will make sure I let you all know. I'm also on the Health and Human Service Committee, and I will make copies of this for anyone and for supervisors if you want it, and any staff that want it.

[00:26:25] We had from Secretary Figueroa a briefing on H.R.1, which is also called the One Big Beautiful Bill, and the impacts of this bill on localities. And I think that they're going to be a lot more harmful than I think most counties realize and a lot more expensive than most counties realize.

[00:26:51] The changes to Medicaid, SNAP, and the social services programs and the unfunded mandates coming to counties, especially a county like ours that administers SNAP, is going to be significant. And so Mr. Figueroa, Secretary Figueroa, gave a really good briefing on that.

[00:27:09] Again, I have the whole package that I bought with me. If anybody would like, I didn't want to make copies unless you wanted one. You can also get it electronically. But if anyone would like a package on that, I'm happy to do that as well because this was really important. I did quite a few other things, including participating in a summit at SPARC.

[00:27:30] SPARC is the Specially Adapted Resource Center. I was on the, on a panel in D.C. with quite a few other regional elected officials around the country, and for the first time, and I thought this was wonderful, joining us in the panel were individuals who actually use the program that SPARC provides,

and so to hear from the voices of the people who are using the services was really, really, really very important. We talked about the complex needs of people who have somewhat severe physical

[00:28:10] disabilities and how it's important to not avoid these conversations, not shy away from talking to people, but talk to the community, talk to their families, and really say what do you need and what do you want? Sometimes what they said is that counties think it's too expensive, and so sometimes you just shy away from the conversations. And so one of the important things they said is equity isn't complete until it reaches the most profoundly impacted. And whenever there's a discussion on DEI, I am always, always, always certain

[00:28:48] And to add the A, and the A is accessibility. And to make sure that our friends, our neighbors, our loved ones, our families in the accessibility community get their needs met as well. So those are some of the highlights of the things I've done since we've been on August break.

[00:29:06] Not everything, but some of them. It was a really good break. And now I will do my voice for a cause. My voice for a cause today is the Loudon, Wellness Loudon. Established in 2025, Wellness Loudoun is a local nonprofit focused on providing mental health services to those in need.

[00:29:25] The mission of Wellness Loudoun is to save lives and restore hope by providing safe, welcoming environment and community for mental, emotional, and physical well-being. Their vision is to build a community where no one struggles alone, and everyone has the support they need to heal and to thrive.

[00:29:45] Today with us is Jennifer Marshall, who's the executive director. Thank you, Ms. Marshall, for coming out. I have a few questions for you. Can you tell me what sorts of mental health program does Wellness Loudoun offer? Yes, and thank you, Chair Randall, for having me. So we really take a whole-person approach to supporting mental health at Wellness Loudoun.

[00:30:03] We offer everything from peer support groups to people living with depression and bipolar disorder, clinician-led groups like our complex PTSD group, and yoga therapy for anxiety. We also have a Bridging the Gap peer support program. We also have classes for mindfulness and meditation, therapeutic art, yoga, grief walks, nutrition classes.

[00:30:24] And we partner with the county to host educational programs like Mental Health First Aid. We're also partnering with LCPS on September 24 to offer a teen mental health documentary film screening and discussion. But we also believe that mental health is more than what happens in a therapy room.

[00:30:40] It's about connection and belonging. So things like our hikes, pickleball, creative classes, and community events are very intentional. They give people opportunities to get out of the house, meet others, have fun, and build relationships, which is why we want people in Loudoun to have somewhere to turn before they reach a crisis and to know that they don't have to struggle alone.

[00:31:00] Thank you. Do you guys know what film you're screening? We're screening the film Our Turn to Talk. Our Turn to Talk. Thank you. I might want to get more information about that so I can send it out to people. So this is Suicide Prevention Awareness Month. We have a resolution today, in fact, for Suicide Prevention Awareness.

[00:31:17] How does the programs that are offered by Wellness Loudon help fight against social isolation and, I should say, end hopelessness? Because people always think suicide is an act of depression. Suicide is actually an act of hopelessness.

[00:31:32] So how does Wellness Loudon fight against that? Right. Social isolation is really at the heart of many challenges that we're trying to address. At Wellness Loudoun, we believe that positive mental health isn't built in isolation. It's built through connection and community, which is why connection is intentionally woven into everything we do.

[00:31:51] Sometimes connection looks like sitting in a support group with people who truly understand what you're going through, but sometimes it's being matched with a peer mentor through our Bridging the Gap program while you're waiting to access professional care. And sometimes it's much more simple. It's showing up for pickleball.

[00:32:07] It's taking an art class. It's going on a grief walk. or just realizing that you belong somewhere, especially during suicide prevention. Absolutely. Thank you so much for that. And I really like that you're the whole body wellness. And so tell me how you focus on the physical activity, the nature of the art therapy, all those things.

[00:32:28] How do you weave all these things together? Well, we all know that physical activity helps reduce depression. It helps reduce feelings of anxiety. It improves sleep and mood, lowers risk of depression. And time in nature has also been associated with reductions in stress, anxiety, and depressive symptoms.

[00:32:46] So art gives another pathway because creative expression helps people slow down, be present, process emotion, and connect with others in a way that often feels easier than talking. So there's lots of options at Wellness Loudon to connect and to try different things. And the last question is, what is the best way for people to learn more about Wellness Loudon, to contribute, to donate, to volunteer?

[00:33:09] How would they do that? Yes, thank you for asking. Our website is the catch-all for that, wellnesslouden.org. You can do all those things. I always encourage people to sign up for our newsletter when they hit the home page. They get all of our classes and programs, and you can contribute there and become a sustaining donor through our Circle of Care program.

[00:33:28] Well, Ms. Marshall, there are two times in this room that we actually clap, and that is resolutions. And at this moment, you're doing great work in the county. Thank you so much for what you're doing. Thank you. you so much. Appreciate your time. I almost said, Mr. Hemstreet, do you have any comments? I was this close because I've gotten so used to saying that, but I am not saying that today. So, do you have any comment? Thank you, Madam Chair. Good evening, Madam Chair, board members, and everyone with us this evening. On behalf of County Administrator Hemstreet, it is my pleasure to offer

[00:34:03] some comments this evening, beginning with welcome back. Next, a special note since your last business meeting is that the county has received a prestigious award from the National Procurement Institute. Our Division of Procurement was one of only 54 county governments in the U.S.

[00:34:18] to receive the 2026 Achievement of Excellence in Procurement Award. More information about this award and other recognition the county has received is online at loudon.gov forward slash awards. The fiscal year 2027 budget and brief is now available online. This companion piece to the county's FY27 adopted budget uses colorful graphics and concise descriptive text to illustrate how the county's budget

affects Loudoun residents and businesses. This document highlights new programs and resources that will serve residents and businesses, including selected projects from

[00:34:55] the Capital Improvement Program. More information, including a link to the document, is online at loudon.gov forward slash [budgetinbrief](http://loudon.gov/budgetinbrief), and that is [budgetinbrief](http://loudon.gov/budgetinbrief). Finally, Loudoun County is observing September as National Preparedness Month by encouraging residents and businesses to plan for emergencies.

[00:35:15] This year's theme is Americans Stand Ready. In addition to offering preparedness information online and through social media, the Office of Emergency Management, Safety, and Security has informational displays at the county's community centers, senior centers, and library branches.

[00:35:31] Details on how families and businesses can prepare for disasters can be found online at loudon.gov forward slash [ready](http://loudon.gov/ready). Thank you, Madam Chair. Thank you very much, Ms. Bells. We appreciate it. Can we pass those down, please? We're going to go on and do, we have one information item this night.

[00:35:47] It's the ledge item. Would staff please come down? Mr. Keeler, will you please come down for this item, too? Because I understand that there are some motions on the dais that may or may not impact, excuse me, bless you. bless you, your department, so if you could come down too, that would be just wonderful.

[00:36:03] Supervisors, if you remember, this item was on the agenda last time, but because we were just so, it was such a heavy agenda, I pushed it until this meeting. Welcome, everybody. Welcome back from, well, I guess, I don't know, you guys probably didn't go on break, but welcome, everybody.

[00:36:20] Good afternoon, Chair Randall and members of the board. For the record, I'm Chris Quintine, Assistant County Administrator. Before I turn over the discussion on the wrap-up item to the team here, I'd like to introduce Ms. Elizabeth Parker and Ms. Karen Addison, who are representing Troughton Pepper, our state contract lobbyists, who help us out on the ground in Richmond at the General Assembly.

[00:36:40] I'd also like to briefly note some changes we've had to the legislative team since we last came before you all earlier this year. As you know, our former legislative liaison, Mr. John Freeman, accepted a position outside of the county. I'm certain that I can speak for the staff and share that it was an absolute privilege to work with John, and while we do miss working with him directly, we're so very happy for him and his new career opportunity.

[00:37:03] With John's departure from the county, Ms. Renee Vanderbilt was gracious enough to step in and step up and serve as our acting legislative liaison and has been managing the logistics of the LEG program directly, and I'm certainly grateful for all of her work. So with that, I will turn it over to Ms. Vanderbilt now for the legislative update and wrap-up item.

[00:37:22] Okay, thank you. okay so bring your mic a little closer how's that how's that that's better okay thank you um so this general assembly session was very unique and long um sure okay things were not decided until yeah pretty much the last minute there were a lot of difficulties for loud in this session a lot of difficulties for localities um but some good things too so i will just give a survey of what went on. There's a lot in your packet. I'm just going to do a little brief

[00:37:57] overview. So first, our legislative initiatives. The governor signed our bill to eliminate the local housing grant maximum amount of \$25,000. There is now no limit on what that can be, which is great for

expensive localities like we have right here. Oak Hill, there is language in the final budget deal to help turn this into a state park. We are continuing to work with the Conservation Fund, we would like to seek a few amendments to that language, just some sort of technical things.

[00:38:32] We might consider changing the language in our program for next year. We want to thank Senator Perry and Delegate McAuliffe. They were very instrumental in getting that language in the budget. Anti-rent gouging and local authority to consider power, both of these died very early during the session.

[00:38:52] We can certainly look into keeping them in our program for next year if you are interested in that. Local authority to do what? To consider power for data center applications. Okay. Yes. Impacts to the grid. Those died? Correct.

[00:39:08] Okay. Thank you. Next up, we have some bills of note. So, like I said, anti-rent gouging didn't make it across the finish line this year. We did have several housing bills of interest that did pass. local right of first refusal, HB 4. We have local ability to enforce the Virginia Residential Landlord and Tenant Act, which is HB 14, Senate Bill 290. We got an increase in the mandatory waiting period before the commencement of eviction procedures. That was increased from

[00:39:44] 5 to 14 days. That was HB 15, SB 48. There was also the establishment of an eviction reduction program at the state housing department, HB 527. Next, we have a couple of bills that enhance local authority. HB 55 authorizes localities to place and operate noise abatement monitoring systems for loud vehicles. HB 343 allows localities to adopt an ordinance requiring children to wear helmets on motorized and non-motorized skateboards and scooters. HB 557 delegate resource bill

[00:40:20] allows us to establish a separate tax rate for tangible personal property for electric-powered lawn equipment. Bills that eroded local authority, there were many. The most notable, I would say, HB 1279, Senate Bill 388, the Faith and Housing Bill that, Madam Chair, you mentioned earlier.

[00:40:43] Bills that had motions at board meetings during this session, HB 71, that one failed. would have allowed localities to establish by ordinance, um, increased dates and hours of operation for absentee voting at satellite offices, um, HB 223, um, did pass that allow localities to allocate their own funds to support public defender's office positions, um, and HB 395, Senate Bill 250, the balcony solar bill is passed as well.

[00:41:10] Um, some other interesting bills, I just have one, HB 1120 from Delegate Singh that, uh, created a DMV work group to make safety recommendations around e-bikes and e-scooters. That is going on right now. We're watching it very closely. Our sheriff's office is providing input on that one. So next we have some budget items of interest. I'll start with data centers.

[00:41:35] So there were a lot of back and forth about the sales and use tax exemption on computer equipment. There ended up being no changes to it this cycle, but they did establish an electricity consumption tax. That tax amount is capped at \$600 million to be collected annually. I will note that there is very specific language that that tax expires at the end of the biennium. So that is a very clear sign that they are going to revisit this, possibly extend it, possibly change it. We will

[00:42:06] continue to keep an eye on that. Additionally, the tax exemption is currently being studied by the Joint Subcommittee on Tax Policy. Some new environmental definitions and requirements for data centers. DEQ needs to identify areas where data center water use might impact water conservation.

[00:42:30] They're calling these cooling water scarcity areas. One more time, a little slower. Cooling water scarcity? Cooling water scarcity areas, yes. So all across the Commonwealth, DEQ is going to look at possibly where using water to cool data centers might have severe impacts on water conservation. Also, DEQ has been directed to develop regulations around noise, around data centers. Next, transportation, \$153 million in WMATA operating funding was included. There is

[00:43:10] also an amendment to fund WMATA capital needs beginning in fiscal year 29 with a new additional local sales tax, which is up to 1% subject to voter referendum. And that funding can also be used for construction or renovation of schools. Um, there was also the retail cannabis amendment in the budget. Um, it establishes a regulated adult use cannabis marketplace beginning on July 1st. Um, sales are legal for ages 21 and up. Uh, it does allow localities to set some parameters

[00:43:47] around where marijuana products can be consumed or possessed and to set hours when products can be sold. Additionally, localities are required to levy an additional local tax on marijuana products of between 1% and 3.5%. Next up, federal funding changes, particularly to SNAP and Medicaid.

[00:44:10] There are some initiatives included in the budget to reduce the SNAP error rate, which will have the effect of reducing the amount of benefits costs that the state will need to ultimately pay. The budget also included \$225 million for a federal uncertainty contingency fund to address unanticipated reductions in federal funding that impact state programs and services.

[00:44:36] There is a \$135 million set aside for potential SNAP benefits cost share and \$350 million in a Medicaid reserve contingency for program costs that are higher than expected. Also included in the budget was \$250,000 each year to increase funding for specially adapted resources clubs, which was a board business meeting motion, I believe, from Supervisor Glass earlier in the session.

[00:45:05] So that's just a sampling of what went on. I'm happy to take any questions that you may have. That was quite the sampling. My gosh. Yeah, that was quite a bit. Supervisors, let's go to questions first.

[00:45:21] If you have questions, please put your lights on. Ms. Bricksman. Thank you, Chair Randall. On HB 223, the Public Defender's Office allowing supplement for actual attorneys, I believe now we're fully in compliance then with the supplements that we've been providing for the Public Defender's Office.

[00:45:46] I would have to check on that. I'm not sure of the exact mechanics of it. Okay, I can check in with the county attorney later, but I believe that's the case. And then on HB18, SB, the child care, SB3, support state funding that provides additional child care slots, reduces wait lists for early childhood care and education programs.

[00:46:16] Is there a qualification for that? My fear is that maybe Loudon might not qualify for that. Do we know if there's any hurdles, or how do we work through that then? Does that just automatically come to the county, or do we have to apply for it?

[00:46:35] Let me see. I think I would need to check on that. You can get back to me. That'd be great. Yeah, I think that's a complicated one. I'm just really interested in making sure that we can access those funds, even though we have our own program.

[00:46:57] And then HB 395 and 250, is that balcony solar so that residents could, it says electric utilities, small portable solar generation devices. I think that there was a motion to support.

[00:47:13] Oh, yeah, there it is. Motion to support. I think that was me. Okay. So that passed. So do we need to do anything at the local level to make sure that we have, I don't know if people would need permits to do those or if there would be anything that we have to adjust in our zoning to make sure that folks could take advantage of the balcony solar or if people are just allowed to go on and do it.

[00:47:37] And I don't know if maybe the fire department might have some questions about that as well. Because as I read them, you're just supposed to plug them back into your house. And having had an electrical outlet kind of fizzle out on me and almost start a house fire at one point, that makes me very nervous.

[00:47:53] So, yeah. So I talked to building and development during the session on this bill. I'm not sure if there's anything they need to do on their end. I mean, the bill has already taken effect July 1st. Okay.

[00:48:09] I will check with them to see if there are any changes we need to make before people can go ahead. Okay, that would be great. Yeah, and maybe actually we could do something to encourage those devices. But thank you. Thank you very much.

[00:48:24] Thanks for the update. I'll have one motion later. Thank you. Mr. Letourneau. Yeah, just a quick question. So on the school budget, school funding, the LCPS receives, or the county received an additional \$14 million.

[00:48:40] I believe that that's correct that number um do we know at this juncture if the schools are going to request us to provide additional funding is somebody from LCPS here no no our budget if Megan wasn't okay okay um we can find out we can find out yeah well I had heard rumors of that um but I also believe that we had made an appropriation we did all we fully funded the budget. And so the 14 million, I believe would be money that we would then be able to reimburse

[00:49:17] ourselves with essentially hoping to get that, that, um, that funding. So, uh, but I guess I'll wait. Well, we haven't got, I know we haven't, we haven't got yet, but we did, but yes, we, we did fully fund the school board's budget. You were correct. Yeah. Yeah. Mr. Kirster. Yeah, briefly, uh, you had brought up two of the bills that I think had passed. One was the marijuana, store tax? You said it was 1.5% to 3.5%? Yes. Okay. And that's a range. Is that something that we haven't passed that tax yet, have we? I mean, this is new, so it just goes into effect. Yeah, it's new as of July 1st. It would be brand new as of July 1st, right? Yeah. Is that something

[00:49:56] that do we know if staff will be bringing that as a possibility to us? Yeah. Staff's actively preparing that right now. That needs to be in place by February 1st. I see. Okay. We'll have that ready for. That'd be great. And then you also mentioned there were \$225 million for loss, kind of a slush fund for loss of federal funds. Can you elaborate on that a little bit more?

[00:50:20] And essentially, is that something that is needs-based? Is it grant-oriented? And you're saying it's for the localities. So maybe I was unclear. Sorry. So that is for impacts to state programs and services.

[00:50:41] The language in the budget is a little bit broad, so I can look to see. I'm sure there would be some sort of local impact, but that's just sort of to plug the hole in case there are any issues with state programs. Okay. All right. Thank you. It was a little unclear. I just wanted clarification. I appreciate that.

[00:50:59] Mr. Vice Chair Turner. Thank you, Madam Chair. I'm curious on the power bill that empowers local ordinances to deny applications based on power. It died very quickly, and I'm trying to think through

any county in the Commonwealth that would rationally oppose that rather than support it wholeheartedly.

[00:51:22] So I'm kind of curious, do you have any sense at all as to why that died so fast? I mean, I have my suspicions, but I'm just curious if what your read was why it died so quickly. And if the answer is lobbying, that's fine. We can let it go at that.

[00:51:39] Thank you for the question, Supervisor Turner. Elizabeth Parker with Charlton Strategies. Love working with Loudon down in Richmond. To answer your question, I would say I think there were a lot of bills this year in this space, and not many bills in this space passed. Essentially, what I'm saying is, I think in the utility space in Virginia, typically the approach that the Senate Commerce and Labor Committee and frequently the House Labor and Commerce Committee will take is to kick a bill to study for a year.

[00:52:11] And we have an Electric Utility Commission set up to kind of do an in-depth analysis of legislation with impact. And if I'm remembering correctly, you know, this bill was kind of pushed to a study in the interim.

[00:52:27] So it just kind of a let's press pause, let's wait and see, at least for last session. So in your opinion as a lobbyist, Is there a value in us reintroducing this again this session coming up? I would need to think about that a little bit more and kind of check in, I think, with our bill patrons and some other folks to see if anything's changed.

[00:52:49] I will say the bill patrons were extremely enthusiastic about this bill. Wait, say that again? The bill patrons were extremely enthusiastic about this bill and wholeheartedly believed in its success. So I think we would need to have a conversation with them as well as some other stakeholders perhaps and see if there's an appetite.

[00:53:08] On the right of first refusal that Supervisor Richmond's bringing, and I guess it's HB4, if I understand it correctly, it means that if a local jurisdiction has skin in the game with a house that is currently affordable and coming up for sale, if they've got any skin in the game, then they have right of first refusal on an offer for the house when it's due to come onto the market. Do I understand that correctly? So it's a little more nuanced. Eric Keeler, housing director here in Loudoun, and county attorney can chime in also. So there is a component,

[00:53:46] and all of our loans that we have existent have the right of first refusal as you've approved them. But remember that our program is very new compared to other jurisdictions. Wait, I just want to help you. You can answer. I've got four seconds. Yep. What I'm curious is if we offer them \$5, do they have to take it for right of first refusal?

[00:54:03] No, because it has to be for the right asking price. Got it. Yeah. Got it. So, with respect, I want to be a little more clear. So what Mr. Turner is asking is, there was a bill that we put down in the General Assembly, carried by Countyn Sweeney Vassin, and J.J. Singh did a fantastic job, that asked could counties deny data centers based on electricity availability and use.

[00:54:26] Those bills did not even make it out of their prospective committees in each chamber. But to be clear, the head of the Senate, Scott Cereville, said he didn't think that he wanted to have 93 counties with 93 different policies on that issue.

[00:54:44] And that was one of the reasons that it died in committee. So I think we've got to just put it out there and be really clear about when we talk. I do have a couple of questions, though. I was confused

about, so for the THC cells, THC products, did you say there is limits on where they are used or where they are sold?

[00:55:09] That we can have, we, the county government, can put stipulations on where they are used or where they are sold? Not where they are sold. Not where they are sold because we're coming back with a BMI. We've done this already that says that we do not want to allow THC to be sold within a certain distance from elementary school, from schools, not just elementary school, from schools.

[00:55:35] And, well, yeah, well, middle schools are not just, no, not especially high schools, schools, and daycares and things like that. And so, you know, saying where they are used, that doesn't do anything. The question is where are they selling it at and how close they are to a school.

[00:55:53] So we want to make sure that that comes back before, for us, we want to get that in place. Because we do have some rights, I think, to do some local decisions about that. We want to do it before January. Is that correct? Yes, Madam Chair.

[00:56:10] This needs to technically be in place before July 1st of next year. Before July 1st, okay. The staff's working on it. We're establishing uses, some language, which we'll be able to provide. And you can make comments on that. and the uses will be related to zoning areas, and this will be one possibility.

[00:56:28] Okay, how close they are to schools, daycares, and things like that. Okay, thank you. My second question is, take me back to the WMATA discussion, because did I hear you say that money has gone into WMATA for capital or operations?

[00:56:46] Did I hear capital? Is that what you guys said? So WMATA's operating needs were fully funded. The 153 million starting in fiscal year 29, there is an option for funding, this is sort of a sticking point right now with localities, so funding capital needs with a new additional local sales tax, which is up to 1% and also- Would the sales tax be the decision of the local body?

[00:57:15] So I believe the process is, I don't know that, I'm not an expert on how it gets on the ballot, but it would be subject to a voter referendum. But a voter referendum is put on the ballot by the local body.

[00:57:31] I believe there would be a vote from you all on it if you want it there, yes. Okay, so if we didn't want to do the sales tax for capital, it's up to the local body whether to put that on referendum one way or the other. That's what you have as of now?

[00:57:48] I believe so, yes. Okay, Mr. Turner, I mean, Ms. Letourne, you have a little bit more clarity on that one? Well, yeah, so what they did was they essentially gave us a very nice unfunded mandate where they're requiring that we now, all of us, increase our capital funding, which we were all in support of, we knew was a need, but they didn't put any new money in to do it.

[00:58:06] They just simply said, localities are going to have to fund this. And in order to fund it, you can fund it however you want, but we're going to allow you to ask for a referendum if you choose to. Not just Nova counties, but all counties? No, no, just Nova. Just Nova counties. Yeah, within the metro, within the transit zone, they call it.

[00:58:23] So we can put it on a referendum. I don't believe we need to, but that's a different story. There is a renewed effort, and this will be MVT's top legislative priority for the next two years, vice chair this year, to try to amend that language and change it such that it is not simply localities having to either put it on a referendum or come up with it on their own throughout another way.

[00:58:48] Okay. All right. Thank you very much. And let us know, because that should be in all of our ledge packages across NOVA. So that's good. Ms. Bricksman, this is an information item, but you put a motion out on these, I guess two motions on this item.

[00:59:07] Would you like to give your motions, please? Yes, thank you. It's one motion referring to two bills. Thank you. I move that the Board of Supervisors direct staff to prepare and return to the board with proposed ordinances implementing the local authority provided by House Bills 4 and 854 from the 2026 General Assembly regular session.

[00:59:33] I'm sorry, read that one more time, please. I move that the Board of Supervisors direct staff to prepare and return to the board with proposed ordinances implementing the local authority provided by House Bills 4 and 854 from the 2026 General Assembly regular session.

[00:59:52] Okay, let me just ask a point of information. Is there a second to that? That motion will die for lack of a second. Thank you. All right, anything else? No, nothing else? Okay. You guys, thank you very much, and let's get ready for a really fun session next year.

[01:00:11] Yay. Okay, what are we doing now? So we are great on time. We don't have to go to resolutions yet. We may be able to go to an action item.

[01:00:29] All right, closed session. Hold on one second. I do not believe we have any speakers on the CIP item.

[01:00:46] Let me check, because I don't do an item before, unless we, if we have speakers on an item, I don't do that item. But I don't believe I saw any speakers on that item, and so we might be able to do one action on them before and get one done. I do not see any speakers on that item.

[01:01:07] That item is item number 11A. Is staff here for that item, for item number 11A? Are you guys here? You might not be down here yet, because we didn't plan on this this quickly. No, the staff's not here yet. The staff is running down the stairs at full tilt right now, if you're listening to me.

[01:01:27] Okay, that's what's happening? Okay. All right. All right. I'm sorry, Megan. If you can hear me, I'm sorry. I literally think on everything else, we have speakers. Let's do this. Supervisors, if you have appointments or nominations, give me those right now.

[01:01:46] We can give Megan a minute before she full tilts herself downstairs. If you have nominations, Ms. Bricksman. I nominate Amy Uhland to the Environmental Commission as the member of an environmental conservation organization.

[01:02:04] Mr. Kirshner. Yes, I nominate Bill Junga to the NAOP representative on the Zoning Ordinance Committee. And Mr. Umstead. Thank you, Madam Chair. I nominate Melanie Sreevisal to the Community Services Board.

[01:02:26] You took mine. You took mine. Is she yours? No, no, it's fine. We were just going to nominate the same person, but it's fine. It's fine. Evidently, she's a good person, so it's good. Well, if you would like her, I have another one. No, it's fine. Really, it's fine. Okay, okay. It's fine.

[01:02:42] All right. This is a re-nomination, and I may be taking someone else's, but Dori O'Brien to the economic development. Really? You took on all the good ones. I'm sorry. Really? Jeez.

[01:02:58] Okay. That's EDAC. Dori, just, no, I was going to. It was in my heart. Just know that, okay? Just know that. Okay. Thank you, Ben. That's all we have. Actually, it's item, I think, Matt, I think it's item 14D. It's the CIF factor.

[01:03:14] Which one, Maya? Yeah. It's not 11A. It's 14D. CIF is 14D. Yeah. I mean, that's the new mode. Yeah. It's 14D. It's the same. 14D.

[01:03:32] Megan, you are staying here. It's item 14D. The capital intensity factor? Yes. That's the item we're doing? That's the item we're doing. Okay, great. Yes. You guys good? We have the staff here for 11 as well. You guys can go take a breath and go get some water.

[01:03:51] My apologies. It's 14D because there's nobody speaking on that item. But you're good. Happy to be here. 14D. So supervisors, listen, normally what I do in these moments is I go, We make sure that we do the packet motion and walk those through and talk those through.

[01:04:12] But what has happened is since we were last here, even before we were last here, is we've heard from the schools of what they think they're going to need right now. We have had fairly good conversations with the developer community and LCPS.

[01:04:30] And so I think we can actually just go to the motion that Mr. Letourneau has today, which is on your paper in front of you. It's on the green motion paper. And then Mr. Letourneau and I, if you need me to, can talk about this motion a little bit.

[01:04:46] Mr. Letourneau, you'd like to make a motion? Yes, Madam Chair. I move the Board of Supervisors to adopt the 2025 standard capital intensity factors, urban multifamily attached capital intensity factors, and the buy-size differential option as recommended by staff, along with age-restricted and continuing care retirement communities, capital intensity factors, and the roads, capital intensity factors as recommended by the Fiscal Impact Committee as shown in Attachments 257 to the September 1, 2026 Board of Supervisors Business Meeting Action Item, which shall take effect on the date of adoption applying to any legislative applications that have not yet been to a Planning Commission public hearing.

[01:05:20] Second. Mr. Eternal? Well, the first thing is that we're having an issue up on the fifth floor, and all of our lowercase f's are showing up as question marks when you print them out, as you no doubt noted in this motion. I was at an event last night, and Mr. Parker had prepared a memo for me, which had many question marks in it, and so I was very interested in what that was.

[01:05:42] Anyway, this is, hopefully, that is my call to IT to help with whatever is going on up there. Anyway, this is very similar to the previous motion. It has not substantively changed in terms of what we're doing, which is adapting the new capital intensity factors.

[01:06:01] Because the only thing that's changing is the, essentially, we're having another discussion about grandfathering. This is when it should take effect. And so the original staff proposal was very friendly to industry and kind of gave them the maximum so that it didn't take effect until anything.

[01:06:21] And then I kind of went in the other direction and said, you know, anything that's in process, it has to still apply to. This is a compromise, which is a logical compromise, which is if it's gotten to the Planning Commission and they've moved it, then you're locked in.

[01:06:36] And what you've agreed to previously under the old rules are what you should have to do. But if you haven't gotten to a Planning Commission yet, public hearing yet, then you can amend it to, amend

your application to meet the standards that are being updated with this vote.

[01:06:53] So that's really the only change. Otherwise, it's the same discussion. And I remain somewhat skeptical that we will forever not need money for new schools. But I also know that we do this process every couple of years. And so if things change, we can always update this again in the other direction.

[01:07:11] Would you like to actually, because we've had these conversations and we've had them with the staff and the community. The schools is the reason we're here. Would you have to kind of go? - Yeah, so essentially, with the voluntary proffer, the school system has always provided us with their future planning to allow us to understand what new school needs there are in the community, and they have determined that there are now none, that they are not planning on building any new Loudoun County Public Schools, which means we cannot then, in turn, ask a developer to make a contribution for a new school,

[01:07:49] since it is not actually going to be built any further. Now, again, that could change, and so we could go back and reimpose. But I got a question last night about this, actually. A lot of residents don't realize that when new development occurs and it's a rezoning, we have been, in fact, collecting funding from those developers, which then help us fund all of these projects.

[01:08:11] So there's kind of a notion out there that the developers don't pay for anything they do through the proffer system when it is a rezoning. We are now changing the amount we're collecting there to reflect the fact that the school system is saying that there are no new schools that they need to be built, so it will be less. And it's applying now to applications that have been heard by the Planning Commission that have not yet been heard to the Planning Commission.

[01:08:34] Thank you. Thank you. Ms. Bricksman. Thank you. Okay, so in other words, like when we were talking about this earlier today, I hadn't actually read the language. like I think I'm fine with it, but it's basically saying that if you have been to the planning commission, then you are under the old CIF. Okay. If you have not been to the planning commission yet, you will be under the new CIF. Exactly. Okay, great. Yes. I'm happy to support. And

[01:09:07] I will say that I hope that, I mean, a lot of things have changed since 2020 when I first took office, but when I first took office, I was hearing a lot of complaints from our residential developers that the county's fees are making it very difficult to build attainable and more affordable housing. So I'm hopeful that now that they're not going to have these fees, at least as it pertains to the schools, that that savings can be passed on to the potential buyers. Thank you.

[01:09:38] happy to support. Mr. Crony. Thank you, Chair Randall. So I remain concerned about the road CIF. I do think that our right of way and road miles has increased. And so now that we're zeroing out schools, I think that we ought to be increasing the road CIF. And I'm hoping that we can use differing road projects such as interchanges and overpasses when we look at it.

[01:10:12] Again, I know I asked for that during the 2023 update, so I'm hoping that there'll be a consideration to use roads that are really a reality in today's market. You know, we talk about having to do eminent domain all the time because of how expensive our road projects are, and so I do think that we ought to be making them more realistic with today's market.

[01:10:39] Thank you. Okay. Mr. Turner. Thank you, Madam Chair. I'm going to cheat here because I'm still getting used to the new system and because there were so many attachments to this. Generally

speaking, as the CI, and first of all, for the purpose of our constituents, the CIF is a voluntary proffer, ultimately, correct?

[01:11:01] Yes. So these are recommended, and the builders have stepped up in the past, and this is what we recommend based on pretty detailed analysis of exactly what the per capita cost per unit is of the various infrastructure needs for the county with each house that's built.

[01:11:20] Is it fair to generally say that the capital intensity factors decreased over the last set that we were using? Yes. That's what I thought. I mean, that was the impression I got, that generally they have gone down, which is favorable to developers.

[01:11:37] Because the schools have been zeroed out. Other components of it have increased, but overall it's decreased because the schools have been zeroed out. Okay, got it. All right, thank you. So I just want to say, with all due respect to my colleague and friend, Mr. Crony, first of all, these are voluntary proffers, right?

[01:11:57] So we can't say we're going to increase this or increase that because it's voluntary proffers. That's the first thing. Secondly, as Ms. Burke just said, some other costs, they've already gone up because the schools have zeroed out.

[01:12:12] And so we don't even know what that's going to look like yet or be yet. So I want to be really careful because I will say that as we've been working through this, the development community has been, they've talked to Ms. Attorney, they've talked to me, they've been very, we've been very communicative.

[01:12:28] And it hasn't at all been, we refuse to pay or we don't want to pay. They have been very willing to have these conversations. And I will also say that, you know, to what Mr. Letourneau said, I don't know that we're going to, how many more schools we might build.

[01:12:50] However, we do need to have money aside for many schools that might need refreshing. And there are some, I mean, like we're building a new high school. a new Parkfield High School right now. So there are times when we actually might build a new school, and we have schools now that are coming up on, I don't know, 30 years old or something, so they might be refreshed.

[01:13:13] And so we know that there will be some funds for that as well. So when we say, yes, zeroed out, that doesn't mean that – I don't want people to think that if your school needs a new fill-in-the-blank locker room or whatever, we will not be able to do that.

[01:13:29] We will. So I just want to be real careful with the language. Is that there? Yes. And what I would also say is schools, LCPS has said they will not be building any new schools that are enrollment driven. So capacity based, but based on redistricting or boundary lines or specialty magnet schools, that statement was based on enrollment.

[01:13:55] Well, I mean, we know for sure that Lockett Elementary needs a new school. They have needed a new school for a long time. And we did some refurbishing, and we've kind of added some things on to it. But we do know that there are some places that actually will need a new school.

[01:14:11] It's just that we were building, you know, we've been in high school a year for a long time. We really were. We were building two elementary schools, one middle school and one high school. We did that straight for 10 years. We are not doing that anymore. Largely because Loudon is getting built out, too, and population's getting older, and enrollment is not what it used to be for quite a few different reasons.

[01:14:36] And so the speed of which we were building the schools because of new enrollment just will not be there anymore. So, all right, Mr. Letourneau, thank you for all the work that you've done. And if you can hear me, Mr. Capretti, thank you for the work you've done in this issue as well in the conversations we've had.

[01:14:53] Mr. LeTron made the motion by seconded. All the people who say aye. Aye. Any opposed? That motion will pass 801. Mr. Sainz should be here pretty soon. Okay, let me check one more time because I might go back to 11A.

[01:15:12] I don't see any speakers on the budget development item. Give me a second. Madam Chair, that's correct. That is correct. There are no speakers on that item.

[01:15:28] you guys slowly and not rushing already in this time but come on back down and let's uh let's knock this one out too and then by the time we finish with this one we'll be ready to go into resolutions thank you for coming back down we appreciate it this item supervisors is item yes uh 11a do you have any type of presentation for this item we do not you do not okay um let me get to it just a second all right nothing no updates no anything no this had just been an information item on the finance committee agenda but a motion was passed um by the finance committee so it's

[01:16:08] here for full board action yeah i'm trying to find okay so i'm just going to make um make this motion um uh right now i move the recognition of the finance operations and economic development committee that the board's advisors direct staff to include conversations and considerations regarding locating one remaining regional park called for in the FY 2029 through FY 2040 capital needs assessment south of Route 50 as part of the future budget development process.

[01:16:40] I'm going to give that to Mr. Crony because it's her area. I'm going to give that to Ms. Crony. I don't really have an opening on this. Listen, all the park space we can squeeze in here, great. Let's get all the park space. We have really good parks in Loudoun County, and all the more that we can have here is wonderful.

[01:17:00] And all this says is we're going to consider it for in future budgets. Mr. Coney, do you have anything else? Yeah, I just want to say we had a supervisor attorney and I had a town hall last night in this area, and people are very excited about the potential for another Hanson Park south of Route 50.

[01:17:21] This area has experienced substantial growth, and parks and recreational facilities have really not kept up pace. So they were talking about already some features, like another area for events, like weddings and, of course, cricket fields.

[01:17:40] So I look forward to working with staff to try and find a 200-plus acre park south of Route 50. Thank you. Thank you. Mr. Kirshner. Thank you, Madam Chair. The only—I wasn't able to be part of the finance discussion here, but I know in the item itself you talked somewhat about looking for guidance for town projects.

[01:18:03] I think that's a great question that should be asked, and I know we kind of prioritize the wastewater and water projects given high importance of those, and I know that myself, Chair Randall, and Mr. Hemstreet are working on some things along with the county administration on that with Colt.

[01:18:20] Has this kind of question of how you would like us to prioritize your projects been broached with the towns or with Colt or any of those? And if not, then I would suggest that maybe, obviously, we all

have opinions up here, but maybe that would be a really good, I guess, player in this process.

[01:18:37] Obviously, they are county residents. They do have different needs. They do serve county residents, although there are also town residents, and I think maybe their input on that would be incredibly helpful. Colt's input? Yes. That's good feedback. I don't think we've ever engaged Colt in the budget development process.

[01:18:54] We have met with all town staff, if not most of them, this summer to discuss with them the CIP process. This is, of course, an amendment year, so we have requests from last year that may or may not have gotten funded. So we're working with the towns actively right now.

[01:19:11] Yeah, and I think it's always kind of been a piecemeal process. I mean, I've been pretty involved in pushing certain items for towns that I see are important. And given that five towns are in my district of the seven, I think it might be a really good idea to kind of get cold together and say, hey, you're always in this project.

[01:19:28] Why don't you guys work on a methodology of how you would like to review our project? That way, they're then kind of discussing it, and they can perhaps bring a methodology or at least a framework to us, potentially, with the help of staff. I just think that might be... At least it should be broached, at least with the mayors.

[01:19:44] I think that's helpful feedback. would that be something that we would be able to incorporate into our next full six-year process for FY29? Potentially, yeah. Okay. I mean, yeah. All right, stuff we'll work on. All right, thank you. So, Mr. Kirsten, help me out here.

[01:20:01] I have no, listen, I think we should be working on our towns all the time. Are you saying that as part of the budget development process, we should be working with code? Well, on their request. So, in other words, one of the aspects of this item, Madam Chair, was that basically staff asked how should we handle town requests that don't meet certain categories that we generally are willing to help fund because we do get a lot of different requests from the towns for different projects.

[01:20:27] And it's always kind of one, maybe, oh, this is a small one, so this takes precedent, this is important, and staff, I think, doesn't like to be left in the middle as to trying to make those decisions because we obviously don't have an unlimited budget, so there's limits to it. And so perhaps, you know, Colt can talk about the things that are important to them to prioritize so that when we choose to prioritize something, we kind of know what their preferred methodology is.

[01:20:53] Yeah, I don't, that's a tough discussion because, for the budget development process. And I'd like to have this discussion with you a little more. Absolutely, we can have it offline. And Mr. Crony a little more. Only because, you know, when we talk about, quote, Western Loudoun County, you know, Some people think it's all kind of just one big, well, you know, when you really get to know the western part of the county, Middleburg is very, very different from Lovettsville.

[01:21:19] And, I mean, they're very different places. And so a budget development item for Middleburg would look very different than a budget development item for Lovettsville, which would look really different than a budget development item for Hillsboro, which I think has like 211 people in it.

[01:21:35] So, like literally, no, I'm not kidding, like literally. And so I think a budget development question maybe is not so much what does each town need because I don't want to, I would really not like to

see the towns kind of fighting against each other to get any funds.

[01:21:53] Sometimes that's the way it feels now. But it's more like is there, you know, like is there, you know, because we already, we do, and I think we should, a significant amount of money to our towns, and that's not an issue. But is there some type of, you know, overall number that we're looking for that Colt would know how to divide?

[01:22:13] I just want to be really careful that, you know, because Round Hill may have a harder time and Hillsborough may have a harder time making their case than a Leedsburg or a Percival because just of staff and things like that. So I just want to make sure we, if we're going to do this, it's done in the, to be honest, I don't like the word fair because we're not trying to be unfair to anybody.

[01:22:38] But, you know, that's a lot to unpack, putting the towns as part of the budget development item. But I think it's something that you and I, the advisor to the Crony, Mr. Hemstree, Ms. Burke, I think it's something to consider. All right. I made the motion.

[01:22:54] The motion was seconded by Mr. Crony. All in favor, please say aye. Aye. Any opposed? That motion will pass 801. If you all would give me just a quick second, please.

[01:23:22] Everyone's here? Okay. All right. We're back. That's Jason. He graduated college a couple of weeks, months ago. He was the first person in his family to graduate college. I'm so proud of Jason. Okay, so we actually, we're about 15 minutes early, but we do know that we have some full groups of people here for resolutions.

[01:23:46] And so if people are here and they don't mind, without objection from the board, if we don't mind starting a little early on the resolutions, we can do that. Let me ask, and if not, that's fine. We can just circle back around. So let me ask for the people who are here for the resolution for Hunger Action Month.

[01:24:11] I see Ms. Montgomery. Is everybody here from your staff who's coming? Are we waiting for more? We're good? I think we're good. Okay, let's go ahead and do that. And then we will go on.

[01:24:26] Mr. Sains is not here for his yet. Ms. Glass, are people here for Resolution for Sickle Cell Awareness? Are they here? Maybe not. Okay, well, let's do the one we're doing, and then we'll go from there, okay?

[01:24:44] So, Ms. Bricksman, would you please join me down front?

[01:26:23] Good afternoon. Thank you, everyone, for coming today.

[01:26:38] It's my honor to carry this proclamation and read it. Loudoun County, Virginia, Proclamation, Whereas Hunger Action Month, established by Feeding America in 2008, is an annual nationwide month of action to spread awareness and inspire everyone to join the movement to end hunger.

[01:26:56] And whereas the rising cost of living, driven by escalating prices for housing, health care, utilities, and daily necessities, continues to place severe financial strain on residents and working families across our community, and whereas hunger and poverty are issues of vital concern in Loudoun County, where an estimated 8.1 residents struggle with hunger and almost one in four households live paycheck to paycheck, often choosing between paying bills and buying groceries.

[01:27:25] And whereas Loudoun County remains committed to combating hunger in every part of our community by raising awareness, addressing food insecurity in partnership with the community, hunger

relief organizations, and encouraging citizens to join the movement to end hunger during Hunger Action Month by donating, volunteering, or organizing food and fund drives.

[01:27:46] Now, therefore, be it resolved that in concert with nationwide efforts to highlight the problem of hunger in the United States, the Loudoun County Board of Supervisors does hereby designate September 2026 as Hunger Action Month in Loudoun County. So I have spent some time helping sort and distribute foods and other items with, I think, several of the organizations here, if not all of you.

[01:28:16] So I'll just say personally for Algonquian and Sterling areas, we really, really appreciate all of your hard work and really glad to be recognizing you. Would you like to say a few words? I just want to thank the organizations that are in the room with us.

[01:28:36] And we have quite the network of organizations that serve our community and provide food to people. And I want everyone to know that there are a lot of options that are available. We have a website called loudonfeeds.org, and I really encourage you to visit that and also to share that with your networks and with anybody that you know because you can see in real time every day where food is in the county, where it is available.

[01:29:05] So I just want to share, you know, we have representation today from our schools from... You want me to do that? Okay. This is the Loud and Hunger end down here. What are we doing? Saying your name and your organization.

[01:29:20] I'm Mickey McMahon. I'm with the Dulles South Food Pantry. Mignon Olusko with Cornerstones. Courtney Soria with Loud and Education Foundation. Kirsten Shelsmith with Loud and Education Foundation. Susanna Lee with Tree of Life.

[01:29:40] Erica Huddleston, Loud and Hunger Relief, and the Loud and Food Purvader Group. I'm Joseph Catarat. I'm here with Mobile Hope. I'm Jones Paris. I'm here with America's Soup Kitchen. I'm here with America's Soup Kitchen. Hi, this is Rohit Chawan from Manasuda Community Kitchens.

[01:29:58] I just thought that was really important because this need is, unfortunately, countywide. We see it countywide, and countywide, it is served countywide. And I will say that if you ever watch the network in Loudoun County, you all do such a good job of sharing resources, sharing information, sharing hope, all those things that you all do together.

[01:30:22] And so I just want to make sure everyone who's represented here, they were all stated and they were all set. So does anyone else want to say something? No? Can I share one more? You can, Ms. Matt. Yeah, sorry. I'm Jennifer McEmming with Loud and Hunger Relief.

[01:30:38] I do want to share that every single person in this room that is a service provider has seen an increase in need. At Loud and Hunger Relief, our numbers went up by our families that visited us went up by 24%. and we just finished our fiscal year-end numbers.

[01:30:54] We distributed more food at Loud and Hunger Relief this past fiscal year than we did in 2021, which was really the height of the pandemic. So just to give you sort of a framework and a reference of what we're seeing. So I just would encourage everyone to remember our neighbors, to remember that hunger might not look like what you think it looks like.

[01:31:15] It looks like everybody's sitting in this room, and to please help us take action and help our neighbors in Loudoun. Thank you. - Okay, I will tuck the rest of these for you guys later, but if you could

just hold up a couple of them, that would be great. Thank you.

[01:32:20] Ms.

[01:32:51] Glass, will you join me down? And if everyone is here for Sickle Cell Awareness, will they all come down, please? Thank you for coming in.

[01:33:13] We have more than once. And it's time for me to come again, actually. This is a really important subject. Thank you. Am I reading this?

[01:33:35] I know. You want to stand here? In which way? Correct. With rich. Yeah. Yes. Whereas sickle cell disease is the most commonly inherited blood disorder in the United States, affecting approximately 100,000 Americans, and is a lifelong genetic condition that causes red blood cells to become rigid and sickle-shaped, restricting blood flow, and leading to severe pain episodes,

[01:34:14] organ damage, stroke, the increased risk of infection, and other life-threatening complications. And whereas advances in newborn screening, comprehensive medical care, disease-modifying therapies, gene therapy, and ongoing research continue to improve outcomes and offer hope for individuals living with sickle cell disease.

[01:34:39] And whereas sickle cell disease affects individuals of many racial and ethnic backgrounds, including people of African, Hispanic, Mediterranean, Middle Eastern, South Asian, and Caribbean ancestry, demonstrating the importance of awareness across all communities, and whereas Loudoun County is one of the most diverse communities in Virginia and recognizes the importance of increasing awareness of sickle cell disease, promoting early screening and education, supporting equitable access to quality healthcare, and fostering community partnerships

[01:35:17] that improve the lives of affected individuals and their families. And whereas National Sickle Cell Awareness Month provides an opportunity to recognize the courage and resilience of individuals living with sickle cell disease, honor their families, caregivers, healthcare professionals, researchers, and advocates such as the Heart of Gold Sickle Cell Foundation of North Virginia, which has supported families in Loudoun through its American Red Cross blood drives, previously hosted to the Claude Moore Recreation and Community Center, and maintains a strong partnership

[01:35:55] with the Nova Health Systems and Blood Donor Services. Now therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 2026 as Sickle Cell Awareness Month in Loudoun County and encourages all residents to join in raising the awareness of sickle cell disease.

[01:36:23] - I just wanna say one thing. One of the statistics says that one in 13 African Americans has the sickle cell trait and I'm one of those people. so if you become married and your spouse has the trait also, that your children may get the sickle cell disease.

[01:36:51] So I was fortunate for my husband not to have it, but it's important that folks know if you have that trait in your family. So I will pass it along and let the experts speak.

[01:37:07] Thank you, Supervisor Glass, Madam Chair, and the rest of the board. We are honored to stand here today to increase awareness and education in Loudoun County and through the Commonwealth of Virginia for sickle cell disease and sickle cell trait.

[01:37:24] Many of you may remember that last year, Secretary of the Commonwealth, Candidate Mundine-King, lost her 15-year-old daughter to sickle cell disease complications. And so the Queen-Kansas Act was passed to increase awareness throughout the medical community.

[01:37:44] And we're proud to stand here today with Dr. Grace Sessi from Blood Donor Services. And I think we were expecting some folks from the Loudoun County Alumni Chapter of Delta Sigma Theta. Please come up and join us, one of our other community partners.

[01:38:02] But sickle cell disease awareness is important for all citizens. And we hope that you continue to support efforts throughout Loudoun County and Virginia through blood donations and just supporting people in general.

[01:38:18] And through these community collaborations, we think we can make a difference. So first of all, I know Candy King is a very, very good friend and soror of ours. And when Candace passed away, it was more sudden than any of us expected and just so terrible.

[01:38:42] I also have people who have sickle cell or sickle cell trait in my family as well. And it's a very painful disease. And it's a disease where you have to be very, very careful to not get overheated. There's just so many things you can't. But it's interesting because it's one of these diseases that people just don't know about.

[01:39:01] And because they don't know about it, you know, it's really important to do just this awareness. I'm so proud to be standing with members of my sorority, Delta Sigma Theta Sorority, as we have these discussions and make sure that the awareness and the care is there.

[01:39:20] One of the oldest living people who had sickle cell was a woman named Gloria Henderson. She actually lived in Denver, Colorado, which is not the best place to live with sickle cell because of the high altitude. Gloria Henderson was in her mid 40s when she passed away.

[01:39:41] But you know, mid 40s doesn't sound very old at all, which tells you how often this disease can take somebody and how young that they may leave us. And so, would either you like to say something or the doctor, no?

[01:40:01] - No, we just, Trefilia Parker, President of the Loudoun County Alumni Chapter Delta Sigma Theta Sorority Incorporated, Just thank you again for the opportunity to support. We absolutely stand with you in advocacy and education here in our Loudoun County community. My family has been impacted by sickle cell and our chapter is educating ourselves and our community not only on the disease but the biases for individuals who are seeking treatment, especially young people.

[01:40:33] Just here in the state of Virginia, our social action, State coordinator shares some stories just of her college-aid student daughter and just the care that she tries to seek when she's in crisis and how sometimes she's treated and how she has to present herself when she's going to the doctor, to the emergency room, how her mother has to coach her and how to present herself so she's not treated a certain way.

[01:40:57] So I've been educated, and our chapter has been educated. And so thank you for your advocacy and your education. Thank you, Chairman Randall and Supervisor Glass and all the other county supervisors for allowing us to be here to proclaim this a sickle cell month.

[01:41:17] And I want to thank Dr. Randall, Chairman Randall, who has visited Innova Blood Donor Services a couple of times. She's been very supportive of the need to donate blood and support this patient population. So I'm Dr. Ceci. I'm the medical director of Innova Blood Donor Services.

[01:41:35] And I see this firsthand because I also practice at Inova Fairfax Hospital where we see a lot of patients undergo red cell exchange where their sickled red blood cells are replaced with normal red blood cells containing normal oxygen.

[01:41:51] And so I see the difficulties they go through, the difficulties of finding the right unit of blood. So please, we encourage you to please donate blood to support this patient population. And again, I'm very fortunate to work at Inova because we have a sickle cell center that is amazing.

[01:42:12] And in fact, we're celebrating the Sickle Cell Awareness Month on September 8th. Please come and join us, the families will be there. They will be talking about their experiences, testimonies, there's going to be dancing, there's going to be food.

[01:42:27] It starts at four o'clock. So please come and join us. But again, thank you so much. Right up there. Right there.

[01:42:52] What are you going to put? I forget what. That's good.

[01:43:39] That's approval. Oh, was it? Yeah. Signed on to this one and the prostrate. So then all we have left is my two? Good day or something. And then find a good day and then close my permission.

[01:43:56] Close my permission. Yeah. I need my. Would everyone who is here for Find a Good Day come down, please?

[01:44:24] How are you? Hi, how are you doing? How are you? How are you? Okay, you guys ready?

[01:44:42] You guys ready? You guys ready? Yes. You all ready? Are we ready, colleagues? Yes. We're ready. Yes. We are ready.

[01:44:58] Sitting down. Thank you. Because we are excited to have a proclamation for Find the Good Day. I love this so much. Okay, it's the Junior League. The Junior League of Northern Virginia is dedicated to promoting volunteerism, empowering women, and enhancing communities through effective leadership and action.

[01:45:18] And whereas Find the Good Day, observed on September 17, 2026, encourages individuals to recognize and celebrate the positive aspects of their communities and to take action to uplift others and whereas on this day we acknowledge the importance of kindness, compassion, and community service in fostering positive change and building stronger, more resilient communities and whereas the Junior League of Northern Virginia continue to play a pivotal role in advocating for significant community initiatives and empowering individuals to make a lasting impact.

[01:45:54] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim September 17, 2026 as Find the Good Day in Loudoun County and encourages all citizens to participate in acts of kindness, volunteerism, and community service. I love this. I love this so much where you just have a day where you're gonna be positive, happy, grateful, and do something for somebody else. Who wants

[01:46:26] to speak. Thank you. Thank you so much, Chair Randall and the Board of Supervisors. Find a Good Day serves as a reminder that acts of goodness can occur every day, that together we can make a lasting impact on the lives of many. So we invite you to join us on September 17th

[01:46:56] To make a difference on this significant day through good deeds, volunteer initiatives, or spreading positivity through kind gestures. Every contribution makes a difference in our community.

[01:47:15] That's wonderful. Thank you. Okay, here you go. I love this. Thank you. We're going to take the best picture ever. Are you calling? Yes. Yes. Ever? Ever.

[01:47:37] Mr. Turner, you're staying down here with me.

[01:48:05] And the last proclamation we have is a tough one today because it's a proclamation for suicidal awareness and prevention. Would people here for... All right, there you are, Susie. Would you guys come down, please, for suicidal awareness and prevention? Oh, hey.

[01:48:31] How's it going? Good to see you. Absolutely. Hey, Susie, how are you? I'm very good. I am very good, very good. Hi. How are you? Jessica, nice to meet you. Hi, Brooke. You want to stand by me, Jessica?

[01:48:47] Okay. I'm always so asleep by you. I really am. I'm always so asleep by you. I do know who Jessica is. Would you like to stand by me or do you find where you are? Okay. Sure. All right. We have a proclamation for Suicide Awareness and Prevention Month.

[01:49:06] And if you all want to talk afterwards, you can. You certainly don't have to. But I do appreciate you being here because you never know when you're safe. somebody else's life away whereas you suicide is the second leading cause of death among young people ages 10 to 24 and in virginia rates of suicidal thoughts and behaviors remain disproportionately high among girls with 68 to 74 percent of non-fatal self-harm er business

[01:49:40] and hospitalizations and 71 percent of youth suicides are completed by males and whereas Whereas Virginia ranks 32nd among state level rankings for youth mental health, while white young people have historically represented higher overall numbers of suicide, recent data highlights a sharp rise among blacks, LGBTQ+ youth, and across the commonwealth.

[01:50:08] And whereas in Loudoun, emergency room visits for self-harm among 9 to 19-year-olds increased by 20% in 2020 and 2023, with slight improvements in 2024, 25, and 26 data from January to July showed a 28% increase compared to that same period in 2025, whereas 75% of Loudoun students report difficulty managing stress. 75% of our students are reporting difficulty managing stress.

[01:50:47] 62% struggle with anxiety, and 58% report depressive thoughts or behaviors. 14% report suicidal thoughts in the past 12 months. In a recent study, over a two-week period, 21% experience frequent sadness or hopelessness, and 13.5% reported symptoms of depression.

[01:51:14] And whereas progress has been made towards supporting mental health in Virginia, Loudoun County ranks lower than the Commonwealth, with one provider per 440 residents compared to Virginia's average of 320 to 1 and the national average of 290 to 1.

[01:51:31] And, whereas Loudoun County partners with nonprofits like the Ryan Bartell Foundation, Friends of Loudoun Mental Health, who are committed to providing resources and support to mental health to prevent further suicides. Now, therefore, be it resolved that the Loudoun County Board of

Supervisors does proclaim September 2026 as Suicide Awareness and Prevention Month in Loudoun County and promotes greater awareness in the prevention of suicide.

[01:52:08] So, as I said earlier, so many people think that suicide is just an act of feeling sad or depressed. Suicide is actually more of an act of feeling hopeless. And I do think that there are so many things right now that young people deal with that I didn't have to deal with.

[01:52:27] Social media is a very double-edged sword and can provide positives, but can also leave a child to feel very isolated. And very hopeless that they can, when a child sees somebody online, what they're comparing is how they feel inside to what somebody else looks like on their outside.

[01:52:50] And that comparison can never be made. And because that child is 13, 14, 15 years old, they don't know that what they're looking at is not real. They don't know that. And so it's easier for them to feel hopeless. A lot of kids, when they are committing suicide, it's not as final to them.

[01:53:10] They don't always know this is it. I've heard kids say before, I'm going to do this and I'm going to watch my parents. They're going to be really upset. I'm like, no, baby, you're not going to watch your parents. And so the finality of life is not as clear for a child as it is for somebody who is a fully grown adult.

[01:53:29] When I say fully grown adult, I mean 26, 27 years old where your frontal cortex fully develops. We do say that people 18 are adults. People 18 are legal. Their brains have not fully developed.

[01:53:45] They're not fully adults yet. These numbers are heartbreaking and sad and stark. And as a community, as humanity, we've got to do better. Would you like to say something, Susie?

[01:54:04] First of all, thank you so much for having us here today, Chair Randall. So we represent the Ryan Bartell Foundation, and this is one of our FOTA ambassadors.

[01:54:20] We believe very strongly that peer-to-peer support is essential for mental health and suicide prevention and that's why we run a group with annually for about 30 to 45 Fort ambassadors and Brooke is here as a representative of that group and we run programs that are really designed to stop a crisis because upstream prevention is what really matters if you can build resiliency skills and the skills that really prevent somebody from spiraling into a crisis situation then they will probably

[01:54:59] never get to that point and therefore we should see a reduction in suicide um 2026 numbers are alarming us because they had declined after covid now in 2026 they are now on the increase again including self-harm attempts and I wanted to invite Jessica who I don't know if I'm are you okay fine okay so Jessica is the mother of probably our youngest that we've lost in this county

[01:55:37] she lost her daughter who was 10 in June of this year so we stand here with her dedicated making sure this doesn't continue happening yes my daughter was 10 years old when she took her life June 1st she didn't know what she was doing through

[01:56:13] the letters we saw but unfortunately once they hit crisis like Susie said it's really hard to pull them out of it unfortunately right now the resources aren't there for the younger kids we had done hospitalization we had done partial hospitalization we had her in therapy and the end she was even doing nine hours of therapy a week through Charlie Health and unfortunately it wasn't enough so now we are working to with Susie and even Loudoun County Public Schools to try and get the awareness that just because they're young they're

[01:56:51] not so innocent anymore unfortunately and unfortunately like chairman said social media is that double its sword the kids if they have questions they're not coming to the parents they're not going to the teachers anymore they're just going straight to social media and googling it and trying to get the answers themselves without bothering anybody and unfortunately that's where my daughter really struggled was because she instead of talking to

[01:57:24] us or talking to anybody else she was googling everything. So we found a lot of information through the detectives about her status and everything that we were completely unaware of by things that they found on her tablet. So like I said she she was almost 11. She was 54 days away from her birthday and when she took her life and these kids it's happening younger and younger and people just need to be aware that the elementary school kids aren't protected

[01:58:02] from suicide it can happen at any age so just as a sort of conclusion to this one one of the things that we hear all the time in the community and we get reports from a coy I know the Board of Supervisors gets these two that there is a dire need for spaces for young people outside of school and outside of the home and it's not just for recreation.

[01:58:31] It is to deal with all of these mental health issues, the anxiety, the stress and the ability just to let the hair down. We are actually now, we've been working for about two years to try and create our own space in order to address this and I'm glad to say that we are going to be opening our new space early 2027 so it's been a long journey for us very long journey since 2015 but we're gonna get that first of all that's amazing and

[01:59:08] you're Susie you know you know you know there is a book that I always encourage people to read. It's called The Anxious Generation by a man named Dr. Jonathan Haidt, and what he talks about is the impact of social media on young people and why and how we are seeing more anxiety in our kids and kids today than we've ever seen before, and so if you've never picked up that book and read it, it would be really helpful. Also, on September 19th, we are opening the Crisis Receiving Center in Loudoun County. I already have you down. I think it's my special guest to be there.

[01:59:47] We're open this crisis receiving center in Loudoun County because when people are in crisis, jail is not the right place for them. A hospital waiting room is not the right place for them. They have to go somewhere where there are people who are professionals who understand what's going on and who can help them move through their crisis into a better place. And so that will be done on the 19th of September so thank you for coming thank you so much and and on behalf of the county I am

[02:00:19] so sorry for your loss and we stand with you.

[02:02:56] Okay we are about eight minutes from when we're supposed to start public comment but what I will do is I'll start down the list of people because I think our first two comments are actually online and if you're not here I will revisit your name, well, not that you're hearing me if you're not here, but I revisit the names of the people who are not here at six o'clock, and so if they're not here right now, I will absolutely go back to them. But let me just do a couple of different things. So for public comment, I'm going to go

[02:03:32] in order. So even if you're doing it remote, I'm going to call you in the order that you have signed up. When you come to the podium, when I call your name, please come to the podium closest to you. The timer on the podium will tell you how much time you have left to speak. Please direct your

comments to the board, because you're here to speak to the board, so I'd appreciate you to direct your comments to the board. When your time on the podium has expired, please relinquish the podium to the next speaker. If you're giving your comments virtually and you cannot see the timer

[02:04:09] in your room, I'm sorry, if you're giving your comments by phone, you cannot see the timer in the room, I'm going to ask you to time yourself because I won't stop you when you get to one minute and 30 seconds because it throws you all off, but I will stop you when you get to two minutes. We only do public comments for 90 minutes and so I will get all the people in that we can get in in 90 minutes, but I will also say that we have more speakers. We have a fairly long waiting list today, and so it is possible that, depending on where you are in the waiting list, we may not

[02:04:41] get to you because we're only going to do 90 minutes of public speaking. And so, again, I will go to other people, are the first two people on the phone? The first two people are Paul Serrano and Kim Fulmer. Are they on the line for us? Not yet. I have Kim and Paul. I'm sorry. I have Paul here ready to speak. Okay, we're ready when he is. Thank you. Chair Randall, thank you. I'm Paul

[02:05:18] Serrano, a 14-year resident of Ashburn District. I've testified about data centers before and I'll repeat one item. I live across the street from a data center, particularly the data facility on Ashburn Village Boulevard. It is silent. It is a good neighbor. And to extend one of my previous remarks, I drive far more frequently adjacent to the cloud HQ data centers. Try as I might, I can't hear any noise there nearly as loud as the drone of airplanes coming in and out of

[02:05:55] Dulles Airport at low altitude. But the reality of what I see and hear pales in comparison. with the moral panic that's gripped the public. I've experienced many such waves of cascading fears in my lifetime, and I'm confident to say that they lead to bad public policy.

[02:06:16] I have been impressed by the work of certain supervisors to address the complex issues that have arisen, the balance of the needs and concerns with solutions that are at least sensible and many times innovative.

[02:06:34] But the simplistic notions to be brought before the board tonight are completely dangerous. It would take more than I have to address the red lines that have been offered on this issue. I will just say that there is little that gets me more angry than seeing official actions reach through careful deliberation, promises made to our citizens, reneged on by government when it is expedient.

[02:07:01] The picture we're left with is not accountable government, but merely political grandstanding, and it's grating to see it come from someone who has been disciplined for failure of leadership by her peers. Chair Randall, I think my time is up.

[02:07:20] Yeah, your time is up. Thank you so much. If Ms. Fulmer is not on, I will come back to her if she's not on yet, because it's not 6 o'clock yet, and so it's a little early to be calling, so I'll wrap back around when it is 6 o'clock for her. But then I'll go on, and I'll try to call names like three people in advance so that you know you are next. The next speaker will be Michelle Juergens, followed by R.J. Hall, followed by John Ellis. Good evening, ma'am. Good evening. Good evening, chair, members

[02:07:58] of the board and county staff. My name is Michelle Juergens, and I'm a resident around the former Washington, Virginia University Science and Technology campus community in Ashburn and founding member of the Community Coalition Against Bridgefield.

[02:08:16] I am here tonight to respectfully urge the board to end the 2025 data centre grandfathering exceptions. Regardless of one person's position on data centres, our community deserves transparency and meaningful public engagement when projects of such scale are proposed.

[02:08:37] Decisions that directly affect the quality of life of residents, the increased consumption of public resources, traffic, noise levels, viewsheds, energy infrastructure and the long-term character of our county should not be made through a purely administrative process without limited public input.

[02:09:00] Our community is not opposed to growth or responsible development. We support development that is compatible with and respectful of the surrounding environment and existing neighbourhoods. What we oppose is the placement of industrial-scale data centres immediately adjacent to residential communities.

[02:09:21] The Community Coalition against Bridgefield respectfully asks the Board of Supervisors to adopt the proposed amendment to the 2025 grandfathering resolution, providing that, upon its adoption, the resolution shall no longer apply to any pending administrative applications for data centres.

[02:09:41] This issue extends beyond any single project. It is about public trust, transparent governance, and ensuring decisions with significant and lasting impacts on Loudoun County receive the level of public review and scrutiny they deserve.

[02:09:58] Thank you for your time and consideration. Thank you. Ma'am, could you just hold one second? So when you look at your clock, what time does it say? Two minutes. It says two minutes. Yeah. Because over here for us, it's been stuck on 18 seconds. I'm sorry if I went over.

[02:10:15] No, no, you're fine. I just want to make sure people know how much time they actually have. So if that can be... It was ticking down. It was ticking down. You were fine. Okay. Yeah. Okay. Thank you so much. No problem. I appreciate that. R.J. Hall, followed by John Ellis, followed by J.W. John Glass.

[02:10:31] Good evening, sir. Good evening. Thank you very much, board. I am R.J. Hall. I live in the Paxton subdivision of the town of Leesburg in the Leesburg District. Supervisor Onsad, you will indeed be missed. I'm glad we have you at least through 2027.

[02:10:50] After you become bored in retirement, please consider a return term as mayor again. I'm here to voice my opinion on Agenda Item 14H, which pertains to consideration of amending or repealing the 2025 Data Center Grandfathering Resolution.

[02:11:08] The county needs to honor its commitments to data centers in the pipeline. Otherwise, it will be regarded by the business community as unreliable, untrustworthy, duplicitous, inconsistent, double-minded, and dishonorable. I could pick up a thesaurus and list many more descriptors, but you get the point.

[02:11:27] At the end of the day, the county will be nothing other than a liar if it refuses to honor its previous implied or explicit commitments. If Loudoun County is seeking to attract other businesses into the county, then not honoring previous commitments to existing businesses in the county will be counterproductive towards achieving that goal.

[02:11:49] In closing, I would also like to assert that the sentiments currently being voiced in Loudoun County against data centers are nothing short of bombastic, hyperbolic, self-destructive, and nihilistic.

One supervisor is allegedly basing her entire chairmanship campaign platform on an anti-data center stance.

[02:12:11] Well, that along with a plank of anti-Semitism. But that is the subject of a different discussion. Thank you. Thank you, sir. Is Ms. Fulmer, I'm going to go back to her real quick because it's past 6 o'clock. Is she on the line? She is ready to speak. Okay, she is ready to speak.

[02:12:27] Ms. Kim Fulmer, we're ready to hear you, ma'am. Hi, I'm Kim Fulmer from the University Center neighborhood on the GW campus that was recently sold to Amazon for development of data centers. The sale happened in late February of this year and I experienced daily stress and uncertainty because of the greed of so many. My oldest son started kindergarten last month. I have two young boys and every day I worry about what these data

[02:13:01] centers are going to do to our health. Will my boys get cancer from the radiation? Will they get asthma from the diesel generators? Will they get insomnia and headaches from the constant noise?

[02:13:18] And will they be angry with me decades from now for not selling our townhouse and getting far away from Ashburn? You must vote in favor of the amendment to the 2025 data center grandfathering resolution and do everything you can to prevent these data centers from being built. You have to put yourself in my shoes. What would you do if a data center was being built right next to your house, Chair Randall? You would make sure the local politicians were doing everything possible

[02:13:51] to fight it. You have 35 more seconds, ma'am. Are you good? Oh, yeah. Yes, ma'am. Yeah, that's that's what I had to say. Okay, thank you. And I'm glad I was able to say that after the thank you so much for me appreciate it John Ellis followed by JW glass good evening mr. Ellis I wish I could do that I actually want to speak to two agenda items tonight I'm John Ellis I'm from the Catoctin district and I'm speaking for

[02:14:28] Savera Loudon the first one is item totally on your agenda is relates to the environmental commission report and just to remind that in it it reminds that the the environmental commission recommended in March that we that the board established an oversight technical committee and a program to monitor groundwater and we very strongly urge you to do that as quickly as possible given the concerns that we have about declining water tables in in Western in Loudoun. Also, we know that the information that's currently available on the county website

[02:15:06] is out of date, and there appears to be no data reported recently, so it would be really good to get that up to date and to have a robust program of monitoring what's actually happening in our area. Secondly, on the data center grandfathering issue, item 14H, citizens in our district, in the Katocton District where there was a meeting with Delegate McAuliffe and Senator Perry last night. There were about 300, more than 300 people attended it. People are extremely concerned about

[02:15:39] the power lines that are proposed for our area, which would have a very destructive impact on DC wine country, on agriculture, on people's properties, and the ability to enjoy the area for people who live there and people who visit there.

[02:15:56] We recognize the projected growth in data center demand is the primary reason for the push for these power lines. For that reason, we strongly support the motion to review last year's decision on grandfathering and ensure that it only applies to applications that are very clearly vested.

[02:16:15] This would only be a marginal change, but we support anything the board can do to reduce the tremendous harm that Byright Data Center Development is doing to the citizens and small businesses of everyone in the county, including our district. Thank you, Mr. Ellis. Thank you very much. J.W. John Glass, followed by Derek Max.

[02:16:34] Good evening, Mr. Glass. Good evening. My name is J.W. Glass. I'm an environmental attorney appearing in my personal capacity tonight, both literally and figuratively wearing a Hillsborough hat. I am here to sort of echo the man before me's concerns.

[02:16:52] Loudoun County not going forward with proper zoning and comprehensive plan management is exactly what's happening with another item before the board tonight. That's the R&D baseball application. It doesn't matter if the residents in that area relied on the zoning and the comprehensive plan, that there would be an agricultural business in them.

[02:17:11] It doesn't matter that there's going to be an easement going through that's going to put 1,000 cars on that road a day, or that to expand that easement is going to require illegal encroachment on other properties. The application before the board to approve that would do that. And if that goes forward and the data center grandfathering provision does not, I would just ask this board to exercise ideological consistency here.

[02:17:36] The man before me talked about how the data centers rely upon the grandfathering because it's good business practice. The residents living near that baseball arena relied on the zoning when they made the most important purchase of their life, their home. So if you're going to vote to approve the R&D baseball, I hope that you would also vote to approve a review of the grandfathering decision. I'll make two additional points. The first is that if you do not vote to review the grandfathering decision, you will be putting 18 million square feet of data centers potentially in the pipeline. You're not doing everything that you can to stop

[02:18:15] the Valley North project. You are, in fact, giving them a greater justification to move forward with power lines that are going to tear apart rural Loudoun. The second part is if you do decide in your own justification to disapprove the grandfathering resolution, but approve the R&D baseball application, you are putting data centers and their business needs over the people of rural Loudoun. And that's my time. Thank you so much. Thank you, sir. Derek Max, you're going to be followed, sir, by Mark Bayliss.

[02:18:50] Good evening, sir. Good evening. Chair Randall and members of the board, thank you for the opportunity to speak. I'm here today as vice president of the Jefferson Forum. On behalf of our 35,000 members, I urge you not to revoke Loudoun County's data center grandfathering resolution. Whatever your views about future data center development, there's a fundamental principle at stake here today.

[02:19:10] Government should keep its word. Last year, this board changed the rules governing where and how data centers could be built. At the same time, you adopted a grandfathering resolution protecting projects already in the approval process. That was a reasonable and just compromise. New projects would face new rules.

[02:19:27] Projects already underway could continue under the rules that existed when people invested their money, purchased land, hired engineers, and submitted their applications. Now the board is being asked to change that deal after the fact. That sends a dangerous message far beyond the data center

industry. Businesses considering investing in Loudoun need to know that when they follow the rules, Those rules will not be suddenly and arbitrarily rewritten.

[02:19:49] And we should remember what is at stake economically. Data centers, which could more aptly be called cancer detection centers or transportation planning centers or military deployment centers or whatever you want to call them, have helped Loudoun become one of the most prosperous counties in America. They generate extraordinary amounts of tax revenue while imposing relatively modest demands on infrastructure.

[02:20:09] Loudoun itself acknowledges that this industry has helped diversify our economy and keep residential property tax rates low. The board, you all sitting here, should be commended for your foresight in planning and attracting this industry. There are legitimate debates to be had, and you've heard some of them already, about the future data centers, where they belong, setbacks, noise, water, energy, infrastructure.

[02:20:28] Have those debates. Establish reasonable rules prospectively. But do not punish businesses that relied in good faith on the rules that Loudoun County had already established. Economic development requires trust. If Loudoun wants business to invest billions of dollars here, create jobs here, put down roots here, then Loudoun must demonstrate that its promises mean something.

[02:20:49] Keep grandfathering resolution in place and keep Loudoun County's word. Thank you. Thank you, sir. Mark Bayliss, followed by Tia Ehrman. Good evening, sir.

[02:21:05] Hi. Hello. My name is Mark Bayliss. I'm a resident of Percival, Virginia. I'm here tonight to ask the board to protect the data center projects in Loudoun County that have already been approved and allowed to proceed under the grandfathering rules. Loudoun County helped build the infrastructure that made Northern Virginia the data center capital of the world.

[02:21:26] That decision produced extraordinary benefits for this county. According to Loudoun County's own figures, data centers now generate almost half the county's property tax and have substantially reduced the burden on homeowners. But today, the issue is larger than Loudoun County itself.

[02:21:43] The United States is now in a strategic race with China, and artificial intelligence does not run on promises. It runs on chips, memory, inside of data centers. So what we should ask today is the question, is what if America loses the AI race to China due to local zoning board issues?

[02:22:03] We should absolutely address legitimate issues involving electricity, water, noise, transmission lines, and residential impacts. But changing the rules after companies have invested millions, if not billions of dollars into this county on previously approval is a wrong message to send, not just here, but to the world.

[02:22:23] Our allies and our enemies are watching. I would make one important distinction, and that is that AI data centers are a benefit. They're not an issue. I've heard so much stuff here tonight. I mean, I'm on the FCC technical advisory, and I'm on the AI Safe Uses Committee.

[02:22:47] And some of the things I've heard here tonight about cancer issues, other types of things from data center, I just cannot believe that this false misinformation is being used. So what I would ask is that Loudoun County review this And stand up to the issues of what promises you've made to these people who have invested millions and billions of dollars.

[02:23:08] Thank you. Thank you, sir. Tia Ehrman, you will be followed by Emily Johnson. Good evening, Ms. Ehrman. Good evening. Good evening, Supervisors. My name is Tia Ehrman, speaking on behalf of the PEC.

[02:23:23] I want to quickly cover two items this evening, both of which are ultimately asking the same question. How does Loudoun County prioritize the health, safety, and quality of life of its residents when permitting businesses? With R&D Baseball, it's hard to know where to start with the health and safety concerns this business raises.

[02:23:40] First, it is not small. Double the permitted number of employees in up to 1,000 cars per week up and down a private road through a neighbor's property. A 400,000 BTU heater permitted under a residential mechanical permit in a barn doing assembly uses lacking appropriate commercial health and safety inspections connected to a 1,000 gallon propane tank and the existing well is registered for residential use.

[02:24:04] According to the Rodman Fire Marshal and Building Inspector, the state exemption from the Uniform Building Code for Ag Structures allows only occasional and infrequent assembly uses of 50 people or less, and then the ag use must be put back. What agricultural use is being put back in place at this business?

[02:24:21] How is six days a week occasional? Residents and activists are told if there were any real issues with businesses operating next to homes, there would be complaints filed in Lex. The Lex complaints for R&D baseball span nearly two years, beginning in March of 2024, yet the business is still operating, deeply impacting the quality of life of the residents, risking the health and safety of patrons, and setting a standard.

[02:24:43] As for the grandfathering issue, PE spoke adamantly against the extensive grandfathering the board voted on and urged you to think instead of the loss of land use variety our residents were already feeling, the loss of economic diversity our county was already experiencing, and the energy hole Loudoun was continuing to dig.

[02:25:00] Our reasons for supporting reform now have not changed. If anything, they're far more urgent today. And if there's anything within the bounds of the law that this board can do to provide relief to the residents, we urge you to do so. Thank you. Thank you. Emily Johnson.

[02:25:16] Ms. Johnson, you will be followed by Dorner Trainter. Good evening, Ms. Johnson. Good evening, Supervisors. My name is Emily Johnson on behalf of the Piedmont Environmental Council. Tonight, you have an item before you that will be a very interesting discussion, and we're listening closely, not only for your legal and policy interpretation, but also for the way the discussion has shifted.

[02:25:36] Eighteen months ago, in March of 2025, you adopted a bold zoning change, but you caveated it with major exceptions, such that it is hard to truthfully tell today's residents that by-right data centers are done in Loudoun as they continue to be blindsided. At the time, PEC was among the voices, including town mayors, other environmental groups, a transmission line alliance, and residents who urged you not to create exceptions to a change that the board broadly agreed was to get managerial control over a very distinct industry.

[02:26:01] At the time, people like the vice chair recognized the change as a watershed moment, giving statements that by right data center development should have ended several years ago. Yet the

resoluteness of that position was weakened by the fact that our representatives felt they owed leeway to the industry, an industry that had been engaged in the process since changes were proposed years prior with the zoning ordinance rewrite, which itself offered generous grandfathering in 2023. We know that the generosity of these grandfatherings has not been the norm in prior changes to the zoning ordinance, and the board had full discretion not to grandfather anything, recognizing that it had taken decades for much needed updates, and there had been years of a full public process. It was a discretionary

[02:26:37] choice, it was split, and it was advised against by many voices. In March of 2025, the board was aware that they were grandfathering a third of the projects in the pipeline. The board was aware of the county's fiscal dependence on one industry. The board was aware that Loudoun's greenhouse gas emissions had gone up while regional levels went down. The board was aware that the power utility had announced severe energy constraints. The board was aware that Loudon homes were being impacted. So it's true, it would have been better not to grandfather any more data centers in March of 2025. But there's no wrong time to do the right thing. Thank you. Thank you, ma'am. Dorna Tainter, followed by Chris, who in this person, next person will be remote,

[02:27:14] will be remote. Chris Phillips. Good evening, ma'am. Good evening. I'm still Dorna Tainter from Waterford, and it's been two and a half years since I first came to one of these meetings for the Belmont Innovation Center, and I'm still here for the same reason. And since it's the same issue, I'll be repeating myself. The problem keeps repeating itself. I run a small business that sells a very expensive service. I know growth is good, and I know what it's like to go into debt trying to stay afloat. But that same growth is now crushing us while the richest men in the world

[02:27:51] to get richer. While I know the government can't move at the pace of a tech startup, this situation is untenable. It's the Marl. It's the Valley Link North. It's Golden to Mars. It's even a pop-up natural gas power plant. And none of these things come even close to providing the power that's needed for the data centers getting built. Every data center counts. All throughout Loudoun, residents are feeling the same fear and hopelessness that I felt when I was in a proposed route. Yes, I'm reading off a laptop and through the cell phone in my pocket I can access essentially the sum of human knowledge. I used Google Maps to go to

[02:28:29] the landfill, I had my groceries delivered, read the New York Times, and I could order an outboard motor and some socks before I leave this room. We need data centers and we have data centers. I acknowledge and appreciate that this board has made some big changes regarding data centers, but the technology keeps changing faster than our regulations. There's something I've heard several times from this dais that certain topics are dangerous to talk about. I find that puzzling. I didn't know with the exception of yelling fire in a crowded theater or hate speech that talking was so dangerous. I've even heard that curtailing data centers is un-American. It's all archived in some

[02:29:08] data center somewhere because we do have enough data centers. I've heard that we We can't even talk about restrictions on event centers, wineries, breweries, etc., but we can build more transmission lines through them. This growth brings too much loss. Thank you, ma'am.

[02:29:24] Thank you. Thank you. On the phone, I believe remotely, is Chris Phillips, who will be followed by Matt Leslie. Is he on the phone? I am on the phone. Good evening. Thank you very much for hearing me. I'd like to speak out in favor of the grandfather.

[02:29:44] I know that's not altogether popular with a number of people, and I've heard some of the reasons why. There are two major reasons that I think it's critically important for Loudoun County to go ahead and respect its grandfathering that was done by a previous board.

[02:30:01] First of all is the importance of contract law. In a sense, Loudoun County made an agreement with business. Whether or not that was a good agreement or a bad agreement is for others to discuss. But the bottom line is the agreement was made, and decisions were made based on that agreement.

[02:30:23] In the Supreme Court, they have a term called stare decisis. That means basically you don't, for just passing reasons, reconsider and then change your mind once a decision has been made.

[02:30:38] That's to give continuity. That's to give business and people the ability to plan in advance. I think for that very same concept, it's really important for us to keep our word with what was decided previously.

[02:30:57] The second reason is national security. China is going to build and fight the AI war against us. We need to have these data centers because AI requires vast, vast computing power.

[02:31:14] And I think we are very ill-served if we sit there and say, well, not in my backyard. I don't like it. And to cede that high ground, that technological high ground to the Chinese, they are fighting against us.

[02:31:35] If you take a look at some of the funding for the anti-data centers, you'll find it goes back to the communist Chinese. Sir? Thank you very much. Thank you. Thank you very much. I'm sorry. Matt Leslie, followed by Anthony Solis. Good evening.

[02:31:52] Good evening. First, Supervisor Umstad, thank you for your service to Loudoun and Leesburg. You will be missed. Chair Randall and members of the board, my name is Matt Leslie. I'm speaking in my individual capacity as a father, a 25-plus-year Loudoun resident, and a taxpayer who cares deeply about the future of Loudoun County. I support responsible data center development as well as strong standards that protect our communities and quality of life.

[02:32:12] But I also believe good government requires fairness, consistency, and predictability. That is why I oppose reversing the data center grandfathering resolution this board adopted in March 2025. To be clear, this was not a blanket exemption. The board debated the issue publicly and adopted a compromise with specific eligibility requirements, including that applications had already been accepted by the county, were more than 500 feet from residential uses, and continued to be diligently pursued without substantial modifications.

[02:32:38] The board made a thoughtful, public, and transparent decision, and businesses relied on that decision. Nearly a year and a half later, those same businesses have made substantial investments based on the county's adopted policy. Changing the rules now raises a fundamental question of fairness, but as a taxpayer, it raises another concern for me as well.

[02:32:56] What potential legal and financial exposure are we creating for Loudoun County, and what message are we sending to any individual or business who is considering investing in Loudoun County tomorrow? The board's own item acknowledges that applicants may assert vested rights and could ultimately pursue those claims in court. I believe that the board should take the time to fully understand that potential exposure before reversing course.

[02:33:14] This issue is also bigger than data centers. Businesses, property owners, and residents all rely on the fact that when Loudoun establishes regulations and policies, they can act in good faith within those regulations and policies and be able to expect that the county will honor their decisions. To do so otherwise without a comprehensive, publicly transparent process is chaos.

[02:33:34] We absolutely should continue improving our data center policies and protections as we look to the future. The data center phase two is already underway and provides yet another opportunity to do exactly that. However, getting the rules right going forward and acknowledging the need to do so does not justify suddenly and arbitrarily changing the rules looking backward. I encourage this board to keep its word, and I respectfully ask you to reject Item 14 as currently drafted. Thank you.

[02:33:55] Thank you, Mr. Leslie. Anthony Solis, followed by Nicole Riley. Good evening, sir. Good evening. Madam Chair, members of the Board of Supervisors, thanks for the opportunity to speak tonight. My name is Tony Solis, and I'm a business agent with Plumbers and Gas Peters Local 5.

[02:34:13] I'm also a Larron County resident with three children in Larron County public school. My wife and I moved out to Loudoun County because it was affordable and had great schools. Both are because of the data centers, the tax, the revenue, allow this board to supervisors to do things like lower property taxes and find new schools construction. In the last year, my local union have increased work by over a million main hours. This means hundreds of young men and women like me are getting life-changing opportunities. Learn the trade and earn family sustaining waste, which benefits that includes pension, retirement savings, and medical coverage.

[02:34:51] For entire families, most of the increase is due to data centers. That includes increasing the size of our newest apprentices class to help train new generations of plumbers and gas feeders. Data centers need to be regulated, not banned, and the regulations set by this board have become national standards for data centers development.

[02:35:09] When you grandfathered several projects to the standard use of this time that were filed, was because we believed the goalposts shouldn't be moved. While projects going through approval process, on behalf of myself and my family, my brothers and sisters at Plumbers Local 5 and our sister's local steam feeders, local 602, I ask you to oppose to repeal the grandfather projects.

[02:35:30] Thank you. Thank you, sir. Nicole Riley, and you will be followed by Brian Burton. Good evening, ma'am. Good evening. Good evening, Madam Chair and members of the board. My name is Nicole Riley, and I represent the Data Center Coalition, whose members include many of Loudoun County's leading data center owners and operators.

[02:35:49] Thank you for the opportunity to comment. Our members strongly opposed the proposal to eliminate the grandfathering resolution adopted as part of the Phase 1 CPAM-ZOAM process in March of 2025. That resolution was developed through extensive collaboration among county staff, the planning commission, the board, the industry, and other stakeholders.

[02:36:11] It balanced industry investments with community protections by requiring a 500-foot buffer from residential uses while allowing qualifying applications to proceed through the established process. The board's adoption of the grandfathering framework provided certainty, predictability, and fairness.

[02:36:28] Since then, applicants have relied on those rules and invested tens of millions of dollars in engineering, environmental studies, site preparation, and application costs with the understanding that

qualifying projects would remain grandfathered. Reversing course now would create significant regulatory uncertainty and send a troubling message that carefully considered policies can be changed after substantial investment.

[02:36:52] It could expose the county to potential legal challenges. The stakes extend beyond individual projects. Data centers are projected to generate approximately \$1.3 billion in tax revenue this fiscal year for the county while supporting approximately 15,000 direct and indirect local jobs.

[02:37:10] Loudoun County has built a strong reputation as a stable and predictable place to invest and do business. The Grandfathering Resolution protects both neighborhoods and investments made in good faith under rules established by this board. For these reasons, we respectfully urge the board to reject any motion to terminate the 2025 Grandfathering Resolution or pursue a study to do so.

[02:37:32] Thank you for your time and consideration. Thank you, ma'am. Brian Burton followed by Barry Brunton. I hope I said that right. Good evening, sir.

[02:37:49] Good evening, ladies and gentlemen. I would just like to say I don't support you changing the rules for the data centers. They've been honorable. They've given us good work. They're very necessary for our society, and the war on data centers as it is right now is not good.

[02:38:16] Data centers are providing essential services for our community and this nation and this world. And we ask that you would just consider this, because they are necessary. There's a lot here, yes.

[02:38:33] And just consider that. Okay, thank you. Thank you, sir. Barry, I think it's Bruton. It's Brunton. It's Brunton, I apologize. Thank you, all board members. I really want to speak here for the impact that data centers have on employment in Loudoun County and union employment.

[02:38:57] We just saw a local five brother. It is. It means a lot of work here. Do you all know what used to stand in this site? I've been a member, a resident of Loudoun County for over 30 years. You know what was here? A run-down supermarket and Tuffy's Barbershop.

[02:39:14] And Leesburg would have these blue-ribbon councils on how to get business into the town. And back then, the work was inside the Beltway. Well, today the work is here, and it's data centers, and it has a lot of issues with them, obviously. It's a huge issue, you know, the impacts.

[02:39:32] But I can't stress how important the work, the good-paying work, the benefits, the education, and, oh, my God, that terrible story about the suicide. Being belonging. Belonging to an organization like an IVW Local 26. Any union. Having that brotherhood. Having that belonging. Having something to do with your hands every morning.

[02:39:58] I'm going to go to work. I'm going to make some money. I'm going to build a family. You know, I'm going to be successful. Without these things in this county, nobody can succeed. And without question, data centers are good and bad. Social media, not always best.

[02:40:16] But we really need this stuff. I can't tell you how important the labor and the benefit, just having the work is what I want to really concentrate on. My time is about done, and I've got to go to bed.

[02:40:32] I'm not used to saying it. I get up early. I want to thank you for your time. Please think about maintaining these commitments to the data centers. Thank you. Thank you, sir. Maria Fusco, followed by Brian Turner.

[02:40:48] Good evening, ma'am. Hi, thank you for letting me speak. My name is Maria Fiske, you got my name right. Very good, thank you. Thanks for the moment to address the board directly. I'm here to address Agenda 14H. I and my 11-year-old daughter live less than a tenth of a mile from two proposed data centers.

[02:41:07] I have a growing professional background in occupational health. I don't have time to be politically active. I'm too tired to be politically active, but I'm highly motivated now, as are many of my neighbors. I'm only willing to vote for county, state, and federal candidates who move to effectively block these data centers, not just in word, but in deed.

[02:41:25] We have more than contributed our share. I'm not scared by tactics telling me we're running behind, and it's all our county's responsibility. In a recent board meeting, the negative impacts of data centers were referred to as impacting quality of life. I feel this is inaccurate. They're impacting life. I understand concerns about litigations from these hugely funded tech giants.

[02:41:43] I invite you to equally consider the lawsuits that will come from the populace as the health impacts of data centers come to light. This is facts, not nonsense. Health impacts from groundwater pollution, from wastewater used for cooling and related fuel storage. Recent research at VCU finding that pollution created by data centers rivals and exceeds that created by power plants.

[02:42:03] Over an eight-year period, in northern Virginia, increasing carbon monoxide emissions by 196%. Nitrogen oxide emissions by 111%. dangerous particulate matter emissions by 139%. Loudoun County contains some of the most effective neighborhoods, including those, most of them low-income neighborhoods.

[02:42:22] Wealthy people making money hand over fist. Data centers also emit particulates that lead to silicosis, lung cancer. They emit methane, volatile organic compounds. The Harvard School of Public Health links data center emissions to rising rates of asthma, cardiovascular disease, and premature death, with public health damage projected to climb significantly.

[02:42:42] We've essentially got industrial-scale power plants in and amongst our neighborhoods. Cooling system semiconductors utilize PFAS chemicals linked to immune dysfunction and cancer. I grew up in a series of mining communities. I feel compelled to draw your attention to some old and really long-time tired-used bullying tactics.

[02:43:01] I'm sorry, your time is up. You can feel free to either give or email your comments to us if you haven't finished. Oh, sure. Yeah, I'm blue-collar, too. Thank you so much. We've all been poised. I'm Brian Turner, followed by Woody Turner. Good evening. Good evening. Good evening, Chair Randall, members of the board.

[02:43:17] I'm Brian Turner, principal attorney with the Turner Law Firm. We believe that the current process by which the county makes administrative determinations about data center applications that claim to be grandfathered and have vested rights is significantly flawed. We do not advocate that the board take away anyone's vested rights.

[02:43:36] We believe, however, that the essential question to ask is whether these applications are actually grandfathered and whether they actually have the vested rights they claim to have. The problem as we see it is how that determination is made, who makes it, and what oversight exists from the board to assure that administrative decisions do not exceed the legislative authority the board has approved.

[02:43:58] We've heard numerous times that the board is not pleased with previous decisions made that the board was not aware of. The zoning determination years ago that data centers were akin to office buildings and approval of a gas turbine engines advantage were made by staff interpret interpreting the rules that currently exist our examples and the problem that exists the issue is still exists today it was reported last week that an error in a document disseminated to the board contained a misinterpretation of grandfathering invested rights for data center development in the county's by by right pipeline to the tune of 7.8 million square feet let me be clear to

[02:44:37] to say that if that's true, it's not the fault of the staff. The conclusion from our view is that this is a result in confusion, misunderstanding, and inconsistency in a way in which the applications are administered by the staff. We believe the board needs to perform a thorough audit of the current process to eliminate confusion about what's vested, what's grandfathered, and what's not. Thank you. Thank you, Mr. Turner. Welcome, Mr. Turner. Good evening, Madam Chairman and chairperson and members of the board. Brian, you took away all the zingers I had written in the

[02:45:15] first draft, and I can get this done in less than a minute, but here we go. What Brian has said leads us to the conclusion that what we believe you should do is take remedial action on the following points. Assure that there's transparency in the process to assure that Ministerial approvals do not exceed the board's legislative direction and authority when it comes to grandfathering and without the board's knowledge. Assure that the county attorney's office, and he may be doing this, has reviewed all such applications and reported his findings

[02:45:55] to the board before they are signed off by the staff. To assure that the staff have sufficient in time, support, guidance, and guidance to do their job effectively and competently. And I agree with what Brian said. The staff has been handed a mission impossible card to try and interpret the very confusing, contradictory, and sometimes illegible, misunderstood goals that you have set for them.

[02:46:24] That needs to be adjusted. No vested rights have to be implicated by a timely audit and remedial action to make the process transparent rather than opaque, and that's what it is now. Those decisions that are made by the staff are made behind closed doors.

[02:46:43] You don't know what happens until the building gets built, and we don't know what happens until that happens either. You need to be aware of what your staff is doing. You need to make sure that they're either vested or they're not. It shouldn't be a difficult thing for the board to do to exercise its due diligence and its responsibility to oversee what its staff does.

[02:47:13] A thorough audit and review that results in clarification of the board's intent. Thank you. Thank you, sir. I appreciate that. Thank you. Dan Bargis, followed by Lindsay McCary.

[02:47:28] Good evening, sir. Good evening. My name is Dan Vargas. I'm a Loudoun County resident and civil engineer focused on data center development here with Gordon here in the county.

[02:47:45] Chair Randall, I spoke at your town hall in July. I don't want to rehash everything I spoke there, but for the benefit of the rest of the board, I did want to relay a bit of what I tried to get across that evening, which is my personal experience with data center developers here in the county and how much care and effort they put into being responsible developers and stewards of Loudoun County, how each successive facility we are working on improving efficiency and sustainability of each data center.

[02:48:15] You know, a lot has been made about the different misconceptions about data centers, whether it's regarding environmental impact, consumption of power, water. You know, many of these elements, I think we've all understood, can often be misconstrued. But one aspect that I think often gets overlooked by the general public is how long it takes to process any project of any large scale.

[02:48:37] The entitlement, design, and site plan process can take years. That is why it's so important to maintain the data center grandfathering resolution that was adopted last year. A lot of good work has been done, to y'all's good credit, on a lot of the design and regulatory changes that are required of data centers.

[02:48:57] However, the grandfathering resolution is a critical element to practically implement those changes. Land development is a large ship. You can't just turn it on a dime. You can't throw it in reverse. You have to allow for a practical rollout of any new regulation, and that is the, you know, what we're considering here this evening is the grandfathering resolution that allows for that practical implementation of those new design changes.

[02:49:25] Thank you. Thank you, sir. Thank you. Lindsay McCary, I think that is it. And then, ma'am, you will be followed by Connie Tusing, that might be right, who will be a remote speaker.

[02:49:41] Good evening, ma'am. Good evening. My name is Lindsay, Loudon resident for over 20 years, and I'm here to support the proposal to end the grandfathering exceptions for data centers. If you've read any of my emails, you would know that I am deeply concerned about the impacts of hundreds of data centers operating in a single locality.

[02:50:00] There are both health and environmental risks associated with data centers that are not misconstrued, and they're required power lines and electrical substations, including, but not limited to, air pollution, sound pollution, soil pollution, water pollution, mass water and electrical consumption, radiation near power lines and substations, the creation of heat islands, and the destruction of land and natural habitats for wildlife.

[02:50:26] With already over 250 data centers, I strongly believe we have reached a crisis in the county. The alleged benefits simply do not outweigh the cost. I do not want to be told that we have nice schools, nice parks and libraries. Our friends in Fairfax have that, too.

[02:50:42] And I really don't want to be told that we're saving on taxes. I would gladly pay more if it meant a higher quality of life, which have been decimated by the data centers here. I apologize if my tone is harsh. It's not my intention, but I am tired.

[02:50:58] I am tired of nothing being done. I am tired of the excuses. I am tired of the finger-pointing and the blame game. But most of all, I am tired from the lack of sleep, from the humming of the data centers all night long. The residents of Loudoun, the people you were elected to represent, are suffering.

[02:51:18] And you have the power to do something about it. So please, take action, end the grandfathering exceptions, and furthermore, end the development of future data centers in the county. We are beyond maxed out. Thank you. Thank you.

[02:51:37] Remotely would be Connie, and if I say your name incorrectly, ma'am, I apologize, Connie DeSung. And then you'll be followed by Thomas Donahue. Madam Chair, I'm Connie San. My name is Connie San, and I am a resident of the Algonquin District.

[02:51:56] I'll use my time to reply to some of the pro-grandfathering voices that we have heard. Pro-voices 1. Data centers are what made Loudoun County as great as it is today, and we need to let the ones in the pipeline go through.

[02:52:13] Here's my response. We spend much of the time during BOS meetings highlighting the great work of our community helpers. If more data centers would do so much good for our community, then I call for the Board of Supervisors to proclaim September Data Center Appreciation Month.

[02:52:30] Well, we honor the owners and developers of the 250 data centers, just like we did with our first responders, members of the military, social workers i'm talking about photo ops with bernard francis salt ii of bf sol chuck coon of jk land holdings are we ready if more data centers would do so much good for the community data center developers should proudly display mock-up drawings of the next data center they are building on their chain link fence just like the residential developers right now it's shrouded

[02:53:06] in secrecy and nda if more data centers would do little harm to one's health i invite any speaker tonight that spoke for data centers to have the first dip on the sale of properties near data centers not ready to buy and they are welcome to stay overnight for one week at a time and experience the wondrous night light and vibrating massage pro versus voices 2 repealing the grandfathering exception is an invitation for lawsuits. My response, America is a litigious society. This is a chance for the county leadership to demonstrate to the voters that they are in

[02:53:45] touch with public sentiment. Come next year, the majority of Loudouners are ready to vote out members of the board wishy-washy on ringing in data centers. Provoices 3. Ma'am, your time is up.

[02:54:00] Thank you so much. Your time is up. Thomas Donahue, you'll be followed by Victor Block, followed by Thomas Giddings. Good evening, sir. Good evening, Tom Donahue, good talking district. Here to talk about Golden. When you vote on a substation, you need to consider not just where it is and what it looks like, but also what's going to be connected to it, because you have to consider what the overall impact is going to be. You can't decide the route, but you can think about the overall impact. If you approve a data, a substation,

[02:54:35] you are effectively endorsing those lines. If you approve Golden, you will not only be effectively endorsing those lines, but you will be undermining your own legal case in front of the Virginia Supreme Court regarding the Golden to Mars line.

[02:54:57] If you approve Golden, you will be essentially giving up on the community. If you are only seeking more conversation about how a substation looks, more shrubberies, please, then I think deferring will be a perfectly fine approach to get more of that conversation.

[02:55:19] We've had plenty of that conversation in the infrastructure working group. I'm not quite sure where this conversation can still go, but have at it. But if you want more, if you want more of a conversation, if you want more of an impact on the decision-making of the electric infrastructure than what we're getting now, then Golden is an opportunity for you to do more by denying it.

[02:55:41] I realize that is not a favorite position right now. I realize that's not what you want to do. But in deterrence strategy, you need to show that you're willing to pull the trigger or nobody's going to believe you. Tonight might be not the right night.

[02:55:57] It might be too hard at this point in your process. But you might at least consider signaling a willingness to consider denial in your next meeting if you're unhappy with the response that you get. Thank you. Thank you, Mr. Donahue. Victor Block, followed by Thomas Giddings, followed by Stephanie Van Pariet.

[02:56:19] I think that's how you say it. Good evening. Hey, Chair Randall, Supervisors. The question tonight, will this board hold domain to the standard we have heard from you over and over? Do better. Get these projects right. Tonight, you'll hear a list of everything that cannot be done. The wall cannot be improved. The equipment is already ordered.

[02:56:36] The agency said no. We've heard that one before. And we know what it's worth when someone actually checks. The better examples Supervisor Sainz asked about, not possible. But there will be more plantings and screenings, but no murals. Every answer is the same claim.

[02:56:52] It's too late to do better. If the only argument left is that time ran out, ask yourself, who managed the clock? There are ways to do better. It takes will. And if good examples are hard to find, ask why. How often does anyone put this many 500 kilovolt substations this close to where people live?

[02:57:11] You'll hear one word, reliability, and we take it serious. It is exactly why this should have been done right from the beginning. That's why, defer, don't deny. We've heard from this board on the record that maybe now it's time to make a stand.

[02:57:26] But how much does a stand worth if you don't stick to it? Tonight, this is yours to decide. We expect Dominion to build here like their own families live here, too. Insist we get this right. Thank you. Thank you, Mr. Block. Tom is, I'm sorry, yes, Tom is Giddings.

[02:57:45] And you, sir, will be followed by Stephanie Van, I think it's Perrette. Good evening, sir. Good evening. I'm here to comment on the R&D baseball application. My wife and I lived next door to R&D Baseball, and when we moved to Western Loudoun, we deliberately chose a home surrounded by horses, goats, sheep, pastures, and crops.

[02:58:04] We moved to the right place, or so we thought. We would have never expected to live next to a big commercial business with its 200-plus vehicles a day crossing our property, where there used to be about 10. And we couldn't have anticipated the noise, lights, and paved-over agricultural land on a rural residential property in the middle of our homes.

[02:58:23] That's because this type of personal instructional services use is expressly prohibited in the agricultural rural zones, according to the zoning ordinance. It's right there in the use table. You can't miss it. But somehow planning and zoning keeps ignoring it, and that's not all they're missing or misrepresenting.

[02:58:39] For example, they refuse to acknowledge that the 27,000-square-foot asphalt parking lot is a structure, even though parking lot is explicitly included in the definition of structure. They pretend like it hasn't already been determined that R&D requires a commercial on-site sewage system and public waterworks right in the middle of our wells.

[02:58:56] They won't even tell you what type of private road is needed to accommodate the 250 to 300 vehicle trips per day on our shared driveway after adding this business. Don't you want to know what this

project entails before you vote for it? And what or who is getting the Department of Planning and Zoning to malfunction like this?

[02:59:14] Their omissions, inconsistencies, and factual errors constitute an injustice to adjacent homeowners, and they are a disservice to you. Your decision should be based on complete and accurate information, and you should be aware of the key issues concerning use compatibility, regulatory compliance, and road access requirements.

[02:59:31] But staff swept these concerns under the rug at the last minute with no changes to the application or conditions to address them. That, too, is an affront to adjacent homeowners. Please reject this defective application. Thank you. So how, how, how can you say again how, would you believe the parking lot size is?

[02:59:51] It's 27,000 square feet according to the plat in their application. Okay. Thank you. Yep. Stephanie Van Perret, are you here?

[03:00:07] Good evening. And you will be followed, ma'am, by Lauren Little-Stolen. Good evening, ma'am. Good evening. My name is Stephanie Van Praet. I live next door to R&D Baseball. My husband and I moved to an agricultural rural area to live in a peaceful country setting, surrounded by farms and stables.

[03:00:26] The location we chose was the right place for that, but R&D chose the wrong place to relocate a big commercial business. A rural residential area in an agricultural rural zone is not the place for R&D's large-scale, high-traffic commercial business. At more than 50,000 square feet of structures and at least 100 visitors per day, this is not a small business, especially not in the middle of a residential cluster.

[03:00:49] Their use is not permitted, and as the community planning has pointed out, the proposed use is not anticipated in the rural North Place type of the general plan, and the minor spec are not justified. The setbacks would be reduced from 300 feet to as little as 54 feet, where homes are right across the property lines.

[03:01:08] The square footage goes from 6,000 standard to more than 50,000 on a modest sized property. The number of employees would be double the limit, increasing the activity intensity of this commercial use, and the number of vehicle trips on a private driveway across our property goes from about 20 to more than 200 per day.

[03:01:25] R&D complains about the money they have already spent in the protracted process, but R&D alone is responsible for this. They spent money implementing a business without an approved change of use, proper permitting, or proper inspections. They prolonged this process by trying to do an end run around it and delaying their own applications as the county allowed them to operate their non-conforming, non-code-compliant business without a permit on and off from November of 24 through July of 25 and then also under bogus temporary special event permits for an additional 14 months and counting. Meanwhile, they have racked up a long list of zoning violations over the past two and a half years, all of which have

[03:02:01] been ignored by zoning enforcement. R&D has no legal right to use our lane for their commercial business and the county does not have the authority to allow them to do so. Please deny the R&D baseball application and correct the problems with this process. Thank you. Thank you, ma'am.

[03:02:20] The next two speakers are remote. I is Lauren Little-Stolen, followed by Philip Emanuel. Good evening, board. Good evening. With respect to the Golden Substation, please defer the vote until Dominion commits to building a substation worthy of Loudoun County residents. Dominion may cite time constraints or supply chain issues, but when it comes to reliability, it's important that the board hold Dominion accountable to getting it right now and set that precedent for future projects. The board should not allow themselves to be pressured by Dominion into accepting the bare minimum. Supervisors do hold the power to grant

[03:02:59] special exceptions or not. I see substations in other nearby counties that have significantly more attractive facades that also offer additional safety to residents and protection for the facility. Why isn't Loudon getting similar treatment? Please safeguard the livability of Loudoun County. The board can demand better for its residents. With respect to buy-right data center zoning, Loudoun County is in quite the predicament due to the overdevelopment of data centers. Many of the issues stem from the fact that applications never went for a vote before the board. Any regulations that allow the board more control over the process should be a good

[03:03:36] thing for residents. Please vote yes to the tightest possible data center application system within what's legally possible. You owe it to your constituents to have these massive projects evaluated seriously and carefully. Thank you. Thank you, ma'am. Philip Emanuel, followed by Gary Nicely. I guess Gary Nicely's back. Good evening, board members. My name is Philip Emanuel.

[03:04:04] I live here in Loudoun County in the Sterling District. We previously heard that your hands are tied when it comes to transmission line routes, but tonight, on the special exemption for the Golden Substation, your hands are not tied. You have direct authority over what gets built in our backyards, along Pacific Boulevard, and right against the W&OD Trail.

[03:04:28] Reliability is critical. However, using it as a backstop to force through a bare minimum design is unacceptable. Dominion brought this site for \$90 million and knew its requirements years ago. Yet they ran out the clock and brought forward 115-foot structures and a 20-foot wall right on top of our most used public trail.

[03:04:52] I might add that as an avid cyclist and frequent user of the WLD, I am disgusted with what Dominion has already done to the trail and the surrounding areas. And while Dominion claims the clock expires tonight, there are no statutory deadlines forcing you to approve these special exemptions today.

[03:05:13] The only thing at deferral costs is Dominion's leverage. Whatever standard you set tonight will become the baseline for dozens of future applications across Loudoun. If running out the clock works here, applicants like Dominion will continue bringing the bare minimum.

[03:05:30] In closing, we all should expect Dominion to build here like their own families live here too. Please defer, do not deny, item 14E, until Dominion delivers a design that respects this community, protects the trail, and reflects the standards Loudon deserves.

[03:05:52] Thank you very much. Thank you. Thank you, sir. Gary Nicely. Mr. Nicely, are you here? Mr. Nicely is not here. Well, listen, Mr. Nicely is not here, but it was nice to see his name again, and we are very happy he's doing all right.

[03:06:10] Donna Wadowski, followed by Shane Crow. Good evening, Ms. Wodelski. Hi. Hi, Ms. Randall. Thank you.

[03:06:25] For citizens who are impacted by Dominion power transmission lines, this one's for you. Robert Blue, the CEO and president of Dominion Energy, has strong ties to Senator Warner. Mr. Blue used to work for Senator Warner and recently gave him thousands of dollars to his campaign.

[03:06:49] Virginia is a property rights state. The idea of eliminating grandfathered and vested rights is inherently flawed, as it will only lead to lawsuits against the county. Lawsuits in which the county will not prevail, thus wasting millions of taxpayers' dollars and losing all proffered obligations of affected landowners.

[03:07:14] Our own Foreign Affairs Correspondent, Supervisor Bristman, has announced she plans on running for chairman. Bristman's controversial and vile policies align perfectly with the Democratic Socialist Party, anti-police and anti-ice.

[03:07:32] She wants to turn Loudoun County into a sanctuary county. By the way, Supervisor Briskman, do you know that Sheriff Chapman just won again loud and now's favorite public servant and his department favorite government service?

[03:07:48] I want to congratulate the Sheriff's Department for the recent capture and arrest of an illegal immigrant in connection with the abduction and assault that occurred in the area of Algonquin Parkway and Lowe's Island Boulevard in Supervisor Briskman's district.

[03:08:06] The illegal immigrant also has warrants for his arrest for child neglect. Loudoun County is on the forefront of fighting crime, and we cannot afford Supervisor Bristman's controversial policies as chairwoman of the Loudoun County Board of Supervisors.

[03:08:24] Thank you. Thank you, Ms. Wadowski. Shane Crow, followed by Zach, and this person will be on remotely. Zach Mattia. Good evening, Mr. Crow. Good evening, Chair Randall. And now for something completely different.

[03:08:39] Hello again, Board of Supervisors. As always, my name is Shane Crow, Loudon's friendly nuisance advocating for ranked choice voting here in the county. It's lovely to see everyone's friendly faces after the August recess. Although I will say, over the break, I did catch the news about Supervisor Briskman's recent positional declaration for next year's local races.

[03:08:56] Now, I should clarify, I'm not here to pile on like previous speakers, but I will note a light bulb did go off in my head, because now I'm in a better position to play a gambit that will hopefully help me set the tempo in getting ranked choice voting implemented here in Loudoun. Can you tell I've gotten into playing chess recently?

[03:09:13] Now, anyways, here's my gambit. Let's say, hypothetically speaking, that I were to throw my race into the contest in the open seat in Algonquin. I know, I know, of all people, me running for political office, ridiculous. But let's pretend for a second that I did so and that I were to do so as an independent candidate.

[03:09:30] Now, I know with the office in question, that's technically redundant, But I think we all know what I mean when I say that that election would then become a three-person race. And when you're a third wheel in what's traditionally a two-way rivalry, it's anyone's guess as to how the share of the vote will break out.

[03:09:47] And since next year's elections are an eternity and a half away, who knows what exactly would happen. But that is to say, of course, it is true that I'm not just politically active, but ambitious as well. And I'm not just a ranked-choice voting one-trick pony. So don't be surprised if over the next several business meetings, I continue playing this gambit by talking about other things.

[03:10:08] But, of course, I hope I've helped articulate one of the benefits of ranked choice voting and perhaps one of the most realistic reasons for implementing it, that being as a political security measure. Now, of course, there are other benefits to ranked choice voting, and I know, Chair Randall, you've indicated interest in youth engagement.

[03:10:25] I promise I'll help get that research to you as soon as I can. I'm just curating my sources to make sure that we have a well-rounded picture that I can give to you. But overall, I do thank the board for your all's time tonight, and I hope to continue this conversation. Thank you. Thank you, Mr. Crow. Thank you. Zach, Mattia, and so we are at our 33rd speaker, but because everyone didn't use their full time to speak, we still have some more.

[03:10:53] We will go until we get to 90 minutes, and we're not at 90 minutes yet. So, Zach Matia is remote online, and he will be followed by Teresa, I think it's Schaperbert, will be after Zach Matia, who's online.

[03:11:11] Zach Matia has not called in. Zach Matia has not called in. Okay, then. Teresa, it's S-C-H-A-P-P-E-R-T. I think it's Schaperbert. And then John, same last name after that. And then Jeffrey, I think we can get to Jeffrey Burpo.

[03:11:29] Good evening, ma'am. Shappert. Shappert. Okay, that's a lot easier than I was making it. Thank you so much. Chair Roussel and Board of Supervisors members, thank you for allowing me the opportunity to speak. I live directly adjacent to R&D Baseball property, and I want to begin by saying that my concerns are not personal.

[03:11:51] I truly believe that R&D Baseball is a wonderful opportunity for the youth in our community, and I appreciate the positive impact that they hope to have. My concern is simply whether such a large-scale commercial operation is appropriate for this particular location, which is residential and zoned agricultural rural. For some of our neighbors who live several acres away, the impact may be different. For those of us who live adjacent to the property. However, we would experience continuous noise and huge increase in traffic

[03:12:27] traveling up and down a one-lane easement that currently serves only five homes. My biggest concern is safety. With the anticipated increase in traffic, I worry about maintaining reliable access for firearm rescue to reach our homes when needed. There is also a safety concern that there is so much traffic going through in the neighborhood where three driveways come together at Route 9 with hundreds of additional vehicles entering and leaving a public road. I respectfully ask the county to consider the importance of maintaining the zoning regulations that have

[03:13:04] been established to protect the character and safety of a rural community. Also to consider the impact this proposal will have on the surrounding properties, the road and emergency access. If exceptions are made to these regulations become excessive or too frequent, where are the boundaries to protect the neighboring residents that we can rely on?

[03:13:30] Please help preserve the Weston and Delauding County. Thank you for your consideration. Thank you, ma'am. John Shepard, followed by Jeffrey Burpo. Good evening, sir. Good evening.

[03:13:46] Madam Chair, members of the BOS, for the past two and a half years, planning and zoning and zoning enforcement have completely ignored the rules and regulations where it pertains to R&D baseball, where next door neighbors have been made to pay the price with constant noise and excessive traffic.

[03:14:05] These departments have repeatedly made a correct ruling and then reversed themselves or they simply ignored the ordinance to unfairly promote R&D's interests over theirs of our neighbors who have to live with the big commercial business operating right next to their homes for two years.

[03:14:26] In the meantime, R&D Baseball has disregarded the process, proceeded to build and operate their commercial business in an agricultural rural zone without permits or through improper permitting. They have compiled a long list of zoning violations, which were reported to zoning enforcement, but they took no action.

[03:14:47] One instance is the hardtop parking lot that R&D constructed in 2024 without a permit. It was reported by multiple neighbors, yet it still exists some two years later. No citation. How can you explain this? One instance is a large, sorry, it seems that every time R&D gets in trouble with the county, they run to Mr. Kirshner, the supervisor for our district, and then zoning inexplicably changes their positions and lets R&D slide.

[03:15:20] This has been the pattern for two and a half years now. It should end now. Please deny the R&D application and let's stop this continuing nonsense. Thank you. Thank you, sir. Jeffrey Berpoe, followed by Hoden Colio, I think. Good evening, sir. Good evening, young man.

[03:15:46] In regards to the R&D baseball, I started training my eighth grade year. I was a 5'6", 115-pound kid with a dream of playing baseball in college. I knew going into this, I would have to work hard while having the amazing coaches to help out. They are so great at helping everybody individually with strengths, different strengths and weaknesses.

[03:16:05] And now I'm here standing over six feet, 170 pounds, four years, and I'm able to play college baseball at the University of Lynchburg. To take away the farm is to take away all of the equipment that they've been able to give me and provide everybody else in the athletes. They're outstanding with their stuff, and to complain about it constantly is just, like, a stab in the heart.

[03:16:29] It's, like, it's just to lose the farm brings us back to where we started four years ago, back to the cramped facility, not being able to move around, not being able to individually help out everybody else and just make everybody's dream of playing.

[03:16:51] That's the reason they go there. Their dream is to play college baseball and potentially farther, And to take that away and bring us back to square one is just going to make everything so much harder for every athlete in that building. And the opportunity that they had, they have now with this facility and the farm is gone just like that and makes everything just 10 times harder.

[03:17:15] And that's it. Thank you. Holden Colio, that might be how I say your last name. If I don't say that name, please correct me. You're going to be followed by Robert Lucas. Good evening. good evening uh i came here you know i don't put a suit on very often this is actually my homecoming suit um but uh you know i came from school i got up at six six o'clock this morning i go to paul the sixth catholic high school and um you know i wasn't prepared to speak or anything but after a long day seven hours of school sitting over there for about three hours you know this just means so

[03:17:51] much to me to have the opportunity to be able to become the baseball player in person that i can be Like Jeff Burp, he just spoke. I would have never known him if it weren't for R&D. Like the community that we have that has showed out for R&D today is just amazing to me.

[03:18:07] And none of this would have been possible without any of the people that we have here. And Rob, he's amazing. He's really helped me out and developed me to become the player and the person that I am today. R&D has just helped me overall as a person. And it's just amazing the things that they've been able to do and help me.

[03:18:26] and the fact that I care so much about it that I would come to court for the first time in my life and speak in front of a bunch of people who I'd never normally speak in front of just to show the love that I have for this facility and everything that they've been able to do for me.

[03:18:43] So, young man, young man, come back. Come back. So I have no idea where this vote's going to go tonight. I don't whip votes and I don't lobby votes. I have no idea. But I will tell you this. I say this all the time. One of the number one fears of people is talking before, is talking in public.

[03:19:01] No matter what happens tonight, you did a great job. The homecoming suit looks phenomenal. And we're really proud of you. Thank you. Thank you, guys. You're good. No, we still can't clap. We still can't clap. Sorry. Robert Quincy Lucas.

[03:19:21] Good evening, sir. Good evening. Good evening, members of the jury. My name is Robert Quincy Lucas, and I am a Loudoun County resident. I'm here today to ask you to keep the R&D baseball facility open and to allow us boys to have a place to go and train. R&D is a place where I have been able to improve myself and train, but it is also a place I genuinely enjoy going and being a part of its community every day.

[03:19:43] One of the biggest reasons the R&D facility in Hamilton is so important is its location. The next closest quality development facility is in Ashburn, which is where I went before R&D. I can tell you it is a drag getting there even twice a week. Convenience matters, especially for us athletes who are constantly balancing school, sports, and everything else in our lives.

[03:20:03] More importantly, R&D has already had a real impact on my development as a baseball player. I have received attention, opportunities, and scholarship that I can confidently say I would not have received without this facility and without the people surrounding me. I know that decisions like this are not very simple, and it's definitely a tough decision, but I also ask you to consider the large amount of student athletes who are directly affected by this decision.

[03:20:25] For young athletes like me, R&D provides an opportunity to work hard, set goals, and chase something bigger. If R&D closes, you're closing a place where local athletes have invested hours upon hours of their time, their effort, and their dreams. I respectfully ask you to consider what R&D has provided for our community and for athletes like me before making this decision.

[03:20:45] Thank you for your time. Thank you. Thank you, young man. Brian, I can't even make up. Hi, Brian. Will you come up? Will you please say your last name? And you're going to be followed by Rosemary Oates.

[03:21:02] Good evening. It's Kanacki. Kanacki, thank you. Good evening. My name is Brian Kanacki. I'm the director of sports performance at R&D Baseball. I do promise to work with our guys on their public

speaking. No, they're doing great. They're doing great. I'd like to thank members of the board who took the time to come out to our facility and see firsthand what we were doing there.

[03:21:22] I hope you also got the chance to visit our neighbors and get their perspective on our impact in the community. I appreciate the board's willingness to do their due diligence on this matter, listening to the concerns of the surrounding community and seeing the changes and plans we have made to address those concerns within the regulations that we've been given.

[03:21:42] I speak on behalf of our entire staff when I say that we coach because we generally love what we do. We get the opportunity to work with young people in this community every day. We understand that our responsibility goes far beyond developing them physically.

[03:22:00] We want to help them become better athletes, yes, but also confident, disciplined, resilient, and well-rounded individuals. Over the past several years, we have worked hard to build something special in this community. Being granted the ability to operate from this location, provide our business with the stability it needs to refocus our energy and resources back where they belong, which is into our athletes, our families, and the continued development of the young people that we serve.

[03:22:32] We understand that operating in a community comes with its responsibilities, and we are committed to continuing to listen, to make adjustments when necessary, and be positive members of that community. Thank you for your time. Thank you. Thank you very much.

[03:22:48] Oops. Rosemary Oates, how are you? And you are next, and you're going to be followed by David Paula. Good evening. Good evening. My name is Rosemary Livingston-Olds.

[03:23:06] This is my daughter, Sloan Olds. I'm the wife of Dan Olds, who is the co-owner of R&D Baseball, and I'm a mother of three, of Loudoun County resident, and a master's prepared nurse. I'm here to speak directly about the minor special exception, the value of this business, and the nature of the opposition and the tangible harm that would occur if the minor special exception is denied.

[03:23:29] So some facts about the minor special exception. R&D is classified as a small business with specialized instruction. This classification is allowed in AR1. We know that. That's not why we're here tonight. That's already been approved. The county has already made that determination.

[03:23:47] In simple terms, without all of the numbers and the legal terms, what we're asking for is to use pre-existing buildings on a property that we own to run a baseball business. People keep coming up here to say this is a large corporation.

[03:24:04] It's a small business that trains Loudoun County youth. This is, if you were just to ever listen to what people are saying, it makes it sound like we're, like, in terms of Amazon or Walmart or a data center. We're not. As the value of the business, as a nurse, I specialize in quality and safety.

[03:24:23] That's what I do for a living. And I'm a parent, and I have a clear understanding of the safety risks facing our youth in this community. In this community meeting, we've had mental health professionals speak to how community meeting places, movement, and connection with the environment are protective to mental well-being and health of humans.

[03:24:44] R&D is a safeguard to those risks. It provides supervision, structure, and mentorship. If health and safety truly matter, then this is exactly the type of business that should be supported and not opposed. R&D provides structure, community, a clear pathway for young people to work toward meaningful goals.

[03:25:04] Its record of athletic achievement is excellent. I'm sorry, your time is up. And again, if you'd like to either, well, I guess we're going to... I've emailed. I know, I know, I know, but I guess emailing wouldn't help tonight because tonight's the vote.

[03:25:21] So, our next speaker is, we have probably time for five more speakers, and it's David Pala. Hello, how are you? Followed by Bridget Martin. Good evening. Good evening, Chair Randall and Loudoun County Board.

[03:25:38] My name is David Palla, and I'm here representing the 500 members of IBEW Local 26 that live in Loudoun County. And I just want to talk a second about how important the data center industry has been for our members here and across the region.

[03:25:56] It has helped Local 26 become the fastest growing IBEW in the country. We have the largest apprenticeship school in the country, and Loudoun County is seeing those benefits with how quickly the growth of our membership here has increased year over year.

[03:26:13] We are asking here today, I'm here on their behalf, to ask you to keep the promise that you made last year and the grandfathering. When you grandfathered those projects, that gave us an outlook in terms of how many apprentices we were going to bring in, how we were going to structure our training programs, how many additional journeymen we could organize in from the non-union sector, giving them these life-changing opportunities and benefits because of all those maintenance jobs that are left over.

[03:26:42] Our member who spoke earlier today actually is a foreman doing maintenance, those permanent jobs that we never seem to get counted in with IVW electricians who stay behind and do that permanent work on those facilities. He runs those crews, right? So I'm asking you all to keep that promise that you made to them and to us as we planned our growth and as we continue to build pathways to the middle class here in Loudoun County.

[03:27:06] Just real quickly with the last 30 seconds, I'd also like to talk a little bit about power generation and distribution. We've heard a lot about power lines. I also work in the green energy sector. We've done a lot of exciting projects all over the state.

[03:27:23] Power flows both ways. We've got some of those exciting green energy projects that are coming online in other parts of the state, and we'd love to have it come back this way as well. Thank you so much for your time. Thank you. Thank you very much. Bridget Martin, followed by Matt Livingston.

[03:27:41] Good evening, ma'am. Hi. Good evening. My name is Bridget Martin, and I'm a member of Boilermakers Local 45. I'm speaking on the data center grandfathering resolution. I represent Boilermakers. These are the skilled tradesmen and tradeswomen that are building and maintaining the infrastructure and industrial infrastructure in this region that we depend on.

[03:28:06] I live in Northern Virginia, and I'm here because these projects are very important to our members' livelihoods. What you decide tonight is going to reach well beyond you in this room.

[03:28:22] There are more than 20 sites where contracts have been signed and crews scheduled. These are men and women who planned their year, they planned their family's year, and they planned it around projects that were approved under the rules that existed when those applications were filed.

[03:28:42] This work is already committed, it's already in the motion, and it's based on promises that were made. Reversing that now doesn't just change policy, it changes outcomes for people mid-project.

[03:28:58] You can set strong standards for future growth without pulling the rug out from underneath what's already underway. That's not a loophole. That's the deal Loudoun made. Employers considering this county for their next investment are asking the same question tonight.

[03:29:15] If the rules can change retroactively once, what stops it from happening again? That uncertainty has a cost, and it's the skilled tradesmen and women that pay for it. I urge you to stand by your promise that you made.

[03:29:32] Thank you. Thank you very much. We have time for three more speakers. Matt Livingston. Wait. Yes. Matt Livingston, Mark Pontiello, and James Trammell, I think that is. Good evening, sir.

[03:29:48] Good evening. I'm a Western Loudoun County resident, and I'm here to support R&D Baseball's application. As the board considers this application, I believe two important points deserve attention. First, the county's own review concluded that R&D's operation represents a compatible use within the rural planning framework.

[03:30:08] Second, I believe it's important to consider the practical consequences of denying this application, including whether any likely future use of the property would better serve the objectives of the AR1 district or result in fewer impacts to the surrounding neighborhood.

[03:30:27] The first question has been addressed through the county's own review. In its findings for approval, county staff concluded, and I quote, As condition, the application is compatible with the rural character of the area and provides a specialized small business use that is compatible with the rural vision of the place type.

[03:30:49] This finding directly addresses the concern raised by some that R&D's use of the property is inconsistent with the character of the area. The concerns raised regarding R&D's use were considered as part of the county's review.

[03:31:06] After evaluating those concerns, county staff concluded that R&D represents the type of complementary business use envisioned within the county's rural planning framework. The concern raised by a few neighbors have been heard and considered throughout the process.

[03:31:24] At the same time, many other neighbors have testified that R&D has been a responsible operator and a good neighbor. They have welcomed R&D as a neighbor and support its work serving young people. It is also important to recognize that opposition to instructional activities on the property did not begin with R&D Baseball.

[03:31:46] The previous equestrian training operation was also subject of objections and challenges during its operation. That history suggests -- Sir, I'm sorry. Your time is up. I'm sorry. And we have two more speakers, Mark Pontiello and James Tramiel.

[03:32:08] you can get started, sir. Staff, I have decided that before we go on break, we're going to take up the R&D baseball issue. I'm going to do that because there's a lot of young people in this room tonight, and they need to go home. I'll go do their homework or something. So I'm going to just move them up, and after that, we'll take a break.

[03:32:28] And I'm sorry, everyone. I know that there are some things that were before that, but sometimes I just try to clear the room, and at this moment, I'm trying to clear the room of people who have school in the morning. That's all. Good evening, sir. Good evening, Chair Randall and board

members. My name is Mark Pontella. I'm a 20-year resident of the Dulles District, and I'm also an electrician. You mentioned clearing the room for these young kids because it's getting late. We had other members of IBW Local 26 here. They had to leave because they get up much earlier than most of us to go to work. I'm not going to belabor the point

[03:33:05] about data centers moving forward. My concern is changing a vote or a decision that you had made a year ago. Promises made, promises kept, all of that language. I think it's important to keep in mind that as Ms. Martin said, there's many tradespeople and businesspeople and citizens counting on work that has already been approved or intended.

[03:33:33] And so we just ask that you honor what you have previously decided you know I didn't have prepared remarks like I typically do when I come up here and listening to everybody for the last hour and a half not yes agreeing or disagreeing with the R&D I wish there was a facility like that when I was playing ball when I was their age but these days my concern is facilities to employ trades people and Loudoun County residents and as Mr. Pallas said, there are probably 500 or more Loudoun County residents doing electrical work

[03:34:12] for their families, providing a good wage and wonderful benefits. And I just, again, ask you to honor a decision you have made previously. Thank you. Thank you, sir. And then our last speaker, our last speaker will be James. I think it's Trommel. I think that's how this looks like t-r-o-m-e-l-l is that what you see on here that what you see we have one minute and so

[03:34:47] James come now or forever hold your peace because now we're going we're like we're literally now done okay so that's our speakers for this evening we are going to um if staff is in the room we're going to go and take up R&D baseball right now and then we will go to closed session uh do two closed sessions, took closed sessions B and C, come back out, take up, normally it is, it's normal to practice for BMIs to go last on the agenda, but there's also a lot of people in the room who

[03:35:23] want to hear the BMI and the go to Mars. And so we'll probably come back in the room, do go to Mars, and then do the BMI, but right now we'll do R&D, and then we'll take a break. I'm sorry? I'm sorry, Golden Substation. What did I say? Golden Substation. Sorry. My bad. My apologies.

[03:35:48] Good evening. How are you? Dan, how are you? It was just a moment to get the presentation up. That's okay. Did I say Golden Substation is what I meant. Also, everyone, this is our first night using the new platform, like we have a new platform on our computers.

[03:36:14] And so, yeah, I'm not gonna say I hate it. I'm gonna say I don't know where anything is. Oh, I see it. If you go to staff presentations, it's way down at the bottom. If you open that up, 14F, and then go over to all the ellipses and go to staff, you see it?

[03:36:33] It's all the way down at the bottom. You see it? You see it? You got it? No, no, no, you don't. Just go, so no, so go to 14F. It means hit the legy item, and then look to the side, go all the way down.

[03:36:49] It says staff presentations, and then the little ellipses are down there, and hit that and hit open.

[03:37:22] The staff should be very proud of me right now. Okay, we are ready when you all are. All right, good evening. Madam Chair, staff is happy to give the full presentation or just provide informational updates, if would please the board. Mr. Kirshner, what do you need?

[03:37:40] Madam Chair, I don't need the full presentation, but if they, if the, how long will it take? About five minutes. Full presentation, yeah, full presentation. Okay. Well, good evening. My name is Matt Kelser with the Department of Planning and Zoning, here to present this application for R&D Hamilton Academy.

[03:37:57] I'm just going to start with a quick refresher of the subject property and proposal. The site is located in the Catoctin Election District on the south side of Route 9. the site consists of approximately 21 developed acres of residential and agricultural land and a zoned agricultural rural one or AR1. The application proposes three minor special exceptions to modify the use specific standards for small business agricultural and rural use for the purpose of operating a baseball training academy. These modifications are to increase the number of employees, increase the permitted structure area, and to reduce the required

[03:38:33] setback of three yards. This annotated specs plot shows the proposed layout of the business operations on site. Indoor training is proposed within the existing agricultural building shown here in blue. The hatch blue area adjacent to this building represents the 7,200 square feet addition to the ag building. The outdoor training field is located in the rear of the property shown in green. Shown here is the proposed outdoor training field. Home plate is situated in the southwest corner of the property utilizing protective netting. At the July public hearing

[03:39:10] the board requested additional information on a number of topics. Staff provided additional clarification regarding the small business use proposed which is a permitted use in the AR1 zone subject to use specific standards. The zoning ordinance allows modifications to these standards through a minor special exception which is why the application is before you this evening for consideration. Staff also provided clarification regarding the site access and improvements that would be necessary, sole access to the site is provided via Spruce Hill Lane, the shared private drive. This drive would need to be improved to meet current facility standards manual and fire prevention code requirements, which are typically reviewed at time of site

[03:39:50] plan. Finally, there were questions regarding potential safety impacts to neighboring properties related to groundwater and propane tank usage. The Loudoun County Health Department has reviewed the legislative application and does not identify any outstanding issues. However, they will review waste flow characterization analysis to ensure the system is adequate for the proposed use. The county and state department of health will determine if the use requires a public well.

[03:40:18] Building and development staff will review safety requirements for any proposed propane storage on site. All of these reviews will occur at time of site plan. As a reminder, the subject property is located within the rural north place type, which envisions mostly agricultural and agricultural supportive uses with limited residential. However, place type guidance in the general plan is clear that non-agricultural uses may be compatible as well if they are provided at an appropriate scale and intensity. The proposed training academy use is not agricultural however staff recommends the conditions to address this guidance from the place type. As the application

[03:40:55] requests modification to three of the eight use specific standards staff finds it necessary to recommend a number of conditions to address compatibility and safety. The major one here to note is the requirement of first site plan which will allow for the analysis discussed in my previous slides. So minor specs are not reviewed by the planning commission and proceed directly to the board. Staff could support board approval at this time provided that the recommended conditions of approval are adopted. Staff is

available for any questions. Thank you. Will you back up to what you said about the fire safety and whether it's a, I missed that part. I apologize. Sure. And the

[03:41:34] informational updates? Yes. So the sole access is provided through Spruce Hill Lane. The drive will need to be improved to meet current facility standards manual and fire prevention code requirements, which are typically reviewed at time of site plan. Okay. Thank you very much. Thank you. You know, we've been doing this a while. Can we go to motion? Because we've been on this for a long time. Can we just, can we go to motion? I'm happy to go to a motion. I'm sure I just don't

[03:42:08] Make sure I'm on the right one here. Now you've got to go back out to go to the motion. No, I've got to print it off just because that's dangerous. I move the Board of Supervisors approve Leji 20-25-0052, R&D Hamilton Academy, Specs 20-26-005, and Specs 20-26-006, and the third one, Specs 20-26-007,

[03:42:39] Subject to the conditions of approval dated July 15, 2026 and based on the findings for approval provided as attachment one and two to the September 1st, 2026 Board of Supervisors' Business Meeting Action Item. I will second the motion. Thank you. Discussion on the motion, Mr. Kirshner.

[03:42:56] Thank you. And I really want to appreciate everybody on both sides of this issue. This is the least favorite part of my job in trying to decide between two different parts of the community as to how you kind of thread the needle. and that's why we do go through a fairly significant, rigorous process.

[03:43:13] I am obviously making this motion and supporting this. I do have a question for staff. They're currently operating under a special event. Do we know if they're operating approximately at full scale, or are we not aware of that?

[03:43:30] And if you can't answer that question, that's fine. Staff isn't aware of the capacity. And that's fine. My understanding is they're operating fairly at that sort of level. And one of the things I did notice about both the public hearing and here is there were really no complaints about how they're currently operating. It's more about what may or may not happen.

[03:43:46] And trying to balance all this, one of the things I do look at, and to the folks who live near there, obviously there has to be a site plan that is going to have to occur. I think a lot of the concerns that were brought up to the community will be addressed in that site plan.

[03:44:02] And whether they can get through that process or not, I guess, will yet be determined. The only question we have as a board to make is, are we going to allow, it is a form of a buy-write use with these three sort of minor specs. One would be, of course, going from four to eight employees.

[03:44:17] The other would be reducing the setbacks a little bit. And the third, what was the third again? That was the... The structure area. The structure. And I, Annette, there is a current structure existing, correct? So there's really, we're not, they're not adding additional structures, they're just adding on to the current one.

[03:44:33] Is that correct? That's correct. And part of that was that one was already partly torn down. Am I correct in that? That's my understanding. So the kind of rebuilding back what was once there. It's a long story, but there was some reliance. They thought they understood, and they were going under a different prospect under the AR-1.

[03:44:51] And then they were told later after they tore portions of the building down, so they've asked to add it back. So I do think that for a lot of folks who say this is incompatible with the AR-1, it's exactly what

zoning does allow for a small business like this. And so, they need these special specs, it's going to help a ton of young people.

[03:45:13] I don't think, I'm hoping that the impacts will not be as, you know, people are fearful. I do think they're operating similar to the way they're going to operate. I do think this applicant may be not as sophisticated at the beginning and through this process and made a lot of mistakes, obviously it's cost them a lot of money, but I do ultimately think they've worked at the end of the day with staff to come up with a package that's a good application with very careful limits and impacts on the neighbors.

[03:45:44] I urge my colleagues to support it. And I do think that it's a very worthy thing, a type of small business that we have and is allowed under AOR. And so I appreciate staff's work on this and I appreciate the comments on this. Thank you. Ms. Bricksman?

[03:46:00] Thank you. Supervisor Kirchner said that this is a by-right use but requires a special exception what is the by right use like what what language allows it to be a by right use yeah so in the zoning ordinance the use is small business agricultural and rural and under the use specific standards for that use there are eight standards listed and if any cannot be met or relief is needed that's when the minor special exception is needed

[03:46:35] So if this use, for example, was complying with all of those, then it would be permitted by right. Okay. I'm sorry. Can you repeat? It's agricultural? Small business, agricultural, and rural is what's in the zoning ordinance. But it's like small business, agricultural, rural.

[03:46:54] Correct. Not that it has to be an agricultural small business. That's correct. Okay. Do you know of any examples of other types of, well, this might open a can of worms here, but can you describe any other businesses that would be buy right, small business use in rural Loudoun?

[03:47:18] And let's just set the wineries and breweries aside. Are there any other types of buy right, small businesses that you can think of? So it's staff's understanding that this type of use, the personal instructional service, was actually added in 2023 to the zoning ordinance update.

[03:47:38] So it's likely the first example. Oh, we added instructional. But there are also additional uses. So in addition to personal service, instructional service, you know, professional office, business support services, there are other uses listed.

[03:47:56] Okay. All right. And has the applicant agreed to the conditions that staff listed? Yes, we've had conversations. That is my understanding. Okay. All right. This is a really hard one for me. Yeah, this is a hard one for me.

[03:48:17] Thanks for answering my questions. Thank you. Mr. Crony. Thank you, Chair Randall. And I want to thank all the athletes who came out. I truly believe R&D Baseball is a wonderful opportunity for the youth in our community, and I appreciate the positive impact they're having on the athletes.

[03:48:36] I really, truly do, especially Dan Oldson and all that he's doing. My concern tonight is about land use. The scale and intensity of this operation and the location, you know, far exceeds what is permitted.

[03:48:53] So it is beyond the small business personal instructional use. The applicant is asking for relief from three of the eight small business use specific standards. For example, the one area is 54 feet.

[03:49:09] It's supposed to be 300 feet. That's a huge reduction in setbacks. And then also the square footage is four times what is permitted, and it doesn't include the parking. Am I correct about that, staff, that the parking isn't included in the structures?

[03:49:28] The parking area would not be included in that calculation, correct? Okay, because somebody brought that up. I also am concerned about public safety. With 200 vehicle trips per day, the expansion of the access road is required to two lanes.

[03:49:46] Right now, it is one lane, and the applicant does not have the right to expand the easement, the prescriptive easement, to meet the fire marshal safety standards. So, you know, I think it sets a pretty dangerous precedent to approve this application predicated on access rights which don't exist.

[03:50:12] There is a lawsuit going through the process. neighbors have sued so um you know we can't ignore that um so i am concerned about public safety you know we have a lot of students that will be using this road and um i think you know good uh land use is making sure that you have the rights to make the changes that are required i'm not willing to wait for site plan approval to look at this. So public safety, I believe, should be a priority for this business. Again, I think it's a wonderful business, but I am concerned about the intensity

[03:50:52] and the scale and the rights to make the changes that are needed for the road so that you can get safely uh to and from the the business thank you thank you mr latourno just briefly on one point that my colleague just just made uh approving the application does not allow the applicant to shortcut the process with the fire marshal as it relates to safety standards correct that's correct so if in fact there cannot be an agreement to allow access to the easement and and widen the

[03:51:30] road such that the fire marshal is willing to approve it, then the application cannot move forward even if the board supports it tonight, correct? That's right. Okay, thank you. Mr. Sainz. Thank you, Madam Chair. I'll continue with that because that was actually one of my questions.

[03:51:47] So how long would that process be? So again, hypothetically, if this is approved and then it goes to site plan and there's the discussion about the fire access and the road clearance, What's that process look like? How long does it take? So that could vary widely and partly because for a number of things that they would have to fix that have been highlighted here, their ability to meet those requirements or not is going to be during the site plan process.

[03:52:11] The site plan could not be approved if it does not meet all of the regulations of the zoning ordinance and of our other ordinances that are applicable to it. So it could go fast if everything lines up and they can put it on a piece of paper and Department of Building Development can check it off and approve it. If things are held up for various reasons, then that process will drag out. All right. And so, correct me if I'm wrong, if I remember correctly, I think we heard some neighbors tonight say they're not supportive of it and they would have to give permission to get the fire access? So, there's a private disagreement about the rights of the easement for this property. And that is what I believe is in

[03:52:51] court. The owner of the property believes they have the rights that they need in order to expand the access sufficiently, the other property owners do not. So then how would site plan and then this court case, are they going to be aligned or one has to wait for the other?

[03:53:10] I'll defer to Mr. Rogers if you'd like to jump in here slightly on this one. Madam Chair. Yes. Yes. The issue in the court case is a factual one determining the width and the number of easements that are

out there for this access road, and that would have to get decided before you can get final site plan approval so that they know that they have the rights in order to have the access that they need. So if I'm hearing you're right, you're saying the court case has to go first, then the site plan? The court case would have to be decided or resolved before the

[03:53:45] site plan could be approved. Okay, interesting. Okay, and I'm assuming staff does not know when this court case is, do we? The case is pending. It takes a while to get a trial date, as you know, but it's about the same time as to get site plan approval.

[03:54:04] Okay, so as of right now, there is no court date set. I'm not aware of one. No, that's correct. All right, thank you. So I don't know how many of my colleagues did go out to this site. I did, and I spent a good three hours out there driving around, talking to the neighbors, walking around, and looking at this whole site.

[03:54:27] I expected, and listen, if the, you know, I will, much more often than not, act as two professionals who know better than I do. So I understand that there has to be some sign-off from fire and rescuing to fire marshal, and that will happen in the site plan, and I appreciate and respect that.

[03:54:46] I expected this to be like a road that was really narrow, that I could barely get down, that was really kind of pothold and stuff. Not at all. Not at all. I was surprised, actually, at how narrow, at the width of the road. If a fire truck's going by, another car couldn't get by.

[03:55:03] But when I was going by and I was in an SUV, another truck came by and both passed each other just fine. No issue at all. Like I said, if a fire truck went by, probably not, but that went by. I also understand that they don't have more than 30 people, 30 clients at a time.

[03:55:21] So I'm not quite getting where the 200 car trips, 300 car trips, 1,000 car trips, if they are, they're not from R&D. Because even if every single person came separately and they're having 30 people, then I don't know where we're getting these car trip numbers.

[03:55:39] And maybe I'm missing something, but I was very clear. I mean, I asked them a lot of questions when I was out there because I really wanted to know. I am, once again, concerned that when someone wants to do something, they are asking forgiveness and not permission.

[03:56:00] I am concerned about that. And I don't know what we need to do to fix that overall. But I don't want to make one business the example for all of them when they do that. I think this is a question that we have to sit down as a board and staff and ask, How do we get in front of things so that they have zoning violations and we're getting behind the eight ball?

[03:56:28] I do not understand. I mean, I saw the parking lot. There's no way that parking lot was there. I don't understand some of the numbers that I've heard from people because that wasn't, and I was out there for quite a while, and that wasn't my experience. I do, so the staff, I have two questions just to make sure.

[03:56:47] nothing could actually get approved until all the things on the site plan were basically checked off. Correct? So we approve this tonight. Nothing happens until the site plan items are checked off, every one of them, correct? Correct. That is correct. Okay. And can you just tell me what happened?

[03:57:05] I mean, were we talking to them about one use and then somewhere in the middle we changed it to the personal instructional use? How did we get here where this has become so convoluted? So the

applicant, when they first approached the county, essentially looked at the constraints of their site and chose a use that they thought best fit the site and its constraints.

[03:57:30] But an applicant cannot choose a use of the zoning ordinance if there's another use that better applies to it. And so they made certain assumptions about what they could and couldn't do based on that first read of things. And under the first couple of reviews, the zoning staff asked for verification, essentially, until we got to, I think it was third review, whenever we kind of pressed the issue and said we need to get an answer on what exactly this is.

[03:57:54] And that is when things shifted once we made a firm determination as the zoning staff of what use was most appropriate for this business. I see. Okay. Okay. All right. I can vote for this based on the site plan issue. Mr. Kirsten?

[03:58:12] Yeah, just thank you, Madam Chair. In closing, I want to say thank you for staff for answering all those questions. I think it's cleared up a lot for the supervisors. I do kind of want to bring something out. I was contemplating not saying this, but I just want to address the PEC and Ms. Ehrman specifically. They have spread a number of misinformation about this, and quite frankly, they should know better.

[03:58:33] They were telling people that there was a violation of the zoning ordinance, and staff has clearly pointed out, and now some of my colleagues have now been cleared up. And if you wanna get up here and state things and be credible, you should know your zoning ordinance and you need to be honest about it and clear.

[03:58:51] It is just to come up and say to us and then spread other information that this is quite frankly a violation of our zoning ordinance is just not true and you lose credibility as a result. Clearly, personal instruction services are allowed. This is three minor specs.

[03:59:09] And as the chair has mentioned, this is an area that is a fairly wide road. Obviously, there's a number of hoops this applicant has to go through. And as was mentioned, the site plan is going to take some time, probably as long as the lawsuit, which will be a while.

[03:59:28] They are currently operating under short-term permitting, which are operating similar as they will. And I heard not a single complaint about their current operations. As a matter of fact, I look back and I remember it was about two to one in terms of the comments for this at the public hearing, and there were a number of neighbors that said, listen, it's kind of nice to hear the baseball hit the glove once in a while.

[03:59:50] I don't think this is a loud noise area. This is probably quieter than a large equestrian center and whatnot. And I'm sorry that some of the neighbors dislike it. I think some of the fear has been pushed forward by people like the PEC who have put these forward, and I'm taking them on directly on this because it was just dishonest, just dishonest.

[04:00:09] So, I appreciate my colleagues voting for it, and I'm hoping that everything can be worked out with the road and the neighbors, as well as the site plan. Thank you. Okay, Mr. I almost said Mr. Motion.

[04:00:28] Mr. Kerstner made the motion. I seconded the motion. All the people who say aye. Aye. Opposed? Okay, if you are a nay, please raise your hand so I can get a number. That's a three. That motion will pass 6 to 3.

[04:00:44] Thank you. All right, colleagues, let's have Mr. Turner read this into closed sessions. Stay there. Read this into closed sessions B and C, please.

[04:01:04] I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to sections 2.2-3711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Dulles Election District.

[04:01:19] I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Sections 2.23711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Dulles Election District.

[04:01:37] The motion made is there a second? Second. The motion made is seconded by Mr. Letourneau. Discussion on the motion? All the people say aye. Aye. Opposed? That motion will pass 9-0.

[04:01:50] Ready.

[04:38:56] Mr. Turner, will you please read us out of closed session? I move the closed session be adjourned, that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[04:39:15] Second. Second. Second. Any discussion? All in favor say aye. Aye. Aye. Okay, all in favor say aye. Aye. Any opposed? Everyone please affirm. And I affirm as well. That motion will pass 9-0.

[04:39:39] Okay, Mr. Terno, you have a motion out of closed session, please. I move the Board of Supervisors and direct staff to prepare a resolution to initiate condemnation and quick-take proceedings as required pursuant to Virginia Code 15.2-1903B for the purpose of approving the proposed public use and acquisition of property located in the Dulles Election District for construction of Dulles West Boulevard, North Star Boulevard to Arcola Boulevard.

[04:40:04] Further move the Board of Supervisors direct staff to advertise the resolution for the October 14, 2026 public hearing. Motion to remain seconded. Discussion on the motion, Mr. Letourneau? No discussion. No discussion. Anybody? Mr. Kirchner?

[04:40:20] No. Sorry. All the people say aye. Aye. Any opposed? That motion will pass 9-2-0. Okay, colleagues, we are going to first do the substation, and then we're going to do the BMI.

[04:40:39] So, would staff please come to the table? Give me one second.

[04:40:57] I feel really organized. Hold on a second, please. Oh, we didn't even do that. Okay. 14B. Yeah. Yeah, it's 14B?

[04:41:14] E. E. 14E. Thank you. All right. It's 14E. You were right. 14E. Staff, do you have anything that you want to tell us, add? We don't know already. Good evening. There haven't been any updates since the previous public hearing.

[04:41:33] Okay. All right. Mr. Sainz, I'm assuming you don't, do you, do you need the, um. No, I'll go straight to a motion. Okay. Thank you, Madam Chair. I move that the Board of Supervise ratify LEGI-2025-0012 Golden Substation CMPT-2025-0005, subject to the Commission Permit Platt, dated July 2nd, 2026, and based on the findings for approval provided as Attachments 1 and 3 to the September 1st, 2026 Board of Supervisors' Business Meeting action item, I further move that the Board of Supervisors

[04:42:09] forward, Leji-2025-0012 Golden Substation Special Exception-2025-0032, Special Exception dash 2025 dash zero zero three three and special exception dash 2025 dash zero one three eight to the december 1st 2026 board of supervisors business meeting action beating business meeting action business meeting for action excuse me second however read the last sentence again i further move that the board of supervisors ford legy dash 2025 dash zero zero one two golden

[04:42:43] substation, Special Exception-2025-0032, Special Exception-2025-0033, and Special Exception-2025-01372, the December 1st, 2026 Board of Supervisors Business Meeting for Action.

[04:42:59] I should make you read it just for kicks and giggles one more time, but that's cool. Okay, the motion has been made and seconded. Mr. Sains, would you open the motion? Thank you, Madam Chair. I'm not going to belabor the point. You've heard many of my comments on this before when we spoke about it earlier in July.

[04:43:18] And I still feel that you heard some of the comments this evening from residents that Dominion says they can't do this, can't do that. When you give them suggestions, I know everything's not an apples-to-apples comparison. However, I feel they still are able to do the right thing and come to the table with a better design than what we are getting.

[04:43:40] So that's why I'm hoping my colleagues can support this item and forward it to the December 1st business meeting for action. Thank you. Ms. Umstead? Thank you, Madam Chair. Does staff have any indication from the applicant how critical time is with this particular substation?

[04:44:04] In discussion over time, we have heard the need. I would not specify a specific time frame. Based on your conversations with the applicant, do you believe that if this is deferred to December, that it will not jeopardize grid reliability?

[04:44:29] I don't know that we can really evaluate that well. My gut would tell me if you were to ask Dominion if they were at the table that they would say yes, but it's not something that we have the knowledge to evaluate ourselves. Okay, thank you. Then, yes, it does. Okay. Ms. Brickson?

[04:44:52] Thank you. I'm going to vote no on this motion because I think that we should be denying this substation application. The proposed substation is not consistent with the 2019 general plan for suburban mixed use place type, nor does Industrial Park specifically consider substations in the zoning designation.

[04:45:16] I have to wonder, I mean, maybe Dominion's been out there because there's pictures that appear to be fairly recent. But the suggestions or proposals in the attachment are wholly inadequate for where this substation is going to go.

[04:45:40] The little bamboo fences that are proposed to screen this massive electrical metal monster from the W&OD are wholly inadequate. And, you know, we have learned that PJM and Dominion and FERC and these folks have been making strategic decisions and plans about these loops and where the power lines will go without engaging the county. As a matter of fact, it was approved three years ago. So if it

[04:46:18] was approved three years ago, I'm not buying that there is a time crunch. PJM approved this three years ago without engaging our community. And so the idea that this is a time crunch, it falls on deaf ears for me. And this is one of the reasons that I brought the initiative to ask that specific staff get

designated now to follow all the PJM and Dominion and FERC, all those agencies as they are planning for this type of infrastructure in communities that they are not engaged with.

[04:46:57] It is now up to us to make sure that we are watching what they are doing because they've been making plans about our community without knowing the ground truth of what our communities look like, how this is encroaching on our communities, on our residential, on our recreational spaces, on our parks, on, you know, even our roads and other businesses. So I'm going to vote against this tonight, and it's likely that I'll vote against it if it comes back in December. It's an inappropriate use. It's actually horrific what this is going to do to that area around the WNOD

[04:47:37] and that bridge that goes over 28, it's so unsightly. And I know they can do better because I know that Supervisor Sains has shared renderings with Dominion about other styles of substations.

[04:47:55] Mr. Brickspin, your time is up. Thank you, ma'am. Mr. Letourneau? Yeah, I would like to split the motion. Like to split the motion? Yes, please. Okay, then we're going to talk about the first half of the motion, which is the commission permit.

[04:48:12] And I am fine leaving Mr. Usain still made that motion. I still second it, and I'm still fine with having seconded that motion. And so we're now talking about the commission permit. So, Mr., would you like to speak on that at all, Mr. Materno?

[04:48:27] I am supportive of that motion, and I have nothing further to say until we get to the other. Okay, this is just a motion on the commission permit at this point then. On the commission permit, all in favor say aye.

[04:48:46] Aye. Opposed? That motion will pass 8-1 on the commission permit. Now we're on the second half of the motion. No joke, read it one more time just because, mostly because I can't find mine. Okay, I move that the Board of Supervisors Ford-Legge-2025-0012 Golden Substation Special Exception-2025-0032 Special Exception-2025-0033 and Special Exception-2025-0137 to the December 1st, 2026 Board of Supervisors Business Meeting for Action.

[04:49:23] So on this item, if you've spoke already, we're not going to go back to you again. If you have not spoken on this item, this part of the item, please put your light on. Mr. Letourneau. Yeah, I'm not supportive of Supervisor Sainz's motion. I want to first applaud him for all the work he's done for his community in and around this area, not just with this application, but many others to try to improve the situation.

[04:49:46] And I absolutely think he is making a good faith effort to do the same here. But I also think that Dominion knew very well that Mr. Sains would probably make a motion like this if they were not able to accommodate one of his suggestions.

[04:50:03] And they did it anyway, not because they don't want to, but because they actually can't. And that's what their documentation to us has shown us. They did, in good faith, pursue options with VDOT because this is VDOT right away, and they got nowhere in doing that.

[04:50:19] So it is not entirely their doing. we can certainly go back in time and say this may not be a good place for a substation. It is literally between several data centers right in a row, and clearly the thinking has changed a little bit on this, and so that would be a reasonable discussion to have three or four years ago, but we're now at a point where this is a reliability substation.

[04:50:44] If we need to send messages about specific data centers, then we should be doing that but not on reliability substations because it is a fundamentally different situation and we are jeopardizing everybody other than data centers plus data centers, but the data centers have generators and the other people don't.

[04:51:03] So again, you know, going back to the drawing board and starting over on something that's a reliability substation when you're this far into the process, is, you know, have we learned a lot over the years about how this has worked and what PGM was doing at the time?

[04:51:18] Absolutely. And the points that my colleagues are making are absolutely valid about that. But that still leaves us where we are today. If I thought that delaying this to December would get a better product, and I will remind everybody, I voted to delay this to this meeting, which was a subject of some debate up here at the time, because I wanted to make an attempt to try to get this as good as it could.

[04:51:39] But there have been improvements committed to the substation to the extent that are physically able, and now we've gotten to the point where this is as good as it can be. And, you know, it may be a frustrating situation, But I'm not going to jeopardize my constituents' ability to have refrigeration because I want to send a message.

[04:52:00] So I'm not going to vote for this, and I hope there'll be an alternative when it's disposed of. Mr. Kirshner? Yeah, so I, too, want to applaud my fellow supervisor from the Sterling District.

[04:52:17] I think he's done a really good job on trying to apply the maximum pressure, and I think that's one of our jobs here. And I really debated on this vote, but I do think I agree with Supervisor Letourneau that the data centers are not the ones that are going to be impacted here. At the end of the day, it is the residents if we indeed, and we did have a flicker and a brief black, or I don't even want to call it a blackout, but a power issue not too long ago.

[04:52:44] And, you know, that could be a serious problem if we don't continue to allow areas of reliability. This is a different type of substation than I think the ones that this board has been denying. And I think that we have to look out for the residents first.

[04:53:03] And this is one of those that I think is, you know, we increase the delay here. I think there's a lot of the screening that has been done in a pretty good way. Perhaps not as much as we would like to see. Certainly not as much as Supervisor Sainz wishes to see.

[04:53:18] But I think at the end of the day, we have to take certainty over the perfect. And I think that's why I would oppose this motion. Wait, Chair Randall. Miss, okay, don't, how about we, okay, but.

[04:53:36] All right, well, just one more time. Miss, Miss, Mr. Crony. Thank you, Chair Randall. So I'm going to support Supervisor Sains because I do think we can do more. So we can do better.

[04:53:53] I think that there are visual impacts to the W&OD trail that can be mitigated. And there are line of sight concerns that the planning commission identified that weren't addressed to the W&OD trail in Route 28. And I hope that we can resolve them.

[04:54:10] I think this gives some time to get to a point where we can potentially resolve them. I did like some of the renderings that Supervisor Staines presented. And this is a different time. You know, we, the residents deserve better.

[04:54:27] This is our park. So I think, and the site from Route 28, you know, you look at Route 28, let's see if we can improve that. Because there's a lot of industrial development along Route 28. I'd love to be able to showcase this as an example of what can be done to make Route 28 a gateway.

[04:54:48] Thank you. Mr. Turner? Thank you, Madam Chair. I will not support this and am prepared to make the second motion in the package to approve Golden later on, assuming this, if this fails. I, too, commend Supervisor Sainz.

[04:55:06] He's done Yeoman's work, as he should in this application in his district, and I applaud that. In the summer of 2022, PJM informed Dominion Energy that they had underestimated their infrastructure needs by a factor of 10.

[04:55:23] Dominion had submitted a five-year plan on the end of 10 years of general decline in power demand, a slight decline in power demand, and Dominion consistently overestimating its infrastructure needs to PGM. And what caught them by surprise is PGM said, you're not going to need \$65 million in infrastructure.

[04:55:41] You're going to need \$650 million in infrastructure. And Dominion told the data centers, your power is frozen until we figure this out. And a few weeks later, they came back and said, you're now constrained to 20% of what your electricity service agreement says for the foreseeable future.

[04:55:57] That constraint was lifted in December of last year. The loop, Aspen, Golden, Mars, and Wishing Star, is absolutely critical. There's currently 9.3 gigawatts of power coming into Loudoun County.

[04:56:13] A simple straight-line extrapolation based on the last five years of increase in power means we're going to need 14.2 gigawatts of power by 2030. And that does not take into account AI. If this loop is completed, we'll have about 15.7 gigawatts of power available in Loudoun County.

[04:56:32] Just barely enough, not counting for exponential increase in AI. This grid reliability project of these four substations is absolutely essential for overall grid reliability for every single man, woman, and child in Loudoun County.

[04:56:49] Golden is part of that. I absolutely agree with the sentiment that Dominion can do better, that Dominion up until now has basically held their cards close to the vest for a long time. I think we've made real progress in the last couple of months with the informal group that we put together that's talked about these issues.

[04:57:08] I think legitimately they have done the best they can with this substation for Golden, and we need to make a decision and move forward with this because this affects every person in Loudoun County going forward. Thank you. So I'm going to support Mr. Sains' motion, because it's not, this motion is not the end of the story.

[04:57:28] This motion is saying, we believe you can do better. I think Mr. Kirshner's question was a very good question. What does this timeline look like? And the meetings with Dominion have helped, and Dominion, I think, overall, well, not overall, but Dominion has, they've come to meetings and it has helped.

[04:57:51] Part of the problem is Dominion's kind of called wolf so much, I don't always know where they're at or what to believe at that moment. And so everything is always the emergency right now. And if we don't have this, it's going to be an emergency today. And I never know where to place that.

[04:58:09] I'm also frustrated because it feels like both for Dominion and sometimes for data centers, we have to yell, scream, holler, convince, control, talk, you know, we find the pictures to send, and we do well before anything's done.

[04:58:27] I mean, it seems to me that if Mr. Sains can find ways to make this better and send pictures, Dominion could have done this already, to be quite honest, and I don't know why it takes, it shouldn't have to take this much effort. Now, I would respectfully disagree with my colleague from the Algonquian District because we can't just kind of throw out grid reliability out the door altogether. Grid reliability is, you know, medical issues. People have medical

[04:59:04] issues that rely on the grid and power to be there. So I want to be careful not just to, you know, throw the baby out with the bathwater. At the same time, it would help me to know what their timeline is. And I don't know that they are as far as they can, we've gone as far as, they've done as well as they can go. So I'm also, to a large degree, I think the, I don't know if Mr. Block does speak for the whole community, but he seems to speak to be, in many ways, a spokesperson. And what I've heard him say many times is

[04:59:42] delay not deny until we get some things correct and so I'm one supporting the district supervisor but I'm also supporting the community and what I've heard from the community over and over again I have not heard from the community deny I've heard from the community delay and they've said why and I think the whys are what we might be able to work on between now and December so I will support I will support the motion as Mr. Sainz has presented it. Madam Chair, may I ask for a point of

[05:00:20] clarification from the county attorney? Yes. By law, it's my understanding that by law, the energy company is required to first serve residents before they serve other customers. In other words, if there is an outage, the residents are served first. Is that accurate? Mr. Rogers, do you know that is correct or not? I do not know the answer to that question. All right. Thank you.

[05:00:51] All right. Mr. Sains, would you like a closing? Thank you. Thank you everybody for the commentary. I'll just again say with us approving this tonight, with us forwarding it to December, This is not going to change the process that they're going to have to go through.

[05:01:10] Let's be real. They're not going to be moving dirt tomorrow if this is approved. They still have to go through a whole lot of other things to get this done. So bringing up the real liability, yes, that is an issue. However, again, this is not going to change if we approve it tonight or approve it in December.

[05:01:27] But by forwarding to December, again, this is going to show Dominion that we're not playing, that you guys can do better, should do better, with your designs. And you can start with this one. Thank you. Thank you.

[05:01:43] All right. Remember, this is just the second part of the motion because we've already voted on the first section. All in favor, please say aye. Aye. I think I counted four. Ms. Umstead, were you an aye? Did I hear an aye down there?

[05:02:01] Yes. Okay, so Ms. Glass, I think that was four. That's four, right? Mr. All in all opposed. No. No. Okay so I'm thinking I'm counting four five if I'm counting that right. I'm going to be an I Madam Chair. Okay so then that's five four. So then that will pass five four with Mr. With Miss Umstead, Mr. Kirshner, Mr. Turner, and Mr. Letourneau voting against. I think that's what I just heard. Yes. Okay. All right. Thank you.

[05:02:39] Okay. And now we're going to go to the BMI, which is item 14G. Between Ms. Crony and Ms. Bricksman, normally what I do on this, on BMI, is they say you've got about like two minutes to describe, to explain the BMI, and then I'll go to somebody for the motion.

[05:03:06] You all can, the same person that can describe it can do the motion, or you guys can do it differently. I don't, it's fine with me, however that works. Would one like to describe, and one like to motion? Who's making, who's doing what? Ms. Brickson, would you like to take two minutes and describe, and then Ms. DeCroning do the motion?

[05:03:24] I will describe, and Supervisor DeCroning can do the motion. This BMI directs staff to prepare an amendment to the 2025 data center grandfathering resolution, which provides that effective upon adoption of the proposed amendment, The grandfathering resolution's application shall cease with regard to any pending administrative applications for data centers, data center uses subject to any vested rights or other legal entitlements that the county may recognize.

[05:03:49] The county attorney's office and senior county staff reviewed the proposal and provided very helpful feedback that guided the final version of this BMI. And I absolutely appreciate their assistance in ensuring that we can potentially bring these applications into the public process.

[05:04:08] I know that staff's motion is to bring the proposed amendment to the October 6th business meeting for a final decision. I think that this, I wish we could do it earlier, but I think that's what staff believes would be the timing that they need.

[05:04:28] And I think that's about it. Thank you. All right, Mr. Crony, would you like to make a motion? Chair Randall, I move that the Board of Supervisors direct staff to prepare an item and accompanying resolution for the October 6, 2026 Board of Supervisors Business Meeting that amends the resolution of the Board of Supervisors of Loudoun County, Virginia, adopting grandfathering rules for ZOAM 2024-0001, Data Center Standards and Locations Phase 1, adopted on March 18, 2025 by adding provisions for the immediate loss of grandfathering status for administrative

[05:05:08] applications upon adoption. Motion's made. Needs a second. Second. Motion's made and seconded. Mr. Crony, would you like to have an opening? Yeah, thank you, Chair Randall. So I support retiring the data center grandfathering resolution for administrative applications to give citizens their voice and protect the health, safety, and quality of life of the public.

[05:05:34] Residents deserve a voice in what is built next to their home, schools, and parks. Loudoun is oversaturated with data centers. We have 250 data centers on the ground with more in the pipeline. Residents are telling us enough is enough.

[05:05:52] Why should Loudoun have to shoulder the burden of all the data centers to serve the world? The community is suffering with all of the high-voltage transmission lines and substations that are needed to serve data centers.

[05:06:08] Aspen to Golden, Golden to Mars, Valley Link North, Morrisville to Wishing Star. Those are being proposed near homes, schools, parks, farms, and our environmental and historic resources. We have 95 substations, and we need 30, 30 in the future, 30 substations.

[05:06:28] Our regional power grid is at a breaking point, and residents are facing the compounding noise and health impacts, health and safety impacts. Loudoun has supported this industry for 26 years.

[05:06:44] To say that we are not supporting the industry is ridiculous. The industry had 25 years of by-right data center development, 25 years. We didn't expire that until March of 2025.

[05:07:01] We need to balance the interests of the community with the interests of the data center industry. I would say people say there are costs to the industry. The industry has invested. What are the long-term costs of data center development on the sustainability of the county over the next 20 years?

[05:07:20] What about the quality of life costs? What about the environmental costs? I believe the protection of the health, safety, and the public is a key responsibility of this board. We are here to represent the public. There is no requirement for grandfathering.

[05:07:40] It is a choice. It is discretionary. We made the choice to grandfather administrative. I did not agree with that in March of 2025. I think we should end all administrative grandfathering.

[05:07:56] It was a very generous grandfathering. It was three years. Why did we do three years? I don't know, but I think we should expire it early so that we can look at the impacts of the data centers on the community, of the applications on the community. Residents deserve a livable community.

[05:08:17] Thank you, Chair Randall. Thank you, Mr. Crony. Ms. Brixman? Thank you. Well, I will associate myself with Supervisor Crony's comments. The community has been begging us to stop the sprawl, and this is one more tool in the toolbox that Supervisor Crony and I decided to work on together.

[05:08:39] We really do need the industry to stop gobbling up all of our developable land. By not having that land available, we can't diversify our economy, we can't help small businesses, we can't build more attainable housing.

[05:08:57] We only have a finite number of acres of developable land in the county. And the pressure that this is putting on other areas of the county that we want to protect is becoming extreme. And the warehouse next to Percival is just one example of that.

[05:09:17] I, I'm kind of tired of hearing about the specter of lawsuits. I think that those are bridges that we cross when we get to them. And I think that after working on this with the county attorney's office and some others in the community, I think that we are on good legal standing.

[05:09:38] And I think that, you know, I'm tired of hearing that the big corporations making investments here are more important than the community and those that want their community to be livable. I totally reject that world peace is dependent on 17 million square feet of data centers in Loudoun County.

[05:09:57] As Supervisor Tacroni said, we don't have to have all the data centers in Loudoun County. We have our fair share. And yes, we've done some things to get managerial control, but again, the community is begging us to do this.

[05:10:16] And the community is begging us to use every tool in our toolbox to make sure that we get control over this industry that's been running roughshod over our community. And I hope that my colleagues here will agree that it's time to expire the grandfathering clause.

[05:10:33] Thank you. I need a, Mr. Rogers, I need a point of information or, no, that's not right. It's a point of clarification. It's just been mentioned twice that, well, indicated twice, and almost said that there was agreement from the county attorney's office.

[05:10:51] Would you characterize that as being correct? I did discuss the resolution with both Supervisor Briskman and Supervisor Tacroni. That's about as far as I would go.

[05:11:07] I did not work on the BMI. Okay. All right. So it was a discussion, but not an agreement of anything, and you didn't work on the BMI. Okay. Thank you. Ms. Umstead. Thank you, Madam Chair. Hard as it is to believe in our system of government, even corporations have constitutional rights, we have led this industry to believe for the last 18 months that their administrative applications were going to be processed properly.

[05:11:47] Now, 18 months after they have been investing most likely tens of millions of dollars, we are about to say, sorry, fellows, the rules have changed. And I think with respect to both of my colleagues, supervisors, to Crony and Briskman, whom I truly like, I think this is reckless.

[05:12:16] I think we are making a big mistake if we move in this direction. We heard tonight from representatives of 500 Loudoun County families that this has the potential to upend jobs, throw people out of work.

[05:12:36] I don't want to see that. I don't think any of us up here want to see that. But this is the kind of thing that happens when 18 months after you've made a decision, you decide you're going to change your mind and pull a 180.

[05:12:52] I think this is not just a violation of data center rights, but a violation of the rights of those employees, those union members, who have signed up in contracts to work on these projects.

[05:13:09] And I think it is short-sighted. and I will not support it. Thank you. Thank you, Ms. Umstead. Mr. Kirshner? Thank you, Madam Chair. First of all, I want to start by saying I agree with one aspect of a lot of this discussion. We certainly have our share of data centers in the county. Obviously, it is an industry that, very much like the Industrial Revolution, is booming and growing incredibly fast, and we are all trying to react properly to it. But I also want to set the record straight a little bit. One percent of the land in Loudoun County is used up by data centers. Nearly 50% of the revenue is produced by

[05:13:48] data centers. There are very few, even under this grandfathering clause, that remain to be built unless they come in for a special exception. This is purely a political tactic by these supervisors. As the other lawyer on the Board of Supervisors, Supervisor Umstead, the senior supervisor to my right? I can't agree with her more. This is a reckless, ill-thought-out, not following legal counsel. I'm going to tell you this right now. Supervisor Briskman and Supervisor Tacroni's

[05:14:24] motion here would lead Loudoun County down a path of litigation, not in the millions, in the billions of dollars. And I know for a fact that a number of attorneys who do land use litigation are getting calls by the dozens right now because of this motion. You want to talk about how upset the local taxpayer will be and the resident of Loudoun County be when they get a tax bill that's five times the size because we have to pay for a ridiculous motion like this because we get sued and we end up in circuit court and we lose. And that's essentially what

[05:14:58] this does. And hear me straight. This motion, this resolution is like playing Monopoly when you own boardwalk, and you own Park Place, and you go round and round and pass go and a couple hundred dollars, and then all of a sudden, when you're ready to buy houses or put a hotel on boardwalk and Park Place, the other players of the game, they say, no, you can't do that. Well, in a game like Monopoly, that's cheating. In real life, that's illegal, and quite frankly, it's litigious,

[05:15:34] and it will end up being litigious. And honestly, this is not a debate over whether Loudoun should have standards for data centers. We've been working on that. We're entering phase two. We should have strict standards. We should have major setbacks. All of that, which we have been tackling. But this grandfathering vote is not a vote to individually approve data centers.

[05:15:57] The motion was thoroughly and fairly debated before being approved through a democratic process. And people have relied on it, as Supervisor Umstead said. It was a decision about how Loudon would transition applications already in the process when we changed the zoning rules.

[05:16:12] These are different questions. Now they want to change the rules in the middle of the game. Mr. Letourneau? Thank you. So there's really two issues that we're kind of looking at here. The first one is grandfathering, which I'll get to in a minute. The second is simple.

[05:16:29] We have to take it out of the context of grandfathering in data centers, and we just have to look at it in the context of the rule of law. The board made a decision. Agree with the decision, disagree with the decision. Like any other legislative application, legislative land use decision, we made the decision, we made it 18 months ago.

[05:16:46] If we had a housing developer in front of us and we approved their land use application today, and then 18 months from now we decided, nope, circumstances have changed, never mind, you can't have it, how would you all feel and what would you all do? We know the answer to that.

[05:17:02] We know it's illegal. It's not even a close call. You don't have to be a lawyer to know that. I respect my legal colleagues. But I've been doing this a long time. I know weighing you pretty well by now. You can't reverse your decision you made 18 months after the fact. You just can't do it. You can disagree with it.

[05:17:18] My colleagues here both voted against it. They should say so, and they should say so proudly as they do. And I'll get to the substance in a second. But you can't undo the decision. That's not something you can do. So at the end of the day, the rule of law is hardest to defend when there's an angry mob coming at you and when we're trying to accomplish something that people want.

[05:17:39] And I know that we are, and I know that's what their intent is. But that's when you really get put to the test about doing the right thing. And the right thing here is to follow the rule of law because we took an oath to do that. Even though we don't always like the outcomes of the vote we took, we took an oath to do it, and I take it seriously.

[05:17:56] Now, on the issue of grandfathering, I do want to just remind folks, look, if this were a resident and they wanted to build a garage and they went through the process and they paid the county \$10,000 of non-refundable money and they waited nine months, and then somewhere in that process, the Board of Supervisors came in and passed the Zoning Ordinance Amendment and said, you can't have any more garages.

[05:18:18] This is the debate we had about grandfathering. We said, okay, that's not fair. We can't treat people like that, no matter who they are. And so we're going to have a point in time where, from that point forward, just like we did tonight on the capital intensity factors that this is going to take place. And we did that actually to protect ourselves so that we had a legally sound zoning ordinance amendment that came forward and it wouldn't be considered a taking but we also exempted every data center that's within 500

feet of a residential home which was an important exemption so virtually all the data centers that we're talking about in terms of grandfathering

[05:18:55] are not ones that are really in those areas that are in residential areas there's one or two that we're debating for different reasons but not because of grandfathering and then we said okay it's as of the the the board's public hearing on this because at that point you should know what's happening now could we improve this process on by right absolutely let's look at that let's look at transparency and let's get a public legal opinion on this but i think we all know what the answer is here miss glass thank you madam chair um i was one of

[05:19:31] the supervisors that voted against grandfathering and listening to my colleagues on when we talk about the terms of of the law and I definitely am not a lawyer and it's it's an issue where we have our constituents we also have our businesses that are you know in our area and they are looking for us to do the right thing.

[05:20:12] We're trying to do the right thing here. I think when I was having the discussions with my colleagues, it was, okay, yes, I know that we talked about grandfathering with the applications or even the businesses that we're looking to build but haven't gone through the entire process or they haven't, you know, they haven't gone, you know, put their application in and that sort of thing.

[05:20:51] I was wondering, are those the ones that we could look into and say, you know, at this certain point, if they haven't gone through the process, you know, Would they be the businesses or the application, no, it's not even application, that would not be able to go through the process if they haven't had their permits, that sort of thing?

[05:21:24] It looks like I may have been looking at it a wrong way and probably should have talked to Mr. Rogers on those questions that I had.

[05:21:49] So I am torn in between what I should be doing right now. So I know we have a couple more people that are going to talk, but I will listen to what my other colleagues will have to say and then make my determination.

[05:22:14] So there are a couple things set up here that I couldn't agree with more. We don't just have our fair share of data centers. We have over our fair share of data centers in Loudoun County. And Mr. Crony said this, and she's right. We've been doing this for 26 years in Loudoun County, and I think sometimes people forget that.

[05:22:32] And I will say that 26 years ago, 20 years ago, 10 years ago, 15 years ago, five years ago, not even two years ago, was the community saying what they're saying to us right now. In fact, for the most part, the community was often saying to us, we don't want to see homes.

[05:22:48] Please build data centers instead. That's what we were getting for a very long time. We've been doing this for a long time. That's why I say all the time, I've been voting against data centers before it was popular to vote against data centers. I've been voting against data centers since I stepped on this board in 2016.

[05:23:04] Some of the largest fights I had in my first term were people telling me, if we don't vote for this, we're going to lose the data center industry. And I'm saying, no, we're not. We're not going to lose this

industry. Is anybody around with a true north vote? I mean, I think on the true north vote, I may be the only person on this day who voted against true north, as I sit here right now.

[05:23:23] I think I am. I think everybody else in this day is who was here voted for True North. I said who was here. I'm the only person who voted against True North. Do we see a data center across from one Loudoun? No, we do not, because I worked really hard with the Peterson Group and convinced them to maybe build homes instead of data centers.

[05:23:42] I have been voting against data centers for a very long time in Loudoun County. I'm talking. I'm talking. Excuse me. I'm talking. I've been voting against data centers for a very long time in Loudoun County and I'm and I'm proud of my votes. Have I got any wrong? Yes I have. There were a couple of them there are some that I wish I could take back but overall I have been voting against data centers in Loudoun County for a long time and when I voted for them it was land use it was a land use issue because we really didn't have any other tools to use. Of all the things that have happened in Loudoun

[05:24:20] County one thing we can hang our hat on is we have never ever ever used one cent of taxpayer dollars and pay that to a data center. We've never done that in Loudoun County. We don't pay incentives and we don't have tax breaks for data centers in Loudoun County. They do that at the state, but we don't have that in Loudoun County. The one thing I never want to start doing is paying data centers to be here. My fear is if we do this tonight and we're taken to court and we lose, not only are we paying the data centers money, but then they can still bill it anyway. So now we're using taxpayer money to pay data

[05:24:59] centers. So Ms. Bricksman, Mr. Crony, I'm going to ask you all, would you consider this as a friendly amendment, that we direct the county attorney to prepare a moratorium for the Board of Supervisors, I'm sorry, direct the county attorney to prepare a moratorium for the October 6th meeting that will provide a legal opinion on the amendments to the resolution for adopting the grandfather's rules of ZOAM.

[05:25:30] So in other words, I'm asking you all for a friendly amendment that allows Mr. Rogers to go and give us a legal opinion on this item and bring that back to us October 6th.

[05:25:45] Would you accept that as a friendly amendment? It's a yes or no answer. I said moratorium on accident. I meant the grandfathering. I apologize. Isn't that what that motion does?

[05:26:00] No, it does not. Well, let me ask this. Mr. Rogers, how do you, when you read this motion, do you see this motion as go do a grandfathering resolution or do you read this motion as go give us a legal opinion on whether we can do it or not? The motion requests that staff come back with a resolution to do the action requested.

[05:26:22] So it's not asking for a legal opinion. It's asking for you to go do it. I'm saying, I'm asking the two of you, would you accept a friendly to allow Mr. Rogers to go give us a legal opinion? That is what I'm asking you.

[05:26:40] Point of clarification. So it's in addition to writing the resolution. So a resolution and a legal opinion will come back? No, we do not write a resolution until we get a legal opinion first. I would accept and I further move to a legal opinion.

[05:26:56] No, no, it's not an I further move. We would not write a resolution until we get a legal opinion first. You will not accept that. Okay, then I'm going to make a substitute motion then. I move the Board of

Supervisors, Rector County Attorney, to prepare, I'm not saying this well, for the September, prepare a legal opinion to be brought back to us at the October 6th Board Supervisors Business Meeting that provides for a legal opinion on amendments to the resolution of the Board of Supervisors for adopting

[05:27:36] the grandfather rules of ZOAM 2024-0001 Data Standards and Locations Phase 1 that was adopted on March 18, 2025 by adding provisions for the immediate loss of grandfather status for the administrative application upon adoption.

[05:27:54] Second. Okay. Thank you. So, substitute motion now is that Mr. Rogers will go and give us a legal opinion because to say we worked with the attorney, that doesn't mean that he said that this was something that he would legally recommend. The staff will always work with us on a motion. That doesn't mean by no means that the staff agrees with that motion or that that motion is seen as a legal opinion. That's not what that means. We have a wonderful staff and they work with us on the motions and that's all they do with that. I will also say that I'm not an attorney.

[05:28:34] We have, the Board of Supervisors has two employees. We have a county administrator and we have an attorney. And I am not an attorney. And it would be foolish for me to not listen to an attorney who has been doing land use for 35 years when he tells me that if we don't do something or if we do do something, we could end up in court.

[05:29:01] I don't believe I should play roulette with the taxpayers of Loudoun County's dollars. That is not something I believe that I should do. And so when we did the grandfathering resolution, no, it was not required, but we used legal advice to do it, sound legal advice to do it.

[05:29:21] I sat down with our attorney, and we asked him. It wasn't kind of done willy-nilly out the blue. It is not appropriate to purposely go to court. I have heard one of my two colleagues say, and I quote, this is a quote, I want to push the envelope.

[05:29:42] I don't want to push the envelope of taxpayer money that will allow the data centers to be built anyway. Mr. Rogers, what I would say to you is this. Look under every stone. Look behind every curtain.

[05:29:59] turn over every rock. It has been a year and a half and the mood and the nation has changed and the state has changed. If there is anything there that you can find that puts us on solid legal ground, come back to us and let us know. Maybe there was something with due respect that might have been missed before. Maybe there's something we just don't know. I know Mr. Crony mentioned before that she had seen some other localities that had done this. Maybe talk to the county attorneys in those localities. Whatever. Let's look at it and see. And when you come back

[05:30:38] with your legal opinion, that is what I want to hear about whether or not this can legally be done because I have no desire to spend millions of dollars of taxpayer money and then end up in court, I mean, end up with data centers at the very end anyway.

[05:30:58] That's not something I want to do. Madam Chair, I have a request for clarification. Are you asking for my legal opinion to come back to the board in the October 6th board package, or would you like it to be sent to the board as an attorney-client privilege memo?

[05:31:16] I think it would be sent to the board as an attorney-client privilege memo. I would actually, I might actually ask it when we get back to the board without objection for the legal advice that you're going to give us to be heard by the public.

[05:31:32] I think that you can give us a memo and then we'll come back to the board. I'll ask without objection. I think it's important that the public hears the legal advice we are receiving and that we are making decisions from that legal advice. Thank you. Thank you. Madam Secretary, I'm sorry, would you accept it friendly to that?

[05:31:48] Will I accept the friendly to your substitution? I wasn't going to come to you next. Give me a sec. I was going to go to Mr. Tarano next. Yeah, I'm in support of this motion. I did want to just also add, though, I also feel the frustration about exactly where we are on by right approvals and what the process is.

[05:32:11] Now, we've put staff in a difficult position. They're coming back to us with a document. We've all gotten communication from the county administrator about that. I do question whether we can have a discussion about process and transparency around that.

[05:32:28] I don't know that my request would be a friendly amendment yet because we haven't gotten the answer to the underlying question. If the answer is, as I presume, which is that no, you can't go back on an 18-month-old decision and reverse it without legal consequences, then I would ask that we ask staff to propose or at least discuss changes to process to try to allow for more transparency and so that we understand exactly the standards by which an application is being judged, whether it is in fact grandfathered or not.

[05:33:05] I can make that as a friendly now As a further direction I don't want to overload The county attorney with trying to do All of this in a month So I kind of defer to your judgment Madam Chair But that's what my intent is I just want to state that For the record If you're asking I'd rather we just let this stand As it is and so let him come back to us But I kind of lay down the intent to do that But I do agree I am in agreement with what you're saying Okay. Ms. Fricksman? Thank you. I'm kind of confused by the motion, so I'm going to move

[05:33:41] that we recess so the motion can be written and printed out and put on the dais so I actually understand what I'm voting on. That's absolutely fine. So I move to recess. Well, that needs a second. Yes, I know, Roberts Rose, but thank you. I have no, do you guys want to help me write this out, Mr. Rogers. Okay. Let's give it 10 minutes. Is there a second to recess? Is there a second

[05:34:08] to recess? So let's recess for 10 minutes. Mr. Letourneau has to be back. Everyone can be back

[05:47:05] of the day is. Mr. Letourneau, Mr.

[05:47:25] Kirshner, come on back guys. Yes. Thank you. Okay, all right, we're back and I'm going to read the motion. I moved the board, which is a substitute motion. This is a, this is, I offered it as a friendly, wasn't accepted as a friendly, so it's now a substitute motion, so now this is the motion.

[05:48:02] I move the Board of Supervisors direct the county attorney to prepare a memorandum for the October 6, 2026 Board Supervisors' Business Meeting that provides a legal opinion on amendments to the resolution of the Board of Supervisors of Loudoun County, Virginia, adopting the grandfathering rules for ZOAM 2024-0001 Data Center Standards and Locations Phase 1, adopted on March 18, 2025, by adding provisions for the immediate loss of grandfather status for the administrative application upon adoption.

[05:48:34] I further move staff bring back a public inventory of every remaining administrative application claimed to fall under the 2025 resolution, including location, status, and square footage. That

was already, Mr. Turner, are you still the seconder on that? Second.

[05:48:49] Okay. All right, so it would not be logical to say go do this without a legal opinion of what would be the consequences of doing it. And although my colleague, Mr. Crony, keeps saying it is legal, we can do it, there is a difference between what you have the right to do and what is right to do.

[05:49:15] When we're in budget cycle, we have the right to lower the real property tax rate to 30 cents. And we probably get a lot of people that would say, good job, but then we'd have a fallout from that. The fallout would be that we wouldn't be able to offer the same amount of services, that people would lose their jobs, all types of things.

[05:49:35] So just because something, you have the right to do something doesn't mean you ignore if it's right to do and what the fallout is. to go and say we take grandfathering off of everything, or even if we had done that back in March 2025, it could have and probably would have landed us in court.

[05:49:57] And we probably, very likely, very probably would have lost. And in losing, we're going to be paying a lot of money out. That is a concern to me. And then the data centers build anyway. There has to be a longer view than the moment.

[05:50:16] I completely, completely, completely agree, based on basically what Mr. Crony says. After 26 years of doing this, most of them by right, as she said, and she is correct, we have our share of data centers. We have our share of data centers here.

[05:50:32] We do. And there are a lot of consequences to having these data centers here. But one of the consequences that I don't want to add on top of it is now we're paying out taxpayer money for them to be here.

[05:50:47] That is not logical. It doesn't make sense to do that. And when people say you have to listen to the public, well the public, one maybe doesn't want them, I hear that, but I have a feeling what they would want even less is paying millions of dollars and still getting them, right?

[05:51:05] That would be something they really don't want also. The second part, and thank you for the second part, Mr. Kirshner, is because we keep hearing there's hundreds more in the pipeline. There's not hundreds more in the pipeline. There were 23 grandfathered that night, and I'm not sure if all those 23 are ever coming for a lot of reasons.

[05:51:27] And so when we hear there's hundreds more in the pipeline, we really should correct that, because I think that causes anxiety that people don't want to have and don't need to have. So let's correct the record and see how many are actually under that and where they would be.

[05:51:43] As Mr. Letourneau said, they would largely not be near homes, but we still don't need to have any more anyway. So let's do this in a way that if it works, we'll not end up in court. Mr. Crony?

[05:51:59] Thank you, Chair Randall. So I think looking at the grandfathering, you know, we grandfathered for three years. We gave a three-year grandfathering resolution for the ZOR in 2023 that was very generous.

[05:52:16] Why did we give three years for this grandfathering? So I think looking at expiring it early makes sense. Grandfathering, as I mentioned to Chair Randall, is a choice. It's discretionary. It's not something that is legal per state law.

[05:52:32] What is legal per state law is the vested rights. Grandfathering and vested rights are separate. Vested rights cannot be taken away. And there is a vested rights determination. I liked what one resident said, we should have an audit of what is vested and what is not.

[05:52:50] That would be really helpful, too, to do that research. But ending the grandfathering resolution early still gives data centers the right to determine vesting rights and to go through a special exception process.

[05:53:07] They can still do that. What we're talking about is administrative applications. I truly believe that having data centers as an administrative application is the wrong path. They have a huge impact on the community, and I think that we should have always had them as a special exception coming before the board.

[05:53:30] That is our legislative right. That's why we're here, to listen to the community and to review applications. And I'm not reckless. I really took offense to one of my colleagues who called me reckless. I am not reckless, and I am not grandstanding.

[05:53:48] I am standing up for the residents. That is what I am doing. I am standing up for the residents of Loudoun County. And that, I will always say that. I put a priority on the residents and they're asking for relief from data centers and electrical infrastructure. I want to look at expiring the grandfathering earlier than 2028 of March. Am I correct, Leo? It would be 2028 of March.

[05:54:16] That's correct. It's either February or March of 2028. And there are 17 applications, according to the county staff, that are grandfathered still. That's what county staff said. I think we were going through 17 million square feet or 10 million square feet.

[05:54:33] I don't know what the number is. But it is still relevant, and it still has an impact. And I do think looking at expiring it early is something we should do. Thank you. Thank you. Ms. Brixman.

[05:54:49] Thank you, Madam Chair, and thank you for getting the motion printed out. Actually, now that I have had time to understand your motion, I probably would have accepted your friendly amendment. And so I would offer a friendly amendment that the staff, that we direct staff to actually come back with a resolution for the October 6, 2026 business meeting to amend the resolution adopting the grandfathering as was in our original motion.

[05:55:20] Because what I don't want to see is us have to wait yet another month or two. For example, if the legal staff comes back and says, okay, we figured out a way that you can legally do this, I don't want to have to wait another meeting or two for them to come back with the resolution.

[05:55:39] So I would offer friendly that a companion resolution does come with the legal opinion if you would accept that. No. Okay. We will have to then wait I don't want to take up your time as to why I'm saying no. You're in your time so I don't want to say no. That's fine. I think that if the legal opinion comes back in the positive that we hope it does then the community is going to have to wait another month two months before we actually have a resolution in front of us that we can that we can look at. So I'm disappointed that we can't

[05:56:15] have that as a friendly. And I am not sure I will support this, but I will listen to what others have to say. Thank you. Mr. Kirshner? Thank you, Madam Chair. I just want to add to I obviously support this motion. I thank you, Madam Chair, for adding that last part, which was my going to be my friendly,

and then you added it before we came on the dais. I think it's really important for us to know actually what we're looking at, apples to apples, oranges to oranges, the total number of data centers, et cetera, before we start speaking. I mean, And I think Supervisor Crony's right.

[05:56:45] We're probably in the range of potentially 17. But let's get a really firm number on that. The one thing, and I appreciate Supervisor Crony saying, well, I'm listening to my residents. Well, I'm listening to my residents, too. And we are balancing this whole process. What you're not doing, quite frankly, in my personal opinion, and I think this is why Chair Reynolds is so wise to bring this motion and let's get a legal opinion, is listen to our lawyers.

[05:57:07] Because one thing that no one has mentioned on this board is when you get entitled in a lawsuit, guess what happens to your bond rating? And guess what ultimately impacts your residents? I bet you would be listening to your residents then when their taxes are three or four times higher. And we're not just talking in the millions. We're talking in the billions. This proposal is, we're talking in the billions that we could have liability.

[05:57:28] Now, there may be a point where we could maybe shorten this grandfathering. I think that's certainly something that could potentially be looked at. But the measure that was brought forth was not, I think, fully thought out. It didn't consider the long-term tax impacts. It didn't consider the mass amounts of liability.

[05:57:44] It didn't consider the potential loss in bond ratings because of the high contingent liabilities that these bond rating companies look at for municipalities like ourselves. So I think it's really important that you go through a measured process when you're looking at doing something like it, which is what we did when we put this, in large part, put this grandfathering clause in.

[05:58:05] It was a fully thought out, democratically approved process, and now because of politics that are going on, we are now bringing this forward. So I think this is a really wise move, I mean, maybe just because I'm a lawyer, I know how important it is to listen to your lawyer, and to go through this, and to really look at, hey, what are the ramifications here before just jumping in?

[05:58:25] And I think that is wise governance, I think it is sound governance, and I think it is something that we should be doing. I hope this, the members of the board will adopt this resolution as written. Mr. Letourneau. Thank you, Madam Chair. I will support the motion and I'm not going to relitigate the whole issue. I will say, though, that the county attorney, I assume, will probably give us a range of probabilities and of potential options, including potentially changes that could

[05:59:01] be made to the grandfather resolution that may be more legally acceptable, you can't then ask staff to provide a new resolution on the fly without the board then having a discussion and giving direction about what that would be, which we should do if that is in fact the case.

[05:59:19] I would be genuinely shocked if the answer to the actual motion of immediately ending the moratorium is anything other than what I already said I think it is. But perhaps there are some things that we can do and we want to look at. And then, as I said, I think we should also discuss process-wise, you know, just from a transparency standpoint, it may even be as simple as a staff explanation in a public setting as to how they're making the determinations on what by right actually means and what it is, and then as Supervisor Kirscher asked for, the addition to the kind of inventory of what these are.

[05:59:56] There was one particular data center that is of concern to me. It's actually at the President of Crony's district that impacts residents in mine, and it would have been covered by the grandfathering resolution.

[06:00:12] But there are other discussions now, which I'm not going to get into because we're in open session, but the point is these are a little bit more complicated than what people realize. It's not simply just we throw our hands up and say yes, no, when there's, like, no other consideration to it.

[06:00:28] And there's issues that the public couldn't possibly understand because we're only learning about them, and these are, like, deep things within the Virginia Code that provisions that I didn't even know were there that are impacting some of these things. So it's a complicated, complicated issue, and I will certainly support the motion.

[06:00:45] Thank you. Mr. Um, Ms. Um, is that your fine? Madam Chair. Okay, I'm sorry. Mr. Sainz? Thank you, Madam Chair. Yeah, I can support this motion, but in the last part where you're asking to include location status and square footage, can we ask staff to actually break out the number of buildings if it's one building?

[06:01:09] I don't know that they could know that. Two buildings. I think we got an email earlier today or yesterday where they actually gave out some of those numbers. I don't, well, first of all, Danny, could you know that? Yes, that's fine with me then. Okay. The reason I ask that is because, yeah, if we're just square footage, we really don't know what, you know, It could be 7,000 square feet or, you know, 800,000 square feet.

[06:01:30] But what does that exactly mean? Is that one building, two buildings, three buildings? Okay, I see. Yeah, yeah, yeah. You see my point. Also, I'll ask, and I think, again, it was part of the email that was sent out where they explain if a building was already, if it was already grandfathered by right, if it was already under construction or if it's still going through processes, because I think that makes a difference, too.

[06:01:53] But I like the intent of this motion. I'm assuming staff will come back with their legal opinion, what we could do, possibly if it is taking the grandfathering expiration date as of right now is either February, March of 2028. Maybe they'll come back and say, well, you know what, what we could do is possibly do it earlier than February, March of 2028.

[06:02:14] I think that would be good for us to see the possibility of doing that and other things. So thank you to all of us for this good conversation. And we look forward to hopefully its passing and seeing what comes back to us. Thank you.

[06:02:30] Mr. Turner. Thank you, Madam Chair. Just a couple of thoughts around the edges here. First, I talk to audiences almost every week now, all over the place. And you have to distinguish between applications and buildings.

[06:02:47] We may have 17 grandfathered applications representing 75 buildings. We don't know. The constituents think buildings. When you say data center to a constituent, they're thinking a building. When we think data centers, we think applications.

[06:03:04] And so I think we need to be really precise going forward as to what we're talking about. The second thing is, I also say this to audiences, Loudoun County is the most mature data center market on

planet Earth. We are all the way at the far end of the bell curve.

[06:03:19] We're as mature a data center market as exists anywhere. I don't, I'll be honest with you, I don't want to see any more data centers in Loudoun County. We've got our share. I totally agree with the comments earlier. We built our data centers. I think it's absolutely ludicrous that you can't make a decision about a data center application based on power.

[06:03:42] It just ignores reality. However, Dominion has specifically said, just think in your mind, every time you say yes to a data center, you're saying yes to a substation or two, and you're saying yes to an overhead transmission line. And a substation and an overhead transmission line is a land use decision that this board is fully empowered to make.

[06:04:04] And so, yeah, we have a unique situation, and that's the last point, is we have a unique situation here in Loudoun County that I want our constituents to understand. I would love to stop data center growth right here, right now.

[06:04:21] If I could do it legally, and if I could avoid billions of dollars in lawsuits and a loss of our credit rating and an exodus of businesses out of this county because we have proven ourselves to be unreliable supervisors in the business community, if we could avoid all of those downsides, I would absolutely favor getting rid of grandfathering and attaching any kind of thing that we could attach to a data center.

[06:04:46] We are a unique situation here. Loudoun County, unlike any other community in the country, we're trying to stop a bullet train that's been running for 25 years. And it takes a long time to stop a bullet train moving at 150 miles an hour that's got that momentum behind it for two and a half decades.

[06:05:07] And so we are trying as hard as we can as supervisors from the whole spectrum, up and down this dais. We are trying to make the best decision that we can make in an almost unique and possibly impossible situation. And we're trying to weigh all of those variables simultaneously to come up with the best decision we can come up with. It is extraordinarily hard, and no other community on planet Earth is facing what we're facing right now. Thank you. Thank you. First, Mr. Proney, I, you worked for me for eight years, and so I know how much research you do and

[06:05:43] how much thought you put into things. I do. I know how much you do, and I respect you. I respect your brain. But with respect, you're not an attorney, and you're definitely not a 37-year land use attorney. So if we go to court and somebody says, well, your attorney advised you not to, I can't be like, well, Laura said I could. I can't be like that. I can't do that, right?

[06:06:04] I have to take the advice of my attorney. It is why he is here. And I would be remiss to the people of Loudoun County just to completely ignore the advice of my attorney and to substitute it for anyone else's advice, because that's what he's here for.

[06:06:23] And if we don't think that things are going well, then that's another conversation. But for me just to go, I'm going to believe Mr. Proney and not Mr. Rogers, I can't do that. That's not appropriate. Secondly, we're acting as if there's two options. you know, if we say yes to this, there will not be any more data centers, period, if we say yes to the initial motion. That's not true. The options are, if we say yes to the initial motions, will we have data centers after we paid millions of dollars in court? That's the choice.

[06:06:58] Caleb keeps saying billions. So it's not will we have them or won't we have them. It's how much would we pay out of taxpayer money to have them? That's possibly the choice. If Mr. Rogers comes back to

us and he says, look what I have found in the law, look what I discovered, look what I talked to this attorney about and I learned that I could take this many months off of the grandfather resolution, fantastic. But it doesn't make any sense to say go do the resolution while you're finding out if it's legal to do it or not. I mean,

[06:07:32] I'm not going to have him go research and put a resolution together that is not legal to do. And if he comes back and says it's illegal, oh, happy day. And it would be, what, another month, maybe two? Okay. Okay.

[06:07:49] But it's better than us getting in court and doing something that we shouldn't be doing. When we had this first vote on this in March, I was taking the advice of our attorney, and I'm taking the advice of the attorney right now. And truthfully, it's easy to vote one way on an item if you know for sure that the county administrator, the county attorney, and all the rest of your colleagues are going to vote a way that won't end you up in court.

[06:08:20] When you have a net, you can vote any way you want to when you know everybody else, or at least the majority of the board, is going to do something that will not end you up in court. You can vote how you want to, and then you can go out and say, look how I voted, when you know everybody else is going to catch you anyway.

[06:08:40] I made this motion. Mr. Turner, seconded the motion. All in favor, please say aye. Aye. Opposed? That motion will pass 9-0. All right, guys, let's not take a break yet.

[06:08:55] Let's keep going. Madam Chair? Yes. Point of order, I think we need to go back to our original motion from the original item. No, that was a substitute motion. Ah, okay, thanks. That is the motion. That item is finished. Okay.

[06:09:12] We have the, let's do the, I think we have not done the Environmental Commission. Have we done that yet? We have not. How about we come on up and do that? I know it should have been passed.

[06:09:30] I apologize. The Environmental Commission is 12A because we have a speaker on it.

[06:09:47] My computer has decided that this is the moment it wants to update, but I have my separate mic. No, I need to hold back. No, no, I'm fine. I have it here. I'm just letting people know that my computer decided that this was a great time to update because, you know, whatever.

[06:10:11] 12A, just second. I am giving you, okay, you're very nice. You're very nice. You're very, very nice. Thank you very much, sir. Okay. We're ready when you are.

[06:10:27] Good evening, Madam Chair and members of the board. The Environmental Commission 2006 Annual Report provides the EC's recommendations to the board for the coming year and outlines its accomplishments in fiscal year 2026 and presents future goals.

[06:10:48] The report approved by the Environmental Commission on July 1st, 2026 was recommended by TELUC on July 22nd for approval by the board. Mr. William Marsh, chair of the Environmental Commission, joins me this evening at the table, and we are available to address any questions.

[06:11:10] Thank you. First of all, I have to say, you guys, we know what an amazing job you've done. We didn't put this on consent because we had a speaker on it, but we also know what an amazing job you all have done. Otherwise, we would have told you how amazing you are on consent, right? But we had a speaker on the item.

[06:11:27] So, supervisors, does anyone have any questions? All right. I have no computer in front of me, so can somebody else please make a motion? Mr. Crony, can you make a motion?

[06:11:43] I do. Oh, I thought we were doing questions. Oh, we can ask questions within the motion. We still have a closed session to go and some other stuff to do, so let's try to get this done. You see it?

[06:12:03] Yeah, I see it. I move the recommendation of the Transportation and Land Use Committee that the Board of Supervisors endorse the Environmental Commission 2026 Annual Report provided as Attachment 1 to the September 1, 2026 Board of Supervisors Business Meeting Action Item.

[06:12:19] Second. Discussion on that motion. Do you have any discussion, Mr. Crony? I just want to say, the only speaker who came, it was about groundwater, so I'll be following up with you. That was it, right? The technical. Sure. Thank you very much. Oh, you're welcome. And thank you for the report. Yeah.

[06:12:35] Anybody, Mr. Crone, I'm sorry, Ms. Bricksman? Thank you. Does the Groundwater Action Plan and Groundwater Monitoring Program include looking at groundwater resources beyond Western Loudoun? Like, does it cover the whole county? The focus is on western Loudoun quantity, yes.

[06:12:56] Okay. And it's more about quantity rather than quality? Correct. It would be about both. Okay. All right. And we aren't worried about groundwater anywhere else in the county because everyone else is on Loudoun water? Is that why?

[06:13:12] Town of Leesburg and Loudoun water both. Okay. I think that's probably one of the assumptions, and it's focused a lot on the towns and agricultural uses and residents who are on well and septic. Okay. And then, what was the reasoning? I guess there was supposed to be an energy innovation forum and an environmental leadership team. What happened? Is there any way that we can help?

[06:13:37] So, the board did direct that the Energy Innovation Forum should be held in November. November of this year. So, we are, and the commission did look to have a role in developing that.

[06:13:56] So, we are working on nailing down the date. Okay. Okay, great. And then the legislative program submittals from the Environmental Commission, And that is happening a little bit earlier now so that we can...

[06:14:13] Okay, okay, great. That's right. You all got it, I think, prior to our annual report. Yeah. And then it was also included in our annual report. Okay, fantastic. And then HB 1234 allows parking lot solar, and I think it's an important strategy to monitor.

[06:14:31] Do we, do we, are you guys looking at that as far as parking lot solar and how that might help us with our energy needs? I can check with our chair of the Sustainable Energy Committee about that, Supervisor Briskman. Okay, okay. All right, thank you. Happy to support the motion.

[06:14:51] I think, you know, I kind of keep looking, I got to look at you more often, Mr. Sainz. Okay, thank you. So the motion is just to accept the report.

[06:15:07] but it's not actually giving direction for some of the things that are being suggested. Is that correct? Correct. Okay. All right. Yeah, I'm not prepared to make a motion tonight for some of the recommendations, but let's just say I will talk to some of my colleagues, and maybe by the next meeting we will have some motions for some of these recommendations because some of them are, I think, need to be enacted and moved forward and implemented.

[06:15:37] So I thank you to the commission's time and energy. Really appreciate it. And I remember, you know, I think this was an initiative by Vice Chair Turner, if I remember correctly, brought this idea to have an environmental commission stood up here in the county.

[06:15:55] We had it. He just wrote the new bylaws for it. Yeah, so thank you to everybody. And like I said, I'll talk to some of my colleagues and be bringing back some motions in our next meeting or so. Thank you. Mr. Sains, to that, I would say, oh, Mr. Turner. Just a little one.

[06:16:10] Okay. It's mentioned, but not in great depth. Any update on the invasives removal program evaluation by the EC? We're working on it closely with staff. But there was, as you know, we have committee meetings dedicated to sustainable energy and natural resources.

[06:16:32] And that's one of the big priorities that the natural resources part of the commission is working with staff on. Right. One other point, I'm going to bring this up. It's pretty controversial, but I'm going to bring it up anyway. Just based on the other work that I'm doing now, it is absolutely crystal clear to me with the global warming numbers that we're looking at.

[06:16:53] I mean, global temperatures were up 1.55 degrees centigrade last year, which is the hottest year on record in human history. 1.5 was the Paris threshold. If we stay over 1.5 for nine more years, we'll tip three of the six global tipping points for the first time in human history.

[06:17:10] We are burning up the planet. Looking at baseload energies for data centers right now, the only viable baseload source of on-site power that I believe makes any sense at all is fuel cells. And that's going to take a lot of natural gas.

[06:17:27] And that's very temporary. The next thing up after that is small modular nuclear reactors. And I am starting to tell any environmental group that I talk to, If you're not actively talking about small modular nuclear reactors, you are contributing actively to global climate change.

[06:17:44] I'm saying that to environmental groups. You have to address nuclear. Otherwise, nuclear is baseload power. It's noiseless. It has no emissions, and it doesn't release any carbon. It's got a carbon net zero footprint. You have to start talking about nuclear.

[06:18:01] And I challenge the Environmental Commission to have some serious conversations about small modular reactors. There are four that reached critical, meaning their maximum power in the last month at Idaho National Labs around the country. Four reached critical. That's a key milestone.

[06:18:17] And I talked to an Idaho National Labs guy the other day, and he said those four are probably two years away from licensing and probably four years away from being fully operational. That's four different companies. So I really think the EC could really, and Dulles Airport's federal property, and if they're going to go anywhere near Data Center Alley, they're going to go in Dulles Airport.

[06:18:42] So I throw it out there. I know it's controversial, but I really think the EC ought to take a look at it. We're taking a look at your paper that you've been updating regularly, too. Great. Your points will take. Thank you. Hey, Mr. Sainz, truthfully, you are correct. as we start to implement or put things in place, probably you should talk to the staff and Mr. Crony also because it would go through TLUC.

[06:19:08] And so some of the, well, depending on what you're trying to put in place, you may want to, I mean, you can bring it here first, but you can also talk to her to see if we want to have any discussions about it in TLUC first. Also, something else you said that I wanted to say you were right about.

[06:19:24] You were right about something, I don't remember what it was. Maybe you just write a lot, I don't know. I'm right, yeah. Say that a little bit louder. No, I'm not going to say that. I told Mr. Sainz he was right a lot, and he liked hearing that. The Environmental Commission is doing a great job.

[06:19:43] I said at the beginning of the meeting that what we just saw in Tibet and Nepal, it was not, it's probably not the first steps due to global climate change, but it certainly is the largest we've seen, and it certainly won't be the last.

[06:19:59] And so every day I learn more and more. There's a man in the county, his name, Anthony Noripel. He sends us emails all the time about environmental issues. And I think he doesn't think we read them. I read them all the time because what he's saying is so important.

[06:20:17] The Environmental Commission is doing important work at a very, very tough time. The groundwater issue is real. And, you know, we are struggling with how, you know, when to sink more wells, where to sink more wells, you know, what fissures we were hit, and all those types of things.

[06:20:39] And the help you all have given us is phenomenal. So thank you very much. And please thank them for me as well. Or thank them for all of us, from all of us. Thanks, Madam Chair. All right. Thank you. Mr. Crony made the motion. I second it. All in favor, please say aye. Aye. Okay.

[06:20:55] All in favor, please say aye. Aye. Any opposed? That motion will pass 9-0. Thanks so much. I think we only have, do we only have one more item left? The only other, is it just the compensation item may be all that we have left.

[06:21:12] Let me see if my computer's back yet. So the compensation item is, again, from Mr. Crony and Ms. Bricksman. So I will go to the two of you again. Oh, Ms. Glass, too. Are you on this one, too? The compensation item? The compensation item?

[06:21:29] So I will go, I don't care, okay, who wants two minutes to talk about it before you make a motion? It makes me know, never mind who it is. Madam Chair, I think that we did that when it first came. This is the second time, so I'm happy just to go to a motion. Who wants to go to a motion? Sure. Well, wait a minute, hold it. Ms. Glass, do you have anything to say before you go to a motion?

[06:21:47] Mr. Crony, do you? Okay. Then let's go to a motion. Okay. I move the Board of Supervisors advertise the proposed Board of Supervisors 2028 to 2031 term annual compensation structure is provided in table four of the september 1st 2026 board of supervisors business meeting action item for the october 14th 2026 board of supervisors public hearing for consideration motions made by supervisor brixman second by supervisor the crony discussion on the motion supervisor the crony i'm sorry supervisor brixman uh thank you um i i want

[06:22:26] to just clarify that this is for the next term of the Board of Supervisors. We have elections coming up in 2027. Nobody sitting here tonight is guaranteed to be in these seats starting January 1st, 2028. So I just want to relieve anybody and any concept that anybody sitting on this dais is voting for their own salaries starting in January of 2028. Um, I am disappointed

[06:22:59] that we couldn't get consensus around, um, the 2026 AMI. Um, as the majority of us, I believe, ran in 2019 on the values of everyone in the workforce should have an opportunity to make a living wage. Um, the pay right now, uh, that we have right now is 69% of the 2026 AMI. Um, By raising the

compensation of these positions in the next term, it will allow new voices to represent Loudoun County potentially.

[06:23:29] In this disparity of only earning 69% of the AMI can present barriers to entering public service for individuals from diverse professional and socioeconomic backgrounds. Individuals who do not have second household income or independent wealth may find it necessary to supplement their income with another job.

[06:23:50] Limiting their time and attention that they can dedicate to their constituents and the increasing responsibilities of these elected offices as our county is nearing 450,000 residents and we have a \$5.4 billion budget that we manage. Aligning the compensation structure with Loudoun County's cost of living and the full-time nature of serving on the board will help mitigate these challenges and support broader participation in local government.

[06:24:17] And I will just leave it at that. Thank you. Ms. Umstead? Thank you, Madam Chair. I will be voting no, as I figure my colleagues would expect.

[06:24:36] It wasn't that long ago that the board raised the next board's pay substantially by about 60%, I believe. And the level at which we are compensated now, I think, is very generous.

[06:24:54] I have a lot of constituents who do not make anywhere near the \$116,000 a year being proposed, and I think it's incumbent on us who represent people who make \$40,000 a year, \$50,000 a year, maybe 80, not to overstep and compensate these positions at what would be an extraordinarily generous level.

[06:25:33] So I respect my colleagues' desire to bring this forward, but I do not agree that this is a good move. Thank you. Ms. Glass? 14G. Thank you, Madam Chair. As Supervisor Briskman stated earlier, that this is an item that does not increase the salaries for us.

[06:25:59] It's sitting on the dais right now. This is for folks who may decide to run for office and win. Maybe someone who is a teacher assistant, someone who does work at a restaurant, Or someone who is knowledgeable about and want to do things for their community, but otherwise would not possibly have the opportunity because the cost of living in Loudoun County is expensive.

[06:26:37] We want to have all folks to have that opportunity if they would like to run for office and be able to live in the county that they represent.

[06:26:59] Yes, so maybe that person that's making \$40,000, you know, get into this position and be able to, you know, be able to do the job that they would like to do instead of being concerned about, you know, working, I don't know, 60 plus hours.

[06:27:25] So, you know, I think this should show, you know, the compensation should be, should reflect the expectations that, and the growing responsibilities, you know, that we have as board members.

[06:27:49] And so I'm hoping that my colleagues would support this. Thank you. Mr. Letourneau. Thank you, Madam Chair. Well, I'd like to at least acknowledge and appreciate that this motion does not simply enact a new salary structure, but does send it to a public hearing.

[06:28:11] So I appreciate that and thank my colleagues for doing that. I think that's the right move that I suggested last time. I'm not going to vote for moving this particular proposal forward because it's just more than I'm going to be comfortable with supporting.

[06:28:26] It's a 15%, 15.5% increase for district supervisors. And I think it's a little tone deaf for us to go that high. My office did do some analysis of what county employees have been getting over this period of time.

[06:28:44] And if you want to say that there's a deficit, and there is, between what county employees got and the board of supervisors during the last four years, it's more like 5%, not 15%. I understand the argument about AMI, but I think that presupposes the idea that the only way to do the job, or even the best way to do the job, is to do it full-time.

[06:29:05] And I can honestly say that I think one of my real most beneficial things to me in doing this job has been the fact that I have to do another job at the same time.

[06:29:20] Um, because I am living the same life as my constituents are living and I am experiencing the same traffic issues and intersection issues and pressures on my time and everything. And I'm not saying you have to do that to understand it either, but I think it's good to have a mix of people on a board, um, some of which are, are doing that and some of which aren't.

[06:29:40] Um, and so therefore for me, the AMI is just not the magical thing that we have to be at. you know we are talking about salaries now that are approaching \$90,000 which is is pretty significant and it's public service so I would have supported a more modest increase more in line with what we've kind of been doing as Supervisor Emset said we did do a major reset which was needed at the time because the board salaries had not been adjusted for 12 years at the time that we well by the time we did it um and that's why there was such a big jump at that

[06:30:17] time but since then we've had steady increases so um affordability is a big issue you hear from everybody um and i know that the amount of money here is not a huge amount in the budget but i do want to would prefer to sort of lead by a little more example and not have such a big increase and so i'm not going to vote to move it forward to public hearing because this isn't the number that I would support. Thank you. Mr. Kirshner? Thank you, ma'am chair. Yeah, I'm not going to support this proposal. No surprise. I think when we raised it last time, I was a, I expressed my concern to my colleagues. I said, listen, I- You were on the board last time when we raised it. It was last term.

[06:30:57] Last term. Oh, the 3%, okay. Yeah. So, since, man, it's reset my time. Just teasing. But, But, you know, I actually think we're very highly compensated for what we do.

[06:31:15] I've always argued that more budget for our staff, because a lot of, you know, tying up loose ends and that sort of thing. And everyone runs their office a little bit different. I understand that. I think Supervisor Letourne and I run it quite different than some of the other supervisors on here. And so they kind of take up a full-time role within their office itself, whereas we obviously have full-time jobs and really treat this as an executive, kind of an executive position.

[06:31:40] I do think that the number on here is generally probably pretty close to what the chair should be making, because I do believe that is probably a full-time job. I mean, I know it's a full-time job, but I think the job is sometimes in ways what you make it, and so some of our supervisors up here, you know, they're, you know, sun up to sun down, they're doing this, they're doing that, and that's fine.

[06:32:00] I've always seen this as in large part, I mean, trust me, I put in 34 hours a week easy on this, but I think in many ways it's an executive position, like an executive board, where you have a professional staff

of the county who does much, obviously, of the heavy lifting, and we as supervisors make the large executive decisions based upon the information that we're given as a body.

[06:32:21] And so, yes, compensation is obviously something that is done, but I mean, I remind everybody, obviously I think they're paid way too low, but our state legislators make, what, \$20,000 a year. Not anymore. What did they move it up to? \$50,000. Okay, so \$50,000, which is still significantly less than this, And it is obviously that was in need of a significant increase.

[06:32:41] And the reason they call it, in some ways they call it a public servant for a reason. I do think that the more you increase the price on these sorts of things, I think there is something to be said for those who are maybe longer in the tooth, have a lot longer history in terms of their work, and come with a lot more experience is important and so don't necessarily need all the money.

[06:33:04] I think there's something to be said for this. So when we start creeping into these larger numbers, I think we are making a mistake. I, like Supervisor Letourneau, would probably support just the modest increase from what is basically being made, maybe along the lines of inflation or the cost of living. But this jump is a little too much for me.

[06:33:20] I just don't think I can support it. But I do appreciate that we're sending it to a public hearing, unlike the prior proposal was. I think it's a more balanced, democratic, and fully vetted process than what was suggested before. Mr. Crotty? Thank you, Chair Randall.

[06:33:36] So, yeah, I am glad that it's going to a public hearing. But I do want to make it clear that this is for next term. This is not for our term. And that the salary that is proposed currently would be below the AMI for the Board of Supervisors throughout next term.

[06:33:58] The AMI for the chairs, I think it meets the AMI, the 2026 AMI for the chairs' salary in 2031. So we really aren't going with the AMI, so I do want to make that clear that it's below the AMI.

[06:34:13] I also want to make it clear that compensation is not my motivation. My motivation for supporting this initiative is to provide a livable salary that gives supervisors the opportunity to have business meetings during the day and have the opportunity to make a full-time commitment if they want to.

[06:34:32] From 2004 to 2011, the board used to hold business meetings during normal business hours. Requiring two business meetings a month during the day to promote a professional working environment is not too much to ask. We are the third largest county in the state of Virginia, and we have a complex agenda and multi-billion dollar budget.

[06:34:53] Fairfax County and Prince William County hold meetings earlier. They do not hold meetings starting at 4 o'clock p.m. It's too late and look at where we are. We're at 1030 right now. Transparency is also a consideration when meetings go this late. It is a consideration. I'm sorry. It is a consideration.

[06:35:14] Oh, okay. And I know state code does not define the supervisor role as full-time. However, everybody on this dais knows that the role requires a full-time commitment. I make a full-time commitment and I'm proud to be accessible to my constituents by hosting office hours, community meetings, and town halls throughout my district. My office hours during the day are packed. I usually have a line out the door. I just want to let everybody know that. I go throughout my district.

[06:35:45] So there is a need and sometimes I get constituents from other people's district coming to my office hours. I also want to make that clear. So public hearings can still be in the evening but I do want to make it clear that my motivation is to have meetings during the day and to start having a more professional working environment. It's not just about the salary. Thank you. Mr. Sains.

[06:36:10] Thank you, Madam Chair. I just have to say, and I respect Supervisor Ciccone's comments, that's from her perspective, but I'll just say what might work in your district doesn't necessarily work in another district. We've, over the years, I've tried office hours during the day. In my district, we had one or two people show up because my constituents are working during the day. So again, what might work in your district might not work in another district.

[06:36:49] So you have to be flexible and find what works in your own particular district or for your constituents and have different varying hours of office hours and meetings and, you know, et cetera. And there is no template for the board meetings.

[06:37:07] And, you know, every jurisdiction does a completely different. Fairfax, their salaries are, I think, one of the highest in the area. And they traditionally have their meetings during the middle of the day or at least one or two meetings in the middle of the day. And they do have some meetings in the evening hours.

[06:37:24] Prince William County starts a little bit earlier, then they take a break, a recess, and then they start around 5 o'clock or so, 6 o'clock, and go into whenever time. I believe Arlington and Alexandria, they actually meet on Saturdays. So there is no set standard.

[06:37:43] Everybody has their own standard, and every board, when they get up, decide to take a vote or have a discussion and then set their agenda and set their board meetings. Because, you know, when I started, our meetings were at 5 and 6 o'clock in the p.m. hour.

[06:38:00] And then we decided to change at least the one, as we are today, when it started at 4 o'clock to try to get some items done earlier. So then by the time constituents come for public speaking at 6 o'clock or so, they're here. Because some constituents, again, are working during the day and they can't come.

[06:38:16] So that's why we have, that's why we've set our meeting agendas. But anyway, at the end of the day, I am going to support the motion. When we started, again, I didn't even know what the salary was, to be quite honest with you, when I started this back in 2016.

[06:38:33] Not doing it for the salary, I'm doing it for the love of my community and being able to represent my community. But I think these salaries could help, you know, whoever, because again, yes, it's not for this current board that's sitting.

[06:38:49] This is for the board that will take over in 2028, 2029, 2030, and 31. It's for those folks who knows who's going to be up here or not. We don't know until we have the elections in 27. But whoever does sit during this time, if this does pass, could it help folks?

[06:39:06] To somebody's point earlier, where they, oh, I'm working a job, and they can leave that job and take this job on? Maybe so, and good for them and their family. But everybody makes their own decision. But I'll support the motion. Thank you. I don't understand why the increase for supervisors is 15.47%, increase for vice chair is 5.8%, and increase for chair is 6.9%, basically 7%.

[06:39:31] I don't understand these numbers, to be quite honest. I will say this. You know, I do this job full-time, and I don't know a chair at large that doesn't do their job full-time. My predecessor did this job full-time. His predecessor did the job full-time.

[06:39:48] So going back literally 25 years or so, the chair-at-large job was a full-time job. There are many times that I have colleagues who are working who can't do something, and I go, and I think that's part of my job.

[06:40:04] Mr. Crony, with respect, this increase, I don't know what Mr. Letourneau, Mr. Kirshner, or Mr. Sains makes, but this increase would not allow them to quit their full-time job, right? It would not. So I understand what you're saying, but it's not like it wouldn't allow them to, I don't know if it would allow, I don't be in y'all's pockets, but I got a feeling this increase is not going to allow y'all to quit your full-time jobs.

[06:40:33] I think it's okay, not just okay, I think it's amazing that I have colleagues who have full-time jobs. I look at Mr. Glass and Mr. Kirshner, Mr. Saines, Ms. Letourner, and I am in awe of them that they have these full-time jobs, and then they come here and do this in the evening.

[06:40:54] It is absolutely amazing. You know, when they come running in that door at 530, it's like, wow. And so in no way would I ever do anything to jeopardize the jobs that, for the most part, are feeding their family and paying their mortgage by insisting that they do this during the day.

[06:41:14] And these increases would not give them enough revenue to let their full-time jobs go and do this during the day. That just wouldn't happen. I do appreciate that this is going to a public hearing. I think, because when I've heard, when we did this in 2019, when we did this 2018, the public said, like, we should be able to speak on this.

[06:41:38] Well, now they can speak on this, and so I think that's a good thing, that it goes to a public hearing. Whenever it comes back to vote, I will tell you that I'm not going, I will abstain, I will ask for the vote to be split, and I will abstain on the vote for chair at large.

[06:41:58] I just think it's the right thing to do to abstain on a vote for myself. And so this is a little high for me right now, and I don't understand these numbers, and I might have a different motion when it comes back, but at least we're asking the public to speak about it.

[06:42:19] But I probably won't vote for these numbers, and I won't vote for my own salary, for the salary of the chair when it comes back as well. Ms. Bricksman, I think you made the motion. Would you like to close? I did. Thank you. I just want to level set that the original item that was brought did look at the 2026 AMI as the base for the supervisor's salaries.

[06:42:49] The new chart in here does not use that AMI anymore because my colleagues pushed back on that. And so we have changed it, and we worked with other offices to do that. I will say the numbers may be a little bit confusing because we aligned the vice chair salary with the supervisor salaries because that's what other jurisdictions do.

[06:43:18] So we took out the, I think it was like 5% or 6% bump that the vice chair was getting. So that's why it looks like the vice chair is changing in a different way than the supervisors. I will point out that for me, this is about opening opportunities for other folks to serve an elective office.

[06:43:48] And it's not just about serving. let's not kid ourselves, especially when we talk about the General Assembly, it's not just about serving, it's about those who have the authority to set policy and make decisions, and that has been historically reserved through certain tactics for certain demographics of our population,

[06:44:20] i.e. not women, i.e. folks who have the time and the resources and the generational wealth to be able to have other income to rely on and then go down or up to be making decisions.

[06:44:38] So for me, it is about allowing more opportunity to a more diverse set of folks who may want to come into office and work on policy that they believe would benefit their community.

[06:44:56] And so that's what it is about. I think I will leave it at that. I think that we will give the opportunity for the public to make comment on this, and then hopefully we can pass what is proposed here, because it's already been significantly reduced from the first proposal.

[06:45:13] Thank you. I would add an IE people of color, since the only three people of color to ever sit in this dais of sitting on here right now. So, I'll just say that. Fully agree, Madam Chair. Fully agree. So. Certain demographics. Okay. We can be more specific than certain demographics.

[06:45:30] All right. Mr. Crony, I'm sorry, Ms. Bricksman made the motion. Which one of you, Mr. Crony seconded the motion? Crony seconded the motion. To go to the public hearing, yes. To go to the public hearing. All of you please say aye. Aye.

[06:45:45] Opposed? Aye. So, that would pass 6-3 with Ms. Umstead, Mr. Kirshner, and Mr. Letourneau voting against the motion. We haven't done board comments yet, so before you take off, because I see people like wrapping up, and we have another closed session, guys.

[06:46:01] Okay. Okay. Okay. Okay, but but, but, but, but, but, let's just if you don't want to do board comments, you don't have to, but we still haven't done that yet, so board comments. Mr. Letourneau, board comments? Matt.

[06:46:18] Sorry, a little chatter over here. July 13th, I met with Annie Power and Dave Lucie of Digital Realty discuss Lecce 2025 0059. The other thing I was going to say, which none of you will care about, but people in my neck of the woods are very excited about, is that we were able to confirm that Cooper's Hawk Winery and Restaurant will be joining the exchange at Arcola.

[06:46:42] And that is part of what a direct result of the board's decision to relieve us of the park and ride requirement at Arcola Center. And also that we're excited to welcome Barnes & Noble into Dulles Landing, into the former Bye Bye Baby space.

[06:46:58] So they're hoping to be open in time for the holiday season. So we're very excited about that here in the Dulles District, and that's all I'm going to say. Cooper's talk is worth being excited about. Ms. Bricksman? Thank you, Chair Randall. I will say that there is growing concern in the community about ice activity writ large in the community.

[06:47:20] and I've had a lot of folks, I won't say a lot of folks, but a good number of folks reaching out with those concerns. School attendance has been reported to be down regionally, and according to a recent news article, and school board chair Chandler confirms anecdotally that school attendance is down this year because families are fearful about the increased ICE presence in our community.

[06:47:45] Chair Chandler shared that she is hearing fear from parents who are afraid to leave their homes, take their kids to school, take their kids to the park. Business owners have also been reaching out over the past few weeks about the aggressive operational surge on major local thoroughfares that has created a climate of fear that severely impacts daily commerce and creates collateral economic damage in Loudoun County. One small business owner in Algonquian said the supply chain and delivery disruptions are caused by constant vehicular stops by federal agents that have delayed critical deliveries, missed

[06:48:21] logistical windows, and interrupted necessary business support. It has caused workforce instability. This employer says, my employees are experiencing extreme anxiety to work due to unpredictable traffic stops. The fear of being targeted while simply traveling to their jobs is driving labor shortages and threatening their ability to keep their business staffed.

[06:48:45] They report a reduced customer foot traffic. The heavy and intimidating presence of federal agents in our shopping districts has caused a noticeable drop in customer traffic. Longstanding patrons are actively avoiding commercial areas in Sterling out of anxiety, leading to a direct loss of their daily revenue for this small business owner.

[06:49:06] This business owner strongly urges the Loudoun County Board of Supervisors to carefully reconsider any local resources or police cooperation agreements or 287G agreements. I've also heard from at least one immigration, actually more than one immigration attorney who has contacted me out of concern about what's going on and we all received an email from a university student to the full board who is expressing concerns about the impact on her family and community.

[06:49:36] We learned today that LCSO will not be terminating their 287G agreement as required by state law, according to a judge's ruling. Apparently, they think they can keep working with ICE, but I will again advocate for the sheriff to end the 287G agreement, through which more than 400 of our community members have been disappeared.

[06:50:01] According to a gun violence archive, there have been 8,740 homicides or murder at gunpoint. 583 of those are ages 12 to 17, 156, ages 0 to 11, and 321 mass shootings so far this year.

[06:50:22] Thank you. Did Ms. Umstead leave? Is she, like, gone? I think so. She's gone? Okay. All right. Ms. Glass? Thank you, Madam Chair. A few disclosures. On July 22nd, my staff met with representatives from Digital Realty for the Digital Dulles On-Site Power Generation Application.

[06:50:45] August 4th, my staff met with representatives for the R&D Baseball Minor Special Exception Application. August 5th, I met with representatives from Digital Realty for the Digital Dulles On-Site Power Generation Application. August 11th, my staff met with representatives from Walsh Colucci for the Dulles East Housing Application.

[06:51:06] August 11th, I met with representatives for the Quantum Park application. I also went to a couple of regional meetings. One was NVRC, that was in July.

[06:51:24] I also participated with the VACO at the summit was back in August, in the middle of August. I also went to the NACO South region, the monthly meeting in August as well.

[06:51:44] I never have enough time. So during the VACO, I'm part of the Education Steering Committee and there were a number of key provisions that they had discussed that had passed with the General Assembly.

[06:52:00] There are a lot of good things that are going on. One was Early Childhood and Libraries, which funds 6,745 additional child care subsidy slots per year. It provides \$25 million in fiscal year 27 for the Employee Child Care Assistance Pilot Program.

[06:52:22] Another one is that for special education, VACO supported legislation that passed the House but was continued in '27, incentive, finance, and appropriations, and it would direct Virginia Department of Education, the Office of Children, Services and Money, committee staff and stakeholders to examine ways to maximize public school supports for students with disabilities and reduce referrals to private day placements.

[06:52:52] And this past weekend, I went with one of my colleagues, supervisor to crony we went to the historical plaque dedication way out in bluemont virginia and it was very nice it was at austin grove church and there was a gospel concert with the jay johnson and gospel creators and when i was talking with the group there i told them that my dad was a minister and we used to go to all the churches in northern virginia and then they told

[06:53:28] me, oh, we're Methodist. I was like, okay, I'm Baptist. So that was the reason why I hadn't visited one of the churches, but it was funny. That was funny. Okay. Thank you, ma'am. Miss Tocroni. So I think we should have the gospel singers come here. They were amazing, Chair Randall. I've heard gospel singers a couple of times in my life. I told Syria they should just come here and do a concert for us. Make us happy. They were really good. So for disclosures, on July

[06:54:05] 24th, a member of my staff met with representatives from NOVAC regarding the DEMO substation. On July 6th, my staff met with representatives from STAC regarding the DEMO substation. On August 17th, I met with Dominion regarding HVDC and Morrisville to Wishing Star. This is a long meeting, so I'll keep my comments short. I want to thank the Dulles Farms HOA for hosting a town hall with Supervisor Letourneau and me last night. Over 50 people came to ask questions and to just be

[06:54:42] accessible to the two of us. There were lots of comments on retail, data centers, and transportation in the Dulles and Little River districts. I am continuing to work with communities in my district who are impacted by data centers and electrical infrastructure.

[06:54:59] On September 24th, I will be hosting a Willisford Community Town Hall to discuss issues with adjacent data centers and substations. And I want to put a quick call out to Maha. She turned 25 on August 23rd, so she is the youngest member of my staff.

[06:55:18] Happy birthday, and congratulations, Jason, for graduating. So, thank you. All right, thank you very much. Mr. Sains. Thank you, Madam Chair. Disclosures on July 23rd, my staff met with Cooley and their applicant for the Digital Dulles Campus application on August 25th.

[06:55:43] My staff and I met with the Dominion Energy to discuss the Golden Substation application. A friendly reminder that we are in the last two weeks of my annual back-to-school supply drive, which runs until September 14th, so there's still an opportunity to go to our Facebook page or our website.

[06:56:04] You can see our Amazon wish list, order items, or you can go to the store when you go to your shopping location and think of a child in Sterling and make a donation at the Sterling Library, Clodmore Recreation Center, or the Community Center in the Dulles Town Center.

[06:56:22] Every donation helps ensure a student is equipped with the tools they need to succeed this year. I would like to thank the organizations that have participated thus far. We'll have a full list and readout in October on our success.

[06:56:41] And I just want to thank Dr. Jim Smith, who's an ambassador for the Prostate Health Education Network, where you passed a resolution earlier today, which was approval only to make September 2026 as Prostate Cancer Awareness Month in Loudoun County.

[06:56:57] The American Cancer Society estimates that one in eight men will receive a prostate cancer diagnosis in their lifetime. Our local diagnostic rate is 125 cases per 100,000 male residents. But also I would like to point out that in the black community, black males face a higher number where it's actually 187 cases per 100,000 male residents.

[06:57:26] Prostate cancer does not just impact individuals that are diagnosed with the issue, but it deeply affects their families, their caregivers, their children, and the community as a whole. So early detection saves lives. I urge all residents, males obviously to do it, and females please remind your males in your life to prioritize their health and speak with their health care provider and know the facts and get your test done and do that regularly to make sure you are clear of this disease.

[06:58:05] And I'll say thank you as always to the residents that came out to speak. You could have chose to be anywhere, but you chose to come and speak in front of us this evening on the issues that are near and dear to your heart, so we really appreciate that. And that's it. Thank you. Mr. Kirshner.

[06:58:22] Thank you, Madam Chair. Very brief. The only comments I have is, I know that September 11th is coming up. I cannot believe, honestly, it's the 25th anniversary of that awful attack from terrorists that hate us.

[06:58:41] and killed thousands of people in the World Trade Centers and the flight to Dulles that went down to the Pennsylvania fields. And I remember I was on a plane that day, actually coming back from California, thankfully. And we were grounded in Arizona as a result.

[06:58:57] And it's always been a day to me that you kind of remember where you were when Kennedy was shot. I wasn't because I wasn't born yet, but you talk to people. And then you remember where you were on 9-11. And I never forget getting off the airplane. They just said, hey, we're landing because there's some things going on. back east or whatever, and got off, and I looked at the TV and watched the, I don't know if it was the first or the second building collapse, and that has always impressed me, obviously, and it was a day that changed America in a significant way, and I still don't think we should ever forget those who gave their lives to ensure that justice was brought to that as well as those that gave their lives as a result of that terrorist attack, so that we are having,

[06:59:37] Obviously, some commemorations here in the county to remember September 11th is the 25th anniversary, including in my district, Lovitzville and Perseville. They'll hold annual ceremonies. So if you live in those areas and you wish to participate, please go to their town web pages or my Facebook page and we'll announce that.

[06:59:55] Thank you, Madam Chair. You took my comments, but I'll get there. You took my comments. No, no, no. I'm glad you talked about it also. Mr. Vice Chair Turner. Thank you, Madam Chair. On July 28th, August 31st, my staff and I spoke with Kathleen Leonard from Dominion to discuss the application for the Golden Substation.

[07:00:12] On August 6th, my staff and I met with Mike Romeo from Wash Kalushi to discuss Dulles East. On August 6th, my staff and I met with John Simpson from Paragon Homes and Sangam Nupani from Kemley Horn to discuss Ashburn Station Village. On August 6th, my staff and I met with Daniel Olds and Rob Riley from R&D Baseball to discuss R&D Hamilton Academy.

[07:00:30] On August 10th, my staff and I met with Dominion, Novak, and Equinix to discuss the Barrister, Aspen, the Golden, and Damon substations. On August 14th, my staff and I met with Kathleen Leonard, Brian Starling, Kyle Hannan, Gerald Warcol, Stephen Precker, and Sean Doherty from Dominion to discuss the application for the Golden substation.

[07:00:47] On August 31st, my staff and I met with Howie Adal and Brian Winterhalter from DLA Piper and with Douglas Fleet, Elizabeth Nicholson, TJ Sevier, Miguel Garcia from American Partners to discuss the application for Quantum Park. Thank you. On July 28th, my staff went with applicants from Tech Park at Dulles.

[07:01:06] And over the August recess, my staff spoke with Novak about the DEMO substation application. And I don't remember the date, but I also went out to R&D Baseball. I was out there for quite a few hours to visit with them so I could make a decision.

[07:01:23] Like Mr. Kirster, I was going to talk today about the 25th anniversary of September 11th. that it really is hard to believe we're at 25 years already. There are times, not just around the anniversary, but I think it's September 11th, and I still can't, it's still just, it's just incomprehensible that that even happened.

[07:01:43] I do want to say some names. I want to say the names Christopher Newton and Dong Lee, those two gentlemen, Mr. Newton and Mr. Lee, are why Newton Lee Elementary School is named Newton Lee Elementary School. They were both on the plane that hit the Pentagon.

[07:02:01] They lived in Belmont, and so the school was being built, and that's why it was named after them. I want to say the name Michelle Lanza. Michelle Lanza actually went to my church. I knew her pretty well, and her and my son were very good friends.

[07:02:17] She happened to be up in New York at the World Trade Center. And I remember the night it happened, We went to church for a prayer ceremony, and my pastor said, Michelle Melanza is missing. And I said, what floor was she on?

[07:02:33] And he told me, and I was like, okay, we're going to say missing. There is a documentary, and it's called Telling Nicholas. If you look it up, it is how Robert, Michelle's husband, Nicholas's father, told Nicholas about his mom losing her life on September 11th.

[07:02:53] It's an award-winning documentary. And I know that family really very, very well. I will be attending the event in Levittsville. I'll be attending the event in the morning at Sagra Field.

[07:03:09] It is a remembrance and a stair climb to kind of recreate the firefighters that climbed the stairs on September 11th. So you will climb the bleachers at Sagra Field. So I will do that, and then I will go out to Levittsville.

[07:03:28] September 11th, you know, so puts things into perspective. I will say on that day and in the days following, we were not Democrats and Republicans and independents and conservatives, and that all just went away. We were just, you know, Americans helping one another the best we knew how.

[07:03:48] And it was, you know, it was just maybe the worst day, one of the worst days in our history. So I never want us to forget that day and continue to pray for all the survivors and all the families of September 11th.

[07:04:05] Supervisors, we have one, we have a closed session, and we will be done. Do you all need a break, or can we go straight to closed session? Are you not staying for closed session? All right, so Ms. Bricksman and Ms. Umstead have left for closed session and will not be joining us for closed session.

[07:04:26] Mr. Turner, will you please read this? I move the Board of Supervisors recess this public meeting and enter into closed session. Pursuit of sections is 2.23711A8 and A29 of the Code of Virginia to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where negotiations in open session would adversely affect the bargaining position of the county.

[07:04:50] Motion made and seconded by Supervisor Glass. Discussion on the motion? Seeing none, I'll be able to say aye. Aye. Opposed? That motion will pass 7-0-2 with Ms. Glass and Ms. Bricksman.

[07:50:17] Okay, we are back. And Mr. Turner, would you please read us out of closed session? I move the closed session be adjourned, that the Board of Supervisors reconvenes at the public meetings, to the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[07:50:39] That motion may be seconded by Supervisor Sainz. Discussion on that motion? All in the people say aye. Aye. Any opposed? That motion will cast 702. And I think that's it, and we are adjourned. Affirm. I'm sorry, affirm, I'm sorry.

[07:50:56] Affirm. Affirm. Hey, we affirm. Affirm. I'm firm. Okay, thank you. Okay, we should go home now. We are adjourned.



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